

KADG010011802015



Presented on : 21-05-2015
Registered on : 21-05-2015
Decided on : 31-10-2023
Duration : 8 years, 5 months, 10 days

**IN THE COURT OF
PRINCIPAL DISTRICT AND SESSIONS JUDGE,
AT DAVANAGERE.
(Presided Over by SMT. RAJESHWARI N. HEGDE)**

SPL.Case(LOK)/5/2015

Complainant:-

The state, represented by
Deputy Superintendent of
Police, Karnataka Lokayuktha,
Davanagere.

(Previously, By Sri. Panchappa Y. Hadimani, Special Public
Prosecutor, Davanagere,

Now Smt.C.P.Anita, Special Public Prosecutor,
Davanagere.)

-VERSUS-

Accused:-

S.Ujjanappa, S/o.Basappa,
Aged about 56 years,
Executive Officer,
Taluka Panchayath,
Ranebennuru.
R/o. Door No.1826/5,
LIC Colony,
Beside Thimmareddy College,
Davanagere.

(By Sri Shankar P.Hegde, Advocate)

1	Date of commission of offence	01/06/1989 to 07/11/2012
2	Date of report of the offence.	07/11/2012
3	Name of the complainant	Sri M.K.Gangal, Police Inspector, Karnataka Lokayuktha, Davanagere
4	Date of arrest and release of the Accused.	Accused had obtained anticipatory bail in Crl.Misc.No.1002/2014 from this Court vide order dated 12/12/2014. He was released on bail on 04/06/2015.
4a	Total Duration in judicial custody of Accused	Years Months Days 00 00 00
5	Date of commencement of recording evidence	23/12/2016
6	Date on which the evidence was closed	28/04/2022
7	Alleged offence/s	U/Sec.13(1)(e) read with Sec.13(2) of the Prevention of Corruption Act, 1988.
8	Opinion of the judge.	Accused is not found guilty of the offence punishable U/Sec.13(1)(e) read with Sec.13(2) of the Prevention of Corruption Act,1988.
9	Date of judgment	31 st October 2023
10	State represented by	Sri. Panchappa Y. Hadimani, Learned Spl. PP, Davanagere- Earlier. Now, Smt.C.P.Anita, Learned Special PP,

		Davanagere.
11	Defended by	Sri Shankar P. Hegde, Advocate

RAJESHWARI N HEGDE

Digitally signed by RAJESHWARI N HEGDE
Date: 2023.11.06 16:27:07 +0530

Prl. District & Sessions Judge,
Davanagere

JUDGEMENT

1. On a charge sheet filed by the Deputy Superintendent of Police, Karnataka Lokayuktha, Davanagere against the accused for the offence punishable under Section 13(1)(e) read with Section 13(2) of the Prevention of corruption Act, 1988 (in short 'P.C.Act'), cognizance was taken and case came to be registered against the accused.

2. Prosecution case is that:-

2(a). Accused is a public servant (now retired) as defined U/Sec.2(c) of P.C. Act which is not disputed by the accused.

2(b). As per the prosecution, the accused has joined the service as Range Forest Officer on 01/06/1989, he was deputed for training at State Forests Service College, Gujarath for one year and thereafter he was posted to Action Planning and Survey, Ballari as RFO and thereafter promoted to different posts and worked in different capacity and different places.

2(c).The post held by the accused, period during which he worked at different places, are shown in detail for convenience reference as under :-

Sl. No.	Designation	Place of worked	Duration	
			From	To
1.	Range Forest Officer	Training, State Forests Service College, Gujarat	01/06/1989	13/06/1990
2.	Range Forest Officer	Action Planning and Survey, Ballari	14/06/1990	03/06/1992
3.	Range Forest officer	The Mysuru Paper Mills Limited, Bhadravathi	05/06/1992	20/06/1995
4.	Range Forest Officer	Davanagere Range, Davanagere	21/06/1995	15/07/1998
5.	Range Forest Officer	Kalaghatagi Range, Khalaghatagi	14/10/1998	12/06/2003
6.	Range Forest Officer	Kathuru Range, Kathuru	13/06/2003	31/05/2005
7.	Range Forest officer	Dharawada Range, Dharawada	01/06/2005	13/01/2009
8.	Executive Officer	Taluka Panchayath, Channagiri	02/02/2009	22/06/2011
9.	Deputy Conservator of Forests	Watershed Development Department, Davanagere	21/09/2011	23/05/2012
10.	Executive Officer	Taluka Panchayath, Ranebennuru	24/05/2012	07/11/2012 (till the date of raid)
The date of retirement of the accused : 31/01/2020				

2(d). It is further case of the prosecution that, on credible information received by P.W.11- M.K.Gangal, Police Inspector of Karnataka Lokayuktha stating that the accused said to have acquired huge assets from unknown source of income and he has collected information along with his staff and thereafter, he has submitted Source

Report to Lokayuktha Police on 03/11/2012 as per Ex.P.16 and on the basis of the said Source Report, Dy.S.P., Lokayuktha ordered for suitable action.

2(e). The Dy.S.P., the Karnataka Lokayuktha, Davanagere has filed the FIR in Crime No.09/2012 (opened on 29/11/2012) before this Special Court as per Ex.P.191.

3. After filing the FIR, Dy.S.P., has submitted requisition dated 07/11/2012 to the Court for issuance of search warrants as per Ex.P.29 (as per the Warrants issued by the Court at Ex.P.2, Ex.P.4, Ex.P.8, part of Ex.P.31 & Part of Ex.P.32) seeking permission to search the following premises belonged to the accused:-

- 1) House No.1826/5, 'Malleshwara' LIC Colony, Beside Thimmareddy College, Davanagere (as per Ex.P.8);
- 2) Office of Executive Officer, Taluka Panchayath, Ranebennuru, Haveri District, wherein the accused was working at the time of raid (as per Ex.P.4);
- 3) Government Quarters No.2, Near Court premises, Ranebennuru; wherein the accused resides at the time of raid (as per Ex.P.2)
- 4) Farm House situated in Sy.No.12P, Kurubarahalli village, Harihara Taluk, Kasba Hobali in the name of his (accused) wife namely Smt. Prema (as per Ex.P.33);

- 5) The house of B. Eshwarappa, who is brother of accused situated at Bandre Village, Tarikere Taluk, Chikkamagaluru District (as per Ex.P.31).
- 6) The house of B. Channabasappa, who is another brother of accused situated at Bandre Village, Ajjampura Hobali, Tarikere Taluk, Chikkamagaluru District (as per Ex.P.32).

3(a). The Dy.S.P., C.W.54, Sri C.B.Patil (who was not examined, because all the documents are marked with consent) after obtaining search warrant from the Court to search the places as stated above, formed the teams and raided the places.

3(b). For convenience reference, the place of raid, date of raid, the team leader of the raid and seizure mahazar and P.F. mentioned in the form of table as under:-

Sl. No.	Place of raid	Date of raid	Police Officer who went for raid	Mahazar	P.F. No. & date
01.	House No.1826/5, "Malleshwara", Beside Thimmareddy College, LIC Colony, Davanagere	08/11/2012	C.B. Patil- C.W.54 (not examined)	Ex.P.7	P.F.No.14/2012 dated 08/11/2012-Part of Ex.P.33 (page No.62)
02.	Office of Executive Officer, Taluka Panchayath, Haveri District	08/11/2012	M.B.Patil- C.W.50 (not examined)	Ex.P.1	P.F.No.15/2012 dated 08/11/2012-Part of Ex.P.33 (page No.64)
03	Quarters No.2, Ranebennjuru				
04.	Farm House situated at Sy.No.12P, Kurubarahalli village, Harihara Taluk in the name of wife of accused-Prema	08/11/2012	K.Srinivasa- C.W.51 (not examined)	Ex.P.15	P.F.No.16/2012 dated 09/11/2012-Part of Ex.P.33 (page No.65)
05.	House of accused brother-B.Channabasappa	08/11/2012	S.T.Odeyar- C.W.53 (not examined)	Ex.P.32	P.F.No.17/2012 dated 09/11/2012-Part of Ex.P.33 (page No.66)
06.	House of accused brother-	08/11/2012	K.C.Purushottama-	Ex.P.31	P.F.No.18/2012 dated

B.Eshwarappa		C.W.52 examined)	(not		09/11/2012-Part of Ex.P.33 (page No.67)
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3(c). Investigating Officer- C.W.54 Sri C.B.Patil, Dy.S.P., searched the house of the accused bearing House No.1826/5, 'Malleshwara' LIC Colony, Beside Thimmareddy College, Davanagere along with panchas namely C.W.2/P.W.4, Manohara Prasad and C.W.3- Smt. K.V.Indira (not examined by the prosecution) and drawn the panchanama from 06.15 AM to till night 11.30 PM as per Ex.P.7.

3(d). Further, co-investigating officer Sri M.B.Patil C.W.50 that on 08/11/2012 searched the quarters of the accused situated at Quarters No.2, Near Court premises, Ranebennuru; wherein the accused resides at the time of raid in the presence of panchas C.W.5 (P.W.1) and C.W.6 (not examined) from 06.15 AM to 08.15 AM and drawn the mahazar as per Ex.P.1.

3(e). Further, co-investigating Officer C.W.51 K.Srinivas that on 08/11/2012 searched the land bearing Sy.No.12/P situated at Kurubarahalli in the name of wife of accused in the presence of panchas C.W.8 (P.W.10) and C.W.9 (not examined) from 07.30 AM to 02.00 PM and drawn the mahazar as per Ex.P.15.

3(f). Further, co-investigating Officer K.C. Purushottama C.W.52 that on 08/11/2012 conducted in the house of B. Eshwarappa, who is brother of accused situated at Bandre Village in the presence of panchas C.W.11 and C.W.12 (both

are not examined) from 06.30 AM to 10.00 AM and drawn the mahazar as per Ex.P.31.

3(g). Further, co-investigating Officer S.T.Odeyar C.W.53 on 08/11/2012 conducted search on the house of B. Channabasappa, brother of the accused situated at Bandre village in the presence of C.W.13 and C.W.14 (both are not examined) from 07.00 AM to 10.30 AM and drawn the mahazar as per Ex.P.32.

3(h).Further, Sri C.B. Patil C.W.54 that on 03/12/2012 has conducted search of the locker pertaining to accused situated at Canara Bank, K.B. Extension Branch, Davanagere in the presence of panchas C.W.2/P.W.4 and C.W.3 from 04.10 PM to 05.20 PM as per Ex.P.9.

3(i). During the aforesaid search, investigating Officers have found valuable, and documents and were collected and seized and subjected to property forms.

3(j). Investigating Officers during their investigation found that the accused was appointed as Range Forest Officer and worked at Ballari, Bhadravathi, Davanagere, Shivamogga, Dharwad and got promotions and at the time of registration of this case, he was working as Executive Officer, Taluka Panchayath, Ranebennuru from 01/06/1989 to 07/11/2012 (check period).

3(k).Investigating Officer fuhrer found that the accused during the check period received income of ₹70,30,810.65 (rounded off ₹70,30,811/-) from his known source. They

have further found that the accused was possessing assets worth of ₹76,87,968.68 (rounded off 76,87,969/-) and the expenses of the accused during the check period was ₹81,82,673/-. Further, they found that before the accused entered into service his income was ₹40,865.40. There is disproportionate assets of ₹88,54,055/- i.e., 125.15% excess of the income.

3(l). After completion of investigation formalities, C.W.55 (P.W.14) S.C.Manjappa, Dy.S.P., has alleged that the accused being the public servant is in possession or has at any time during the period of his office, been in possession for which the accused cannot satisfactorily accounted of pecuniary resources or property disproportionate to his known source of income and thereby the accused has committed criminal misconduct and thereby committed the offences punishable U/Sec.13(1)(e) read with Sec.13(2) of P.C. Act and hence, filed the charge sheet on 08/05/2015 against the accused after obtaining the previous sanction dated 06/02/2015 as per order No.ಅಪಜೀ 152 ಅಇವಿ 2014, ಬೆಂಗಳೂರು as provided U/Sec.19 of P.C. Act from P.W.12 as per Ex.P.17 and thereafter some correction to the said sanction order fresh order issued as per Ex.P.18 on 28/03/2015 from P.W.13.

4. After receipt of the charge sheet, the cognizance was taken for offence punishable U/Sec.13(1)(e) read with Sec.13(2) of P.C. Act and summons was issued to the accused.

5. After service of summons the accused appeared through his Counsel and he was enlarged on bail.

5(a). The charge sheet copy has been furnished to the accused as required under Sec.207 of the Code of Criminal Procedure.

6. After hearing the learned Counsel appearing for the accused and learned Spl.Public Prosecutor and perusing the records, the charge was framed for the offence punishable U/S.13(1)(e) R/W.Sec.13(2) of the P.C. Act by my Learned Predecessor in Office on 06/10/2016 and it was read over and explained to the accused in the language known to him. He has pleaded not guilty and claimed to be tried. Hence the matter was posted for evidence of prosecution.

7. At this stage, it is relevant to mention that during the course of arguments, learned Counsel for the accused has brought to the notice of this Court that there is error in the charge already framed and the prosecution has obtained corrected sanction subsequently and therefore, charge to be altered.

7(a). I have gone through the charge previously framed on 06/10/2016. As per the earlier charge, total assets mentioned as ₹56,83,791/-, total expenses shown as ₹23,00,000/- and total income shown as ₹35,00,000/-, accused was found in possession of dis-proportionate assets worth ₹43,83,791/-.

7(b). Thereafter, as the prosecution has obtained another sanctioned order i.e., after making correction in the

previous sanction order, and as brought to the notice of the Court by the learned defence Counsel, after consent of learned Spl. Public Prosecutor, and the learned Counsel for accused, again that on 08/07/2022, charge has been altered and read over to the accused and the accused pleaded not guilty.

7(c). As per the altered charge, during the check period, the accused was found in possession of total assets worth ₹76,87,968.68 (rounded off ₹76,87,969/-), total expenses of the accused was Rs.81,96,897/-, total income was ₹70,30,811/- and thereby, the accused was found in possession of dis-proportionate assets worth ₹88,54,055/-.

7(d). At this stage, it is relevant to mention that as per the list furnished by the Investigating Officer i.e., statement 'B','C' & 'D', there were slight difference in total amount.

7(e). As per table 'B' i.e., total assets of the accused found during the check period filed along with the charge sheet which contains items 2.1 to 2.41, total amount shown as ₹76,88,172/-. Now, after the correction made, total assets found during the check period i.e., as per table 'B' comes to ₹76,87,969/-, thereby there is difference of amount of ₹203/-.

7(f). As per table 'C' i.e., total income of the accused during the check period shown as ₹70,30,811/- (there is no difference).

7(g). As per table 'D' i.e., expenses of the accused during the check period shown as ₹81,82,673/-. Now after the

correction made, total expenses is ₹81,96,897/- (thereby, there is difference of amount of ₹14,225/- excess expenditure shown as per corrected sanction order).

8. In order to establish the guilt of the accused for the above said offences, the prosecution has examined 14 witnesses as against 57 witnesses shown in the charge sheet as P.Ws.1 to P.Ws.14 and got marked the documents at Exs.P.1 to P.190.

9. At this stage, it is relevant to mention that while going through the records for dictating the judgment, this Court noticed that the FIR not marked as an exhibit. Thereafter, that on 15/09/2023 after taking consent from the learned Spl. Public Prosecutor and the learned Counsel for the accused, FIR marked as an exhibit with consent as Ex.P.191.

10. At this stage, it is relevant to mention that the prosecution has not marked the material objects as M.Os. However, the properties seized during the raid subjected to Property Form, particulars of the properties mentioned in the said Property Form as per the list and the said lists are marked for convenience reference as **Annexures No.1 to 5**

Annexure No.1:-

Properties seized in the house of accused under the mahazar Ex.P.7 and subjected to P.F.No.14/2012, dated 08/11/2012.

Annexure No.2:-

Properties seized in the residential quarters of office of the accused under the mahazar Ex.P.1 and subjected to P.F.No.15/2012, dated 08/11/2012.

Annexure No.3:-

Properties seized in the Farm house of wife of accused under the mahazar Ex.P.15 and subjected to P.F.No.16/2012, dated 08/11/2012.

Annexure No.4:-

Properties seized in the house of brother of accused namely B. Channabasappa under the mahazar Ex.P.32 and subjected to P.F.No.17/2012, dated 08/11/2012.

Annexure No.5:-

Properties seized in the house of another brother namely B. Eshwarappa under the mahazar Ex.P.31 and subjected to P.F.No.18/2012, dated 09/11/2012.

11. After closing the evidence of prosecution, the accused was examined as provided U/Sec.313 of the Code of Criminal Procedure by explaining the incriminating circumstances against him, which were found in the evidence of prosecution witnesses and after understanding the same, the accused has denied the prosecution case in toto and stated that there is no disproportionate assets to known sources of income.

11(a). Further, accused has filed written submission to the Sec.313 Cr.P.C., statement wherein he has taken the defence that while he was working in Kalaghatagi as Range Forest Officer, he has taken stringent action against encroachers and land grabbers; he had saved lot of forest

land by earning the wrath of local politicians; the lobby of local politicians and land grabbers coupled with local tribes, who had suffered due to his stringent action got into unholy associations and were making unnecessary false allegations and one such complaint was relating to amassing wealth.

11(b). Further, the accused contended that the Superintendent of Police, Lokayuktha, Dharwad was pleased to conduct investigation relating to allegations and found him innocent of the charges and gave clean chit to him.

11(c). Further, the accused has stated that during the search of his house, his Annual Property Returns, IT Returns, loan papers etc., were found at home and same are included in Panchanamas drawn as Ex.P.7 and the income declared in the said document itself is ₹238 lakhs and the Lokayuktha Police have utterly failed to consider the said fact.

11(d). It is further stated by the accused that he is the third son to his parents; that the entire agricultural income was given to him prior to 1986; later he was getting income from his share of land and he has income in excess of Assets and Expenditure. The Investigating Officer has erred in reckoning the assets, expenditure and income of him and his family members.

11(e). Further, the accused has contended that the Investigating Officer has not considered the income derived from agricultural property, and income derived

from business of his wife and further, the loans borrowed by the accused are also not considered while assessing the income of the accused.

11(f). Further, he has stated that income and expenditure and list of assets shown by the complainant are not in accordance with realistic facts and was imaginary and highly excessive and their valuation is most unreasonable and is not based on any sound principles of law.

11(g). Further he has stated that the sanction order is bad and stems from non application of mind; the 10% margin has to be given on the known source of income reckoned; the Investigating Officer has not given him an opportunity to offer an explanation on the incriminating materials found against him; thus, Investigating Officer has failed to give an opportunity to satisfactorily explain the circumstances appearing against him.

11(h). Further, he has stated that due to foisting of false case against him the entire family suffered emotionally, mentally and financially.

11(i). Further, the accused stated that the complainant/IO wrongly calculated the number of items in his name, though they are acquired through inheritance and gift at the time of his marriage and other occasions and functions of his family members.

11(j). The prosecution has filed false case against him and he has stated that he will produce the evidence on his behalf.

12. This Court having heard the submission of both sides, perused oral and documentary evidence and convinced that this is not the fit case to acquit the accused U/Sec.232 of Cr.P.C., and hence posted the case for defence evidence.

13. Thereafter, the accused was called upon to produce his evidence and accordingly, the accused filed witness list and list of documents on his behalf.

14. Accused himself examined as D.W.15 and examined 14 witnesses as D.W.1 to D.W.14 and got marked the documents at Ex.D.1 to Ex.D.64 in support of his defence.

15. I have heard arguments of learned Spl. Public Prosecutor Sri Panchappa Y.Hadimani and further arguments from Smt. C.P.Anita, newly appointed as Spl. Public Prosecutor for Lokayuktha and learned Counsel for accused Sri Shankar .P.Hegde and he has also filed written arguments.

16. Learned defence Counsel has relied upon the following judgments in support of his arguments:-

- 1) 1977 CrI.L.J 566: AIR 1977 SCC 796 in between Krishnanda Agnihotri Vs. State of M.P.
- 2) AIR 1974 SCC 171 in between Jayadaya Poddar and another Vs. Bibi Hazra and others.
- 3) AIR 1996 SC 1762 in between V.D. Jhingan Vs. State of Uttar Pradesh.

- 4) Crl.R.C.No's 734 and 735 of 2015 of Madras High Court in between State of Madras Vs. Tmt. Jeeva Velu.
- 5) (1992) 4 SCC 45 in between M. Krishna Reddy Vs. State Deputy Superintendent of Police, Hyderabad.
- 6) (1992) 4 SCC 39 in between P. Satyanarayana Murthy Vs. State of Andhara Pradesh.
- 7) 2017(3) AIR (Jhar) R 825 in between Vasant Rao Guhe Vs. State of Madhya Pradesh.
- 8) 2011 Crl.L.J. 2860 in between O.T. Bhutia Vs. State of Sikkim.
- 9) AIR 2007 (SC)1860 in between State Inspector of Police, Visakhapatnam Vs. Surya Sankaram Karri.
- 10) 2000 CRTL.LJ.1178 in btween Subhas Kharate Vs. State of Madhya Pradesh.
- 11) AIR (KARR) 2017 3 690 in between Siddappa M. Poojari Vs. State of Karnataka.
- 12) 2010 2 AIR (Kar)(R) 413 in between Babappa Vs. State by Lokayuktha Police, Gulbarga.
- 13) (2001) 10 SCC 103 in between M. Abbas Vs. State of Kerala.

- 14) (1992) 4 SCC 45 in between M. Krishna Reddy Vs. State Deputy Superintendent of Police, Hyderabad.
- 15) (2020) 19 SCC 816 in between Smt. P.Lelavathi (D) by LRs Vs. Shankaranarayana Rao.
- 16) Civil Appeal No.4805/2019 dated 09/05/2019 in between Mangathai Ammal Vs. Rajeshwari.
- 17) 2011 AIR SCW 1505 in between Sripada Gouda Vs. State by Karnataka Lokayuktha Police Station, Dharwad.
- 18) 2013 SCC Online Kar 6036 in between B.T.Nagappa Vs. State.
- 19) 2013 SCC Onlilne Gau 239 in between Atul Ch. Kalita Vs. State of Assam.
- 20) Criminal Appeal No.2613/2010 dated 11/11/2020 by the Hon'ble High Court of Karnataka in between the State Vs. G. Siddalingappa.
- 21) 2021 (4) KLJ 78 in between K.S. Shibu Vs. State of Kerala.
- 22) Crl. Appeal No.2735/2006 dated 17/04/2012 by Hon'ble High Court of Karnataka in between S. Thimmaraja Vs. State.

- 23) AIR 1988 SC 88 in between State of Maharashtra Vs. Pollonji Darabshaw Daruwalla.
- 24) 2012(4) KHC 64 in between Natesan T.G. Vs. Superintendent of Police, Vigilance and Anti Corruption Bureau.
- 25) (2006) 1 SCC 420 in between DSP Chennai Vs. K. Inbasakaran.
- 26) 2006 SCC Online Ker 109 in between Dr. P.J. Alexander Vs. Central Bureau of Investigation.
- 27) 2011 AIR SCW 1505 in between Sripad Gouda Vs. State by Karnataka Lokayuktha Police Station, Dharwad.
- 28) 2012 SCC Online AP 312: (2013) 1 ALD (Cri)209 in between Korra Govardhan Vs. State of A.P.
- 29) (1997) 99 BOMLR 176 in between Prakash Vishwarsrao Kohok Vs. State of Maharashtra.
- 30) 2013 SCC Online Sikk 42 in between Dhan Subba Vs. State of Sikkim.
- 31) 2013 SCC Online Gau 303: (2014) 134 AIC 720: 2014 Crl.L.J. 238 in between Pozir Uddin Ahmed Vs. Union of India.
- 32) 2011 0 AIR (SC) 1363 in between Ashok Tshering Bhutia Vs. State of Sikkim.

33) Criminal Revision Case Nos. 411 and 412 of 2005 dated 13/12/2007 in between R.Kannappan and others. Vs. State.

34) 2007 MLJ (Crl.) 86 in between Malliga Selvaraja Vs. State.

35) 2013(3) MLJ (Crl.)649 in between A.P.Pillai and another Vs. High Court of Judicature at Madras.

36) 2006 SCC Online Mad 1596: (2006) 2 LW (Crl.) 758 in between State Vs. K. Ponmudi.

37) (2013) 5 SCC 722 in between Raj Kumar Singh Vs. State of Rajasthan.

38) 2007 SCC Online Del 1524 in between Ranjan Dwivedi & Anr. Vs. CBI.

39) (2008) 8 SCC 395 in between Latu Mahto Vs. State of Bihar.

40) (2020) 8 SCC 811 in between Parminder Kaur Vs. State of Punjab.

41) 2016 4 KCCR 3453 in between State of Lokayuktha Police, Mysuru Vs. Gurumallappa.

42) (2011) 2 SCC 385 in between Alamelu Vs. State represented by Inspector of Police.

43) (2003) 8 SCC 745 in between Narbada Devi Gupta Vs. Birendra Kumar Jaiswal.

- 44) (2015) 1 ALT 125 in between Gopalakrishna Surapaneni Vs. Anuradha Surapaneni Maiden.
- 45) Letters Patent Appeal No.473 of 1996 dated 04/08/2017 in between Legal Heirs of Deed Umedmiya R. Rathod Vs. State of Gujarat.
- 46) Civil Appeal No. 5991 of 2002, 2009 (9) SCC 709 in between Ramesh Chandra Agarwal Vs. REgency Hosptial Ltd., and others.
- 47) Criminal Appeal Nos. 1911-1194 of 2005, 2009(9) SCC 221 in between Malay Kumar Ganguly Vs. Dr. Sukumar Mukherjee and others.
- 48) (2010)5 SCC 401 in between K. Kaladevi Vs. V.R. Somasundaram and others.
- 49) 62 (1996) DLT 202 in between Gunjit Singh Vs. State.
- 50) 2014 CrI.L.J. 238 in between Pozhir Uddin Ahmed Vs. Union of India.
- 51) 2008(3) ILR (Raj) 766 in between Ashok Kumar Thakur Vs. State of Rajasthan.
- 52) 2021 SCC Online SC 969 in between V.Anantha Raju Vs. T.M. Narsimhan.
- 53) AIR 2013 (SC) 3817 in between Sujit Biswas Vs. State of Assam.

54) 1973 AIR (SC) 2773 in between Kali Ram Vs. State of Himachal Pradesh.

55) 1984 AIR (SC) 1622 in between Sharad Birdhichand Sarad Vs. State of Maharashtra.

56) 1963 AIR (SC) 200 in between M.G.Agarwal Vs. State of Maharashtra.

57) (2010)9 SCC 189 in between Babu Vs. State of Kerala.

58) 1953 AIR (SC) 468 in between Hate Singh Bhagat Sing Vs. State of Madhya Pradesh.

59) (2007) 291 ITR 36 Delhi in between Commissioner of Income Tax Vs. Shri Kulwant Rai.

60) 2012 SCC Online ITAT 14265: (2012) ITAT 13096 in between Vikram Deokisan Sarad Vs. The ACIT.

61) 2019 SCC Onlilne ITAT 22556 in between Neeta Breja Vs. Department of Income Tax.

62) 2018 SCC Online ITAT 22904 in between Sampathraj Rakesh Kumar Vs. Income Tax Officer, Ward 5(2)(2), Bengaluru.

63) ITA No.215/LKW/2016 dated 30/11/2018 in between DCIT Vs. Smt. Veena Awasthi.

64) ITA No.2451/Chny/2018 dated 22/01/2019, ITAT Chennai in between Smt. Annakkalanjiam Mathivanan Vs. the Assistant Commissioner of Income Tax, Chennai.

65) ITA No.1385/Del/2017 dated 10/11/2017
in between ITO New Delhi Vs. Sh.Manish
Kumar, Delhi.

17. I have carefully scrutinized the oral and documentary evidence placed on record by both the parties and also gone through the authorities relied by the learned Counsel for the accused in support of his arguments.

18. From the above facts, the following points do arise for my consideration:-

1. Whether the sanction under Section 19 of P.C.Act produced in Ex.P.17 and correctional Sanction Order in Ex.P.18 are valid sanctions to prosecute the accused?
2. Whether the prosecution proves beyond reasonable doubt that during the course of raid and search conducted on the premises of the accused who being public servant found the total value of the assets ₹88,54,055-00 including expenditure during the course of service from the date 01/06/1989 to 07/11/2012 was in excess of the known source of his income?
3. If so, what extent?
4. What order?

19. Court findings on the above points are as under:-

Point No.1: In the affirmative;

Point No.2: Partly in affirmative, as per court calculation disproportionate assets found only ₹1,08,751/-.

Point No.3: 0.75% of the total assets.

Point No.4: As per final order,
for the following:-

REASONS

POINT NO.1:-

20. The accused is the public servant as defined U/Sec.2(c) of the P.C. Act is not in dispute.

21. As the accused is the public servant, in order to initiate the proceedings against the accused, the sanction as provided U/Sec.19 of the P.C. Act is necessary.

22. In this case, the prosecution has contended that it has obtained the sanction to initiate the criminal proceedings against the accused. It is brought to the notice of the Court that in the Sanction once obtained by the prosecution as there was mistake, the prosecution has once again got corrected sanction.

23. Insofar as the sanction is concerned, the prosecution has examined P.W.12. P.W.2 is the under Secretary of the Government of Karnataka. He has deposed that since 2012 to 2015, he worked as Under Secretary and thereafter Deputy Secretary in the Department of Forest, Ecology and Environment Department. He has further deposed that as per the request of S.P., Lokayuktha for giving sanction to prosecute the accused, he after obtaining the order of Governor, has issued sanction order as per Ex.P.17.

24. I have gone through Ex.P.17. Ex.P.17 is dated 06/02/2015 wherein permission has been granted to prosecute the accused.

25. The accused has not seriously questioned the Sanction Order, however, in the cross-examination of P.W.12, it is suggested to P.W.12 that without proper scrutiny of the

papers submitted by the prosecution, sanction order has been made mechanically.

26. As the prosecution has contended that in the previous order, there was correction, again fresh sanction order obtained and in that regard, the prosecution has examined P.W.13 by name Rajendra Kumar. He deposed that since 21/12/2015, he has been working in Forest Department as Under Secretary and as there was mistake in the sanction order issued earlier dated 06/02/2015, another fresh sanction order after correcting the mistake issued on 28/03/2015 as per Ex.P.18.

27. I have gone through Ex.P.18, it is dated 28/03/2015, wherein it is stated that after making correction in the previous sanction order, a fresh sanction order has been issued.

28. P.W.13 was cross-examined by the learned Defence Counsel and in the cross-examination, it is suggested that without proper scrutinizing the papers, mechanically, the sanction order has been issued, though, there was no disproportionate assets made by the accused.

29. On going through the evidence of P.W.12 & P.W.13 and on going through the documents Ex.P.17 & Ex.P.18, though P.W.12 and P.W.13 cross-examined by the learned Counsel for the accused with regard to obtaining the sanction, it appears that the accused has not seriously disputed about the sanction and therefore on going through the evidence of P.W.12 & P.W.13 and the documents Ex.P.17 & Ex.P.18, this Court is of the opinion that the sanction obtained by the prosecution appears to be proper and correct. Even, during the course of arguments, the learned Counsel for the accused has not seriously argued about the correctness

of the Sanction obtained by the Lokayuktha Police to initiate the proceedings against the accused. Therefore, point No.1 is answered in the affirmative.

POINTS NO.2 & 3:-

30. As per the prosecution version, the accused has acquired assets more than that of his known source of income.

31. In the charge sheet, as per the investigation, the IO has made 4 parts of his investigation which is described as under:-

Table 'A'- Income of the accused prior to joining the service- ₹40,685-40.

Table 'B'- Assets found during the check period -₹76,87,969/- instead of ₹76,88,172-28.

Table 'C'- Income of the accused during check period- ₹70,30,811/-.

Table 'D'-Expenditure made by the accused during the check period-₹81,96,897/- instead of ₹81,82,672-43.

32. The prosecution contended that the accused had joined the service on 01/06/1989 and till raid i.e., on 07/11/2012, excess assets found i.e., 125.15%, thereby, the prosecution contended that the accused has acquired the assets which is more than his known source of income and hence, the accused has committed the offence punishable U/S.13(1)(e) read with Sec.13(2) of the P.C.Act.

33. In this case, the prosecution to establish the guilt of the accused has relied upon the evidence of P.W.1 to P.W.14 and also relied upon the documents Ex.P.1 to P.191.

34. The defence of the accused is that the income and expenditure and list of assets shown by the prosecution/complainant are not in accordance with realistic facts and was imaginary and highly excessive and therefore, the valuation is most unreasonable and is not based on the sound principles of law.

35. Further, it is the defence of the accused that the complainant has not taken the income under the various heads i.e., agriculture, income derived from the wife of the accused from her business, and loans obtained by the accused.

36. Further, the accused contended that there is oblique motive by the investigating officers to file a false case against him, though there are no assets acquired by the accused which is dis-proportionate to his and his family members income and further he has shown all the assets acquired by him in his APRs and therefore, the accused contended that he has not acquired any assets as contended by the Lokayuktha Police which is dis-proportionate to his known source of income.

37. After hearing the arguments of both sides, now it is necessary to scrutinize the evidence of prosecution and the calculation made by the Lokayuktha Police to come to the conclusion that the accused has made assets disproportionate to his known source of income.

38. To prove the guilt of the accused U/Sec.13(1)(e) read with Sec.13(2) of the P.C. Act, the prosecution has required to establish that the accused or any persons on his behalf was in possession or has at any time during the period of his office, been in possession of assets for which he cannot

satisfactorily account or pecuniary resources or property dis-proportionate to his known source of income.

39. Known source of income of the public servant means- 'returns he gets of his service will be primary item of his income. Other income which can conceivably to be income of the public servant would be what is his salary'.

40. Known source of income of the Government servant means- 'income known to prosecution and not the income which is exclusively within the knowledge of the accused'. Therefore, the burden of proof to show that the assets or wealth held by the Government servant is dis-proportionate to known source of income is on the prosecution.

41. If such burden is discharged by the prosecution, then the onus shifts on the accused to satisfactorily account for such dis-proportionate assets. Therefore, the initial burden is on the prosecution to prove that the accused is in possession of assets dis-proportionate to his known source of income and if such fact is proved then, the onus shifts on the accused to satisfactorily account for such surplus assets.

42. The prosecution in this case has described the assets held by the accused before he entering into service i.e., in the form of table 'A' and amount shown at ₹40,685.40. However, the accused contended that the IO has shown very less income of the accused, but as per the accused, his income prior to joining the service was ₹2,53,087/-.

43. Further, the IO has described the assets of the accused and his family members which was in their possession for the check period from 01/06/1989 to 07/11/2012 mentioned in table 'B' stating that the accused found in possession of assets amounting to ₹76,87,969/- (earlier it was mentioned

as ₹76,88,172/-) during the check period, whereas the accused contended that the IO has not correctly described the assets found in possession of the accused along with his family members and as per the accused, he was having the assets during the check period amounting to ₹32,96,221/- only; thereby the IO has shown the excess assets in the table 'B' amounting to ₹43,92,248/-. Therefore, the accused disputes the correctness of the assets shown by the IO stating that the prosecution has shown excessive assets.

44. The accused contended that in the table 'B'- assets shown by the IO, all the items not exclusively belonged to him and his family members, IO has calculated the assets belonging to his brothers and thereby including all those assets calculated total assets of ₹76,87,969/-, but as per his calculation it amounts only ₹32,96,221/-.

45. The IO has shown the expenditure of the accused and his family members during the check period in the form of table 'D' and in the table 'D', the IO has calculated the total expenditure of the accused and his family members amounting to ₹81,96,897/- (in the table 'D' filed along with the charge sheet, it is mentioned as ₹81,82,672.43 instead of mentioning ₹81,96,897/- i.e., correctional sanction order obtained) whereas the accused contended that the IO has shown the excess expenditure pertaining to him and his family and as per his calculation, he incurred the total expenditure during the check period amounting to ₹51,96,612/- only. Therefore, the accused contended that IO has calculated the excess expenditure in a sum of ₹30,00,285/- (in the written arguments of the accused, as per the statement -'D', difference amount shown as ₹27,28,961/-).

46. The IO has shown the income of the accused during the check period amounting to ₹70,30,811/- as per the table 'C'; whereas, the accused contended that his and his family members total income during the check period was ₹2,35,12,389/-. Therefore, the accused contended that the IO has shown the total income of the accused and his family members is less by ₹1,56,56,509/- and the IO has only shown a very less income of ₹70,30,811/- instead of ₹2,35,12,389/- Therefore, the accused disputes the correctness of the calculation made by the IO while filing the charge sheet.

47. Now we will take up these items (Table A to D) one by one for discussion with regard to the correctness of the figure calculated by the IO.

48. Firstly, in respect of **TABLE 'A'**

Table 'A' shows the abstract/list of properties in the name of Delinquent Official S. Ujjanappa and his family members prior to check period (before joining the service i.e., 01/06/1989) as shown in the charge sheet is reproduced for convenience reference:-

Sl. No.	Particulars of Properties	Value (in Rupees) ₹
1	The total salary obtained by DGO, as he was worked as Lecturer/Principal prior to entering into Government Service in Gurusiddarameshwara Vidya Samsthe (Reg.), Mallappanahalli Village i.e., from 01/06/1986 to 31/05/1989	40,685-40
	Total	40,685-40

48(a). As per the prosecution, the accused before joining the service had asset i.e., cash of ₹40,685.40. As against this, the accused contended that the IO has wrongly shown the amount of ₹40,685.40; but according to him, he had cash of ₹2,53,087/- in his hand at the time of joining the service.

The Investigating Officer has calculated the income of the accused prior to his joining the service i.e., shown in table 'A' at ₹40,685.40 mentioning that the accused was lecturer in Sri Guru Siddarameshwara Vidya Samsthe and earned salary of ₹40,685.40.

Accused has admitted that he was lecturer in the said college, but he contended that, he received total salary of ₹58,122/- and thereby there is difference of amount of ₹17,437/-.

Insofar as his contention that he received total salary of ₹58,122/-, the learned Counsel for the accused has drawn the attention of this Court of Ex.P.48 i.e., salary certificate collected by Lokayuktha Police.

I have gone through Ex.P.48. Ex.P.48 is a letter written by Dy.S.P., Karnataka Lokayuktha to the Secretary, Sri Guru Siddarameshwara Vidya Samsthe, Mallappanahalli to furnish information of the salary drawn by the accused. As per the reply given by Secretary, salary drawn by the accused shown as ₹58,122/- i.e., net salary and his gross salary was ₹61,122/-.

Investigating Officer has furnished the calculation with regard to the salary received by the accused of ₹40,685.40. Investigating Officer has contended that net salary received by the accused was ₹58,122/-. Out of

₹58,122/-, it is mentioned that one third ($1/3^{\text{rd}}$) of the net salary received by the accused to be deducted as expenses i.e., towards his maintenance and on calculation, it comes to ₹40,685.40

The accused contended that the IO has to consider his salary at ₹58,122/-, and he cannot deduct $1/3^{\text{rd}}$ towards his expenses. The contention of the accused that his salary earned from Guru Siddarameshwara Vidya Samsthe prior to joining the service was ₹58,122/- cannot be considered, because as rightly calculated by the Investigating Officer, $1/3^{\text{rd}}$ of ₹58,122/- has to be deducted. Therefore, this Court has come to the conclusion that the salary of the accused earned from Guru Siddarameshwara Vidya Samsthe prior to joining the service is ₹40,685.40/-.

The IO has considered the income of the accused prior to joining the service i.e., earned from salary only. It is the arguments of the learned Counsel for the accused the IO has not considered the other income of the accused apart from the salary i.e., from agricultural income & cash received in the partition among the family members.

Accused contended that he has received cash during the partition of ₹30,000/-. In order to prove that he has received ₹30,000/- cash during the partition, he has relied upon Ex.D.52 as well Ex.P.37 page No.1060. I have gone through the document Ex.D.52. Ex.D.52 is an affidavit dated 18/01/2014 of the accused sworn before the notary.

I have gone through the Ex.D.52 and also Ex.P.37 at page No.1060. On careful reading of the document i.e., affidavit of the accused, there is no specific averment in the said affidavit stating that accused has received ₹30,000/- cash during the partition. It is also pertinent to

note that affidavit is the self-serving affidavit of the accused.

Accused has produced the affidavit of Sri B. Channabasappa, who was brother of the accused which is marked as Ex.D.53. I have gone through Ex.D.53. In the Ex.D.53 at para No.4, said Channabasappa has stated that ₹30,000/- was given to Ujjanappa- the accused herein as cash in the partition. The accused has not examined the said B.Channabasappa, because it is stated that the said Channabasappa was dead.

Further, the accused has also filed the affidavit of his another brother by name B. Eshwarappa and the said affidavit is marked as Ex.D.54. I have gone through Ex.D.54. In the Ex.D54, in para No.4, the said Eshwarappa has stated that in the partition, cash of ₹30,000/- was given to the accused herein. Said Eshwarappa not examined by the accused stating that he has been suffering from paralysis and therefore, he was not secured before the Court for giving evidence.

However, as there is no specific averment in the document Ex.D.52 regarding receipt of ₹30,000/- by the accused in the partition and further, the accused while joining the service has not declared that he was having said cash of ₹30,000/- and therefore, this Court is of the opinion that the contention of the accused that he had cash of ₹30,000/- apart from the salary cannot be accepted as true.

Further, the accused contended that the IO has not considered his agricultural income of ₹1,64,965/- i.e., he had before joining the service. In this regard, accused relied upon Ex.D.7. I have gone through Ex.D.7. Ex.D.7 is a

certificate issued by Agricultural Consultant, wherein he has calculated the agricultural income of the accused for the years 1986-87 to 1989-90 in respect of two agricultural properties i.e., bearing Sy.No.79/1 and 79/3 (old No.79/P2) situated at Bandre Village, Tarikere Taluk, Chikkamagaluru District and another property bearing Sy.No.32/1 situated at Gadihalli Village, Tarikere Taluk, Chikkamagaluru District. In the said document Ex.D.7, net income shown as ₹1,64,964.79 and accused contended that this is his agricultural income prior to his joining the service.

Insofar as Ex.D.7 is concerned, the accused has examined D.W.1, who is Author of Ex.D.7. D.W.1 was cross-examined by the learned Spl. Public Prosecutor and in the cross-examination, D.W.1 has admitted that for better appreciation, his evidence is extracted as under:-

"ನಾನು ನನ್ನ ವರದಿಯಲ್ಲಿ ಆರೋಪಿ ಜಮೀನಿನ ಪಹಣಿ
ಪತ್ರಿಕೆಯ ಪ್ರಕಾರ ಬೆಳೆಗಳ ಬಗ್ಗೆ ಮಾಹಿತಿ ಇಲ್ಲ ಅಂತಾ
ಬರೆದಿದ್ದು ಇರುತ್ತದೆ".

It is the argument of the learned Spl.PP that Ex.D.7 is a created document. In the pahanis enclosed along with Ex.P.37, it is mentioned as khuski (ಖುಸ್ಕಿ)- dry land and no income were derived from the said land.

Further, it is suggested to D.W.1 that in order to help the accused, false report as per Ex.D.7 given which is denied by D.W.1. On perusal of the said RTC extract produced along with Ex.P.37, the nature of the lands shown as Khuski land and it is mentioned that no crops.

Accused himself examined as D.W.15 and deposed that he had agricultural income before he joining the service. It is the argument of the learned Spl. P.P., that

though the accused contended that he had cash derived from agricultural income, while he joined the service, he has not declared his agricultural income.

In that regard, in the cross-examination, D.W.15 (accused) admitted that he has not filed income tax returns for the period from 1990 to 2000. Further, D.W.15 has admitted that on 13/05/2014, Lokayuktha Police issued notice to him. Further, it is suggested to the accused that the present document i.e., Ex.D.7 was created for the purpose of this case, which is denied by D.W.15.

Though, D.W.15 has denied the said suggestion, however on going through the document Ex.D.7, it creates doubt in the mind of the Court about genuineness of the document and that there are chances of creating this document after he received the notice to produce the documents. Therefore, the contention of the accused that he had agricultural income of ₹1,64,965/- cannot be taken into consideration.

However, at this stage, it is relevant to mention that on going through Ex.P.37 i.e., the letter addressed to the Chief Forest Conservator by the Deputy Superintendent Of Police, Karnataka Lokayuktha calling for information about the APRs filed by the accused from the date of joining the service till the date of 07/11/2012. To the said letter, The Chief Forest Conservator wrote letter to Dy.S.P., Karnataka Lokayuktha and produced the APRs filed by the accused for the year 1991 to 2012. I have gone through the same.

In the APRs i.e., ending on 31/03/1991, the accused has mentioned that he has agricultural property of 5 acres 25 guntas and annual income from the said property was ₹30,000/-. At this stage, it is relevant to mention that the

accused joined the service on 01/06/1989. He has furnished the APR for the year ending on 31/03/1991. Therefore, his agricultural income may be considered as ₹30,000/- as he has landed properties as the said landed properties were the dry lands at that time.

Therefore, the income of the accused before joining the service as per the table 'A' may be considered as under:-

Income from salary (Gurusiddarameshwara Vidya Samste	- ₹40,685.40
Agricultural income-	- <u>₹30,000-00</u>
Total	- ₹70,685.40 (rounded off ₹70,685-00)

The prosecution has contended that income of the accused prior to joining the service was ₹40,685/-. On the contrary, accused contended that his income prior to joining the service was ₹2,53,087/-. However, as per the discussion and calculation made by this Court, this Court has come to the conclusion that the income of the accused before joining the service is ₹70,685/-. Hence, the income of the accused as mentioned in **table 'A' to be considered as ₹70,685/-** as per the Court calculation instead of ₹40,685/-.

49. Secondly, we will come to **TABLE 'B'**

Statement 'B' showing the abstract/list of properties in the name of DGO- Accused and his family members at the end of check period as shown in the charge sheet is reproduced for convenience reference:-

Sl. No.	Particulars of Properties	Value (in Rupees) ₹
1)	Immovable Properties	
2.1	Valuation of construction of house bearing No.1826/5, measuring 40X60 feet, situated at LIC Colony, Davanagere consisting of ground floor, 1 st floor, 2 nd floor (one room) and one site (Construction value ₹24,06,654/- + site value Rs.78,000/- =Rs.24,84,654/-)	24,84,654-00
2.2	Two vacant sites bearing No.1826/3 & 1824 measuring 40X60 feet situated at LIC Colony, Davanagere.	2,88,000-00
2.3	The landed properties bearing Sy.No.12P measuring 4.10 acre, 3.13 acre & 3.37 acre totally measuring 11.20 acres situated at Kurubarahalli village, Harihara Taluk.	4,89,500-00
2.4	Constructed tiled house in the landed properties situated at Kurubarahalli village	2,92,000-00
2.5	The RCC house built in the landed properties situated at Kurubarahalli village which is under construction stage	2,20,600-00
2.6	The site purchased by the DGO on 25/11/2002 from BDA, Bengaluru situated at 6 th block, Banashankari 6 th stage, Bengaluru measuring 15X24 meters bearing No.3.	5,72,400-00
2.7	The site purchased by the DGO bearing No.27, block No.61 measuring 9X12 meter situated at Sadunavar Layout, Dharwad.	1,10,000-00
2)	<u>Movable properties:-</u> i) Bank Accounts:-	
2.8	Canara Bank, Vidhya Nagara Branch, Davanagere S.B. Account	5,288-60

	No.1813101008271 in the name of DGO	
2.9	Canara Bank, Vidhya Nagara Branch, Davanagere, S.B. Account No.13583 in the name of S.M. Prema, wife of DGO.	6,310-00
2.10	Canara Bank, Vidhya Nagara Brnach, Davanagere S.B. Account No.1813101013741 in the name of daughter of DGO namely Kumari Vidhya	59,527-00
2.11	Canara Bank, Vidhya Nagara Branch, Davanagere, S.B. Account No. 1813101013272 in the name of M.S. Prema, wife of DGO	3,801-00
2.12	Karnataka Bank Limited, KUD Circle Branch, Dharwad S.B. Account No.1922500100223101 in the name of DGO	1,648-50
2.13	Karnataka Bank Limited, KUD Circle Bdranch, Dharwad, S.B. Account No.1922500100247701 in the name of wife of DGO- Smt. M.S.Prema	5,336-75
2.14	HDFC Bank, Mandipet Branch, Davanagere, S.B. Account No.04031700003829 in the name of wife of DGO	52,941-87
2.15	HDFC Bank, Mandipet, Davanagere S.B. Account No.040319300001813 in the name of daughter of DGO- Rekha B.U.	12,016-64
2.16	HDFC Bank, Mandipet, Davanagere S.G. Account No.0411610004608 in the name of daughter of DGO- Rekha B.U.	2,344-96
2.17	Karnataka Bank Limited, K.B. Extension Branch, Davanagere, S.B. Account no.1902500101258401 in the name of wife of DGO- Prema M.S.	1,27,411-00

2.18	Union Bank of India, PSI Branch, Bengaluru, S.B. Account No.55430202010000970 in the name of daughter of Rekha B.U.	3,078-90
2.19	The balance amount of the Monthly Installment Plan bearing A/c.No.22452900375 in Sahara India Parivara, Davanagere Branch in the name of wife of DGO-M.S.Prema	19,000-00
2.20	The monthly installment Plan account in Sahara India Pariwar, Davanagere Branch by wife of DGO-Smt.M.S.Prema.	19,000-00
ii)	Fixed Deposits:-	
2.21	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500201062301 in the name of DGO	13,853-00
2.22	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500201077301 in the name of DGO	4,000-00
2.23	Karnataka Bank Limited, KUD Circle Branch, Dharwad Fixed Deposit A/c.No.1921500201320001 in the name of DGO	48,536-00
2.24	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500200657301 in the name of wife of DGO- Smt. M.S. Prema	8,758-00
2.25	Union Bank of India, Davanagere, Reinvestment Account No.4174030300082276 in the name of daughter of DGO- Rekha B.U.	50,000-00
	iii) Lockers:-	-
	iv) Postal Accounts	-
	v) Stocks, Shares, Bonds and etc.,	

2.26	Lotus Ink, Hytech Software Park receipt No.10221 (1000 Shares) in the name of M.S. Prema, wife of DGO	10,000-00
2.27	The total share value of HDFC Securities, Davanagere, Share Trading A/c.No.925081 in the name of Smt. Prema	2,19,266-41
2.28	The total share value of HDFC Securities, Davanagere, Share Trading A/c.No.1498207 in the name of daughter of DGO- Rekha B.U.	1,12,669-10
	vi) Vehicles:-	
2.29	Maruthi Suzuki Swift Car bearing Reg. No.KA-17/M-8865 in the name of M.S. Prema, wife of DGO	5,79,432-00
2.30	TVS Vigo two- wheeler vehicle bearing Reg.No.KA-17/EC-7795	43,680-00
2.31	vii) The net cash seized at the time of raid	13,366-00
	viii) The seized gold and silver articles:- (111.73 grams of gold ornaments and 551.31 grams of silver articles)	1,84,648-00
2.33	Loan Account bearing No.1590842000169 for pledging gold ornaments at Canara Bank, K.B. Extension, Davanagere i.e., joint account in the name of DGO and his wife	3,79,400-00
2.34	ix) The total value of house hold articles at the time of raid of the house	11,33,706-55
2.35	The total value of house hold articles at the time of raid of the residential Government Quarters at Harihara.	41,407-00
2.36	The total value of articles found at the time of raid in Farm House and	28,419-00

	landed properties situated at Kurubarahalli village in the name of wife of DGO	
	x) Others:-	
2.37	Deposit of land line bearing No.263355	1,000-00
2.38	Deposit of Domestic Gas bearing No.22411	1,400-00
2.39	Deposit of water tap connection to the house No.1826/5, LIC Colony, Davanagere	2,055-00
2.40	The total value of deposit, Scale security Deposit and EC of AEH-23163	32,614-00
2.41	The total deposit amount of power plant KHIP No.2963 and 2964 pertaining to Bore-well to the landed properties situated at Kurubarahalli village	5,400-00
	Total ₹	76,87,969/-

As per the corrected sanction order total assets in this Table-B is ₹76,87,969/-.

50. In table 'B' properties, total 41 items mentioned described as 2.1 to 2.41 as listed above. In these 41 items, accused has admitted some of the assets/items referred in the table acquired by him during the check period by utilizing his money which are mentioned as and when discussed in the relevant paragraphs hereafter.

51. Accused has disputed the remaining items/assets about the acquisition of it including its value.

Therefore, the prosecution is required to prove that all these properties have been acquired by the accused during the check period including its value.

52. Now, this Court has to analyze the evidence placed by both sides in order to determine whether the prosecution has proved that the accused acquired the assets disproportionate to his known sources of income and in the contrary, whether the accused has satisfactorily given account for such dis-proportionate assets.

53. Now we will take up the assets which are disputed by the accused in the above table 'B' one by one for discussion.

54. Item No.2.1:- Valuation of construction of house bearing No.1826/5, measuring 40X60 feet, situated at LIC Colony, Davanagere consisting of ground floor, 1st floor & 2nd floor (one room) (including site value of ₹78,000/-) is ₹ 24,84,654-00

55. As per the prosecution, the IO has valued this property including site at ₹24,84,654/-. The accused disputes the valuation of this property as ₹24,84,654/- and the accused has shown that the value of this property is only ₹14,78,000/-; but the IO has shown the excess amount of ₹10,06,654/- and therefore, the accused contended that the said ₹10,06,654/- shall be deducted from the said amount of ₹24,84,654/- as shown by the IO.

56. Insofar as this item is concerned, the prosecution has examined P.W.2. P.W.2 is the retired Executive Engineer, he deposed that he was working working as Assistant Executive Engineer in Davanagere in between 15/12/2012 to 31/10/2016. He further deposes that Lokayuktha Police requested him to assess the valuation of the building of the accused i.e., house bearing No.1826/5, measuring 40X60 feet, situated at LIC Colony, Davanagere and

accordingly, he assessed the value of the house and given report as per Ex.P.5.

57. I have gone through Ex.P.5. As per Ex.P.5, P.W.2 has assessed the value of the house at Rs.24,06,654/-. This report of the Executive Engineer is accompanied with the document i.e., ground floor plan, 1st floor plan and 2nd floor plan and also the calculation memo regarding how he (Executive Engineer) has come to the conclusion of the value of the building.

58. Accused has not disputed that this house is in his name. He only disputes the valuation. According to him, the value of the construction is ₹14,28,000/- only.

59. Learned Counsel for the accused argued that the Executive Engineer has wrongly assessed the valuation of the building in excess of ₹10,06,654/-. In the cross-examination of P.W.2, P.W.2 has answered the suggestion made to him that the said building would have constructed for ₹14,00,000/-. For better appreciation, his evidence is reproduced as under:-

ಈ ಕಟ್ಟಡವನ್ನು ಸುಮಾರು 14 ಲಕ್ಷ ರೂಪಾಯಿಗಳಲ್ಲಿ
ಕಟ್ಟಿ ಬಹುದಿರುತ್ತದೆ.

60. Further, it is the argument of the learned Counsel for the accused that for the purpose of construction of building, the accused himself supervised and there was no contractor engaged.

61. Further, accused insofar as this building is concerned, examined one witness as D.W.2 by name D.Nagaraj. He deposed that he is a Civil Engineer and he

has experience in valuing the building and he has valued the building in similar cases and thereby he has the experience.

62. He has further stated that he has assessed the value of the building of the accused and total value was ₹19,45,000/-. He stated that he valued the said building in the year 2013 and further he has stated that as the accused himself constructed the building, 20% to be deducted i.e., cost of construction if given to contractor.

63. D.W.2 was cross-examined by the learned Spl.Public Prosecutor and in the cross-examination, it is suggested to him that he has not produced the guidelines regarding the valuation of the building pertaining to the year 2002-03 of Shivamogga circle. Further, he has admitted that while he assessed the building, he has not included 20% of the contractor's profit in the said valuation.

64. For better appreciation, his evidence is reproduced as under:-

ನಾನು ಎಷ್ಟು ಮೇಟ್ ಮಾಡುವ ಶೇಕಡಾ 20 ನ್ನು ಕಂಟ್ರಾಕ್ಟರ್
ಲಾಭವನ್ನು ಸೇರಿಸಿ ಮೌಲ್ಯಮಾಪನ ಮಾಡಿಲ್ಲ . ನಾನು ಸಲ್ಲಿಸಿದ
ವರದಿ ಅಂದಾಜಿನ ಮೇಲೆ ಇದೆ ಎಂದರೆ ಸರಿ .

65. It is not in dispute that this building was constructed in the year 2002-03. The accused contended that he himself supervised the construction and further he has stated that he has not used construction materials which costs more, but he has used less costs materials and thereby he contended that in the year 2002-03, the valuation of this building was ₹14,78,000/- only and the

Lokayuktha Police assessed the value as per Ex.P.5 of ₹24,06,654/-.

66. The learned Counsel for the accused argued that the accused has not utilized the best construction materials and he has used the less cost materials, however, on going through the document produced by the prosecution along with the report of P.W.2 marked as Ex.P.5, P.W.2 has assessed the value of the building by demarcating the ground floor, classifying RCC roofing, marble granite and teak-wood, further 1st floor portion also RCC roofing, marbles, granite, and teak-wood, 2nd floor portion RCC roofing, marbles, red oxide and has assessed the value and came to conclusion, it costs ₹24,06,654/- and therefore, the argument of the learned Counsel for the accused that the accused used less costs construction materials for construction of the building cannot be accepted.

67. Further, though the accused contended that the costs of construction was only ₹14,00,000/-, but on going through the evidence of D.W.2, D.W.2 himself stated that he has assessed the construction value approximately. As there is no specific calculation made by the D.W.2 in arriving the cost of construction at ₹14,00,000/-, as the P.W.2 has given report with calculation, this Court has considered the valuation of the building as valued by P.W.2 which comes to ₹24,06,654/-.

68. Here it is pertinent to note that P.W.2 has stated that he has not included the 20% of the contractor's profit in the said sum of ₹24,06,654/- and as the accused himself

was the Engineer, he contended that he himself supervised the building and therefore, 20% of the contractor's profit to be deducted from the construction costs.

69. As the accused himself was the Engineer, considering that he has supervised the construction work, as rightly contended contractor's profit to be deducted from the construction costs. Accused contended that 20% costs to be deducted, however taking into general consideration 10% of the constructor's profit may be deducted from the construction costs.

70. If 10% of the contractor's profit is calculated on the amount of ₹24,06,654/- it comes to ₹2,40,665.40. If ₹2,40,665.40 is deducted from the amount of ₹24,06,654/-; then it comes to ₹21,65,988.60 (rounded off ₹21,65,989/-). Therefore, the cost of construction considered as ₹21,65,989/-. To this amount, site value of ₹78,000/- to be added. ₹21,65,989/- + ₹78,000/- comes to ₹22,43,989/-.

71. Therefore, item No.2.1 value is considered as ₹22,43,989/-(**rounded off ₹22,44,000/-**) instead of ₹24,84,654/-. Thereby, ₹2,40,654/- to be deducted from the income of the accused.

72. Item No.2.2:- Valuation of sites bearing No.1826/3 & 4- ₹2,88,000/- is not disputed.

73. Item No.2.3:- Agricultural Land in the name of Smt. M.S.Prema, wife of the accused bearing Sy.No.12/P totally

measuring 11 acres 20 guntas situated at Kurubarahalli village, Harihara Taluk.

74. The IO has shown the costs of this land for purchase. Per contra, it is the contention of the accused that he has not incurred any amount for purchase for this agricultural land and wife of the accused out of her own source of income i.e., gift of ₹4,50,000/- and Rs.39,500/- from her father M.H.Siddraramappa, she purchased the said land. Therefore, the accused contended that IO has deliberately and willfully tagged the costs of this land of ₹4,89,500/- to the accused and therefore, it is contended that ₹4,89,500/- to be deducted from his assets.

75. Learned Counsel for the accused has drawn the attention of this Court that the accused in this case in the APR submitted by him for the year 2001-02 has mentioned that his wife M.S.Prema purchased the property bearing Sy.No.7A,23 guntas and 3 acres 37 guntas situated at Kenchanahalli village, Harihara Taluk, Davanagere District and mode of acquisition shown as her father gave ₹3,71,500/- and ₹1,18,000/- took hand loan from her friends and also from her father. The said APR is marked as Ex.P.38.

76. Though the prosecution contended that the accused has purchased this land in his wife's name and sale consideration invested by him, the prosecution has not produced any relevant document in this regard. It is relevant to mention that in the document marked by the prosecution Ex.P.38, the APRs submitted by the accused is part and parcel of the document Ex.P.38.

77. On going through APR submitted by the accused which is of the year 2001-02 wherein he has clearly mentioned

the purchase of this property by his wife and he has disclosed the source of income.

78. Further, accused has examined D.W.3 by name Tejomaya Anandamurthi. D.W.3 is brother of wife of accused- Smt. M.S.Prema. He deposed that his father has 55 acres of agricultural land; out of 55 acres, in 12 acres there are arecanut, in 3 acres, coconut and remaining 40 acres, mango trees. He further deposed that when his sister Smt. Prema purchased the property at Kurubarahalli Village, Harihara Taluk, he and his father gave Rs.4,50,000/- to her.

79. D.W.3 was cross-examined by the learned Spl.P.P., on going through cross-examination, it is suggested to D.W.3 that though no amount given to his sister, only to help the accused, he is deposing false. That suggestion denied by D.W.3.

80. Further, learned Counsel for the accused drawn the attention of this Court of affidavit of M.H.Siddaramappa marked as Ex.D17.

81. I have gone through Ex.D.17. Ex.D.17 is affidavit of M.H. Siddaramappa. M.H. Siddaramappa is the father of Smt.M.S.Prema, wife of accused. In the affidavit, he deposes in the year 1998, he gave ₹4,50,000/- to his daughter Smt. Prema for purchase of land to an extent 7 acres 23 guntas situated at Harihara Taluk, Kurubarahalli Village.

82. Said Siddaramappa was not examined by the accused stating that Siddaramappa died and death certificate is marked as Ex.D.18.

83. The accused examined his wife Smt.M.S.Prema as D.W.14. She deposed that in the year 1998 her father gave ₹4,50,000/- to her for purchase of the land. Insofar as this aspect is concerned, learned Spl.P.P., cross-examined D.W.14. It is suggested to her that she has not disclosed this fact when the Lokayuktha Police issued notice to the accused. Her statement made before the Lokayuktha Police got marked by the accused at Ex.D.40.

84. I have gone through Ex.D.40. It is the affidavit of Smt.M.S.Prema wife of the accused wherein she has stated that her father gave ₹4,50,000/- to her in the year 1998 for purchase of land to an extent of 7 acres 23 guntas in Kurubarahalli village of Harihara Taluk.

85. Further, learned Counsel for the accused has drawn the attention of this Court Ex.P.184.

86. I have gone through Ex.P.184. It is a letter written by Dy.S.P., Karnataka Lokayuktha to the Chief Conservative of Forest for production of certain documents. In the Ex.P.184, at page No.2143, Chief Conservative of Forest Officer has mentioned that for the year 1998-99, father of wife of accused gave ₹3,71,500/- for purchase of 7 acres 23 guntas of land at Kenchenalli, Harihara Taluk,

87. Further, the learned Counsel for the accused brought to the notice of this Court of the document Ex.D.46.

88. I have gone through Ex.D.46. Ex.D.46 is a letter of Dy.S.P., Karnataka Lokayuktha addressed to Advocate wherein it is mentioned to purchase 7 acres 23 guntas of land, father-in-law of the accused gave ₹3,71,500/- and ₹1,18,000/-; therefore, learned Counsel argued that as Lokayuktha Police himself opined that said amount of ₹4,89,500/- given by father-in-law of the accused and it is

not the amount of the accused and therefore, entire amount of ₹4,89,500/- to be deducted from the income of the accused.

89. On going through the evidence placed by the accused, insofar as this item is concerned, it discloses that the father-in-law of the accused gave ₹3,71,500/- to his daughter for purchase of this property. The accused in APR, pertaining to the year 2001-02 mentioned about this fact and further as per the letter annexed to Ex.P.184, it discloses that his (accused) higher officer has considered the amount of ₹3,71,500/- was given by the father-in-law of the accused.

90. Though the accused contended that remaining amount of ₹1,18,000/- was taken as hand loan by the wife of the accused; however, no documents produced in this regard. Further, it is relevant to mention that D.W.3 brother of the said Smt.Prema (wife of the accused) stated that he and his father paid ₹4,50,000/-; if they really paid ₹4,50,000/-, then in the APR, the accused could have mentioned that ₹4,50,000/- paid by her father; but it is mentioned as ₹3,71,500/-. Therefore, it is taken that the accused has accounted for ₹3,71,500/-.

91. Insofar as ₹1,18,000/- as there is no clear evidence that Smt.M.S.Prema wife of accused took loan, this Court is of the opinion that said sum of ₹1,18,000/- must have invested by the accused. Therefore, insofar as item No.2.3 is concerned, this Court has considered amount of **₹1,18,000/-** as against the value shown by the IO ₹4,89,500/-. Thereby, ₹3,71,500/- to be deducted from the income of the accused.

On going through the evidence of D.W.14 and the affidavit of the father of said Smt.Prema and her brother, they both have stated that they gave ₹4,50,000/-, whereas in the APR, it is mentioned ₹3,75,000/- and the remaining amount of ₹1,50,000/- taken as loan. As there is variation in the evidence of D.W.14 and the affidavit of brother of the said Smt.Prema, this Court is of the opinion that the amount shown in the APR i.e., ₹3,71,500/- only considered.

92. Item No.2.4:- Mangaluru tiled house constructed at Kurubarahalli agricultural land in the name of Smt.M.S.Prema, wife of the accused. Construction cost shown as ₹2,92,000/-.

93. The accused disputes this amount of construction cost. Accused contended that actual cost of construction was ₹78,800/-. But, IO has over valued the construction cost for the tiled roof farm house which was constructed during the year 2002-04.

94. Further, accused contended that for construction of this farm house, accused not engaged any contractor and he himself supervised. Further, he contended that the cost of this construction already accounted and declared in income tax returns filed by him as development expenditure. Hence, the accused contended that the cost of this farm house cannot be considered again as it amounts to duplication of expenditure and therefore, accused contended that this amount of ₹2,92,000/- to be deducted from his assets.

95. The prosecution in this case in respect of this item has examined P.W.5. P.W.5 is by name Ravindra Katvakar, the then Executive Engineer of P.W.D, Harihara Division. He has deposed that the Lokayuktha Police asked him to value

the property i.e., RCC house constructed in the land bearing Sy.No.12/P situated at Kurubarahalli Village, Harihara Taluk in the name of the wife of accused. Accordingly, he valued the said building and gave report as per Ex.P.10. As per Ex.P.10, this RCC house valued by P.W.5 at ₹2,92,000/-. Ex.P.5 is enclosed with the estimation cost, depreciation, not value, structure of the house i.e., Mangaluru tiled house, ground floor portion, constructed in the year 1999, plinth area 73.39 square meters. Further, it is mentioned in detail about the foundation, granite used, door and windows and each & every items detailed estimated and P.W.5 filed the report as per Ex.P.10.

96. It is the argument of the learned Counsel for the accused that the assessment made by P.W.5 is incorrect, he has valued more than the correct valuation, he has not taken the sample from the building and tested its age, proportion, quality, type of strength of the materials used in the construction. Further, P.W.5 has not submitted any records regarding year of construction. He (P.W.5) has not deducted any S.R.Rate of year of construction. He has deducted the S.R.Rate of the year 2012-13 for the Farm House through the year 2002-04. In this regard, the learned Counsel for the accused cross-examined P.W.5.

97. In the cross-examination, it is suggested to P.W.5 that he has not considered the value or S.R. Rate in respect of the year 1999-2000; but, P.W.5 has estimated the value as per the S.R. Rate prevailing in respect of the year 2012-13, which is admitted by P.W.5. Further, it is suggested to P.W.5 that P.W.5 has not verified whether the said house was constructed through the Contractor or the accused himself supervised the said house. Therefore, the learned Counsel for the accused argued that on going through the evidence

of P.W.5, firstly P.W.5 has considered the S.R. Rate of the year 2012-13 instead of considering the S.R. Rate of the year 1999-2000. Further P.W.5 has also not deducted the contractor's profit out of the total value. Therefore, it is argued that the valuation made by P.W.5 in respect of this house is absolute incorrect.

98. Per contra, the learned Counsel for the accused brought to the notice of this Court about the valuation of the said building as valued by D.W.2 Sri Nagaraj, Building Valuator.

99. I have gone through the evidence of D.W.2. D.W.2 has stated that he has valued the Farm House and according to his valuation, the said house was constructed in the year 2002-03 and he has considered the S.R. Rate of the year 2002 as prevailing in the schedule in respect of Shivamogga Circle and the accused himself has constructed the said house and therefore, he has contended that the construction value of the said house was ₹98,500/- and out of ₹98,500/-, 20% of the Contractor's profit if deducted, it comes to ₹78,800/-. Therefore, the learned Counsel for the accused argued that the value of the building was ₹78,000/- only; but, the Investigating Officer has shown more value of ₹2,92,000/-.

100. Further, the learned Counsel for the accused argued that insofar as ₹78,800/- is concerned, it cannot be considered as income of the accused, because it belonged to his wife Smt.Prema and in the income tax returns filed by her, she has shown the expenses incurred for the said house. Therefore, it is argued that even the said ₹78,800/- cannot be included. In this regard, on behalf of the accused, a document is marked as Ex.D.13 i.e., valuation

made by D.W.2. Further, Ex.D.37 which is produced by the accused in order to show that the wife of the accused has shown this cost of construction in the APR.

101. I have gone through the Ex.D.37. In Ex.D.37, it is mentioned that pipeline and building expenses ₹50,000/- for the year ending 2003 and further pipeline and building expenses ₹50,000/- for the year ending 2004. Further, the learned Counsel for the accused brought to the notice of this Court that even in Ex.P.37 marked on behalf of the prosecution, at relevant page No.489 and 490, the income tax returns filed by the wife of the accused shown and in the said income tax returns, the total ₹1,00,000/- i.e., pipeline and building expenses shown by the wife of the accused. Therefore, it is argued that as the said ₹1,00,000/- already shown as expenses in the ITR, it is argued that the said amount cannot be included in the present case as assets of the accused.

102. It is true that the accused on his behalf has examined D.W.2 and D.W.2 has estimated the costs of construction at ₹98,500/-. He was cross-examined by the learned Spl. Public Prosecutor and in the cross-examination, D.W.2 has stated that he has not produced the guidelines pertaining to the year 2002-03. Further, he has stated that he has estimated the building valuation approximately and therefore, his evidence cannot be accepted as true insofar as the valuation of this building.

103. On going through the valuation made by P.W.5 on behalf of the prosecution, P.W.5 has estimated all the costs of construction and filed the detailed report. He was cross-examined and in the cross-examination, it is elicited that the contractor's profit not deducted. Generally, if the

building is supervised by the owner of the building, then 10% of the construction costs will be deducted. Taking into consideration that the accused was the Engineer himself and the building belonged to his wife; therefore, 10% of the contractor's profit shall be deducted from the estimated value made by P.W.5 i.e., ₹2,92,000/-. If 10% of contractor's profit is deducted on ₹2,92,000/-, it comes to ₹29,200/-. ₹29,200/- to be deducted from ₹2,92,000/- and it comes to ₹2,62,800/-. Therefore, this Court is of the opinion that the construction cost of this Mangaluru tiled house was ₹2,62,800/- instead of ₹2,92,000/- as calculated by the Investigating Officer.

104. Now, it is the argument of the learned Counsel for the accused that in the income tax returns filed by the wife of the accused as per Ex.D.37 (and also as per Ex.P.37), she has shown the pipeline and building expenses. Further, in the description, it is not mentioned whether the said pipeline and building expenses shown is pertaining to this Mangaluru tiled house or not. Though the accused examined his wife as D.W.14 and in her evidence she has not specifically deposed about she has spent ₹1,00,000/- towards the construction of this Mangaluru Tiled House. Therefore, the argument addressed by the learned Counsel for the accused that ₹1,00,000/- i.e., building expenses shall be deducted from the assets cannot be considered.

105. From the evidence placed by the prosecution and after considering the evidence of accused and the prosecution, this Court has come to the conclusion that the value of this item No.2.4 is **₹2,62,800/-** as against the value shown by the Investigating Officer at ₹2,92,000/-.

106. It is the argument of the learned Counsel for the accused that P.W.5 while assessing the valuation has adopted the S.R.value of the year 2012-13. Though, the Farm House was constructed during the year 2002-04. In the cross-examination of P.W.5, it is elicited from P.W.5 that he has considered the S.R.Rate of the year 2012-13. Further, as per the evidence of P.W.5, he has collected the information that the RCC house was completed in the year 2012. Though the accused contended that the RCC house was constructed in the year 2002-04; but, as per the evidence of P.W.5, it was completed in the year 2012 as per the information gather by him from the local people.

107. The accused in order to prove that the Farm House was constructed in the year 2002-03 and further the value of the Farm House was only ₹78,800/- has relied upon the evidence of D.W.2. D.W.2 though stated that he has valued the building as per the S.R.Rate prevailing for the year 2002-03, but further he has stated that he has collected the copy of the completion certification of the house for the year 2002-03. But, in the document marked as Ex.D.13, D.W.2 has not enclosed the said certificate obtained by him i.e., completion certificate stating that the building was completed in the year 2002-03. Further, on going through the enclosures with Ex.D.13, D.W.2 has produced the S.R. Rate of the year 2012-13. He has not produced the S.R. Rate of 2002-03 and therefore, the argument of the learned Counsel for the accused that the building was completed in the year 2002-03 cannot be accepted as true and it is taken that the building was completed in the year 2012. Therefore, this Court is of the opinion that the valuation made by P.W.5 to be accepted as true after deducting 10% of the constructor's profit.

108. Item No.2.5:- RCC house under construction at Kurubarahalli village situated in the agricultural land in the name of Smt.Prema, wife of the accused.

109. Insofar as this item is concerned, the Investigating Officer has assessed this RCC building under construction at ₹2,20,600/-. Per contra, the accused contended that the IO has exaggerated the value of Rs.2,20,600/-; but the actual construction cost was ₹68,000/- only. Further, the accused contended that this RCC building was constructed in the year 2006-07 and the cost was already counted and declared in the income tax returns filed as development expenditure. Therefore, the learned Counsel for the accused argued that the cost of this building cannot be considered again as it amount to duplication of expenditure.

110. The prosecution in order to substantiate the value made by the Investigating Officer examined P.W.5. P.W.5 is Raveendra Katvakar. He has deposed that as per the request of the Lokayuktha Police, he has assessed the valuation of the RCC building under construction in the land bearing Sy.No.12/P situated at Kurubarahalli village in the name of Smt. Prema. Further, he has deposed that he has issued certificate as per Ex.P.10.

111. I have gone through Ex.P.10. Ex.P.10 is the report submitted by Lokayuktha Police with regard to assessment of the RCC house under construction. This report is also included the assessment of the house i.e., tiled roof house (in respect of item No.2.4). Insofar as this property is concerned, P.W.5 has assessed the value at ₹2,20,600/-. This valuation is enclosed with detailed estimation, cost of construction, classifying the each item of work and it is

mentioned that the ground floor portion, plinth area 28.54 square meter, foundation, RCC pillar, plinth roofing beam also separately assessed and P.W.5 opined that this building under construction in respect of the year 2012-13 and he has considered the S.R. value of the year 2012-13. P.W.5 was cross-examined by the learned Counsel for the accused. In the cross-examination, P.W.5 has stated that the RCC building was completed in the year 2011; but he has not produced any document. Further, P.W.5 has admitted that he has to consider the S.R. Value for the year 2011-12 in instead of 2012-13. Though P.W.5 has stated that he has considered the value for the year 2012-13. He has further deposed that after he valued the building taking into consideration of S.R. Value of the year 2012-13, he deducted 1½% depreciation from the said amount. Further, in the evidence of P.W.5, it is elicited that whether the said construction was given to contractor or owner himself/herself constructed by self supervising.

112. The accused in order to substantiate that the assessment of this building was only ₹68,000/- has examined D.W.2. D.W.2 is a Civil Engineer. He has deposed that he has assessed the value of the RCC building which was under construction and according to him, the said RCC building of the year 2002 and he has assessed the said building at ₹98,500/- and if 20% of the contractor's profit is deducted, then it amounts to ₹78,800/-. In this regard, D.W.2 has stated that he has produced the documents Ex.D.11 to Ex.D.15.

113. I have gone through Ex.D.11 to Ex.D.15. Ex.D.14 is the report issued by D.W.2 with regard to RCC building and he estimated the value at ₹68,800/-. Further, according to him, it was constructed in the year 2002-03, but as the

report is enclosed with S.R.Rate of the year 2013-14. But, the report is enclosed with the S.R. Rate of the year 2013-14. He has not produced the S.R. Rate of the year 2002-03. If at all, the building was constructed in the year 2002-03, then D.W.2 ought to have produced the S.R. rate of the year 2002-03 instead of the year 2012-13.

114. It is the argument of the learned Counsel for the accused that P.W.5 while assessing the valuation, has adopted the S.R. Value of the year 2002-03. However, as per the evidence of P.W.5, he has collected the information that the house was completed in the year 2012. Though the accused contended that the house was constructed in the year 2002-03; but, as per the evidence of P.W.5, it was completed in the year 2012. However, though D.W.2 contended that it was of the year 2002-03, but he has not produced any document to show that the building was completed in the year 2002-03 and therefore, the argument of the learned Counsel for the accused that the building was constructed in the year 2002-03 cannot be accepted as true and it is taken that the building was completed in the year 2012.

115. Further, as per the evidence of P.W.5, he has not deducted the contractor's profit in the total value made by P.W.5. As the accused himself is the Engineer, the contractor's profit at the rate of 10% shall have to be deducted from the amount valued by P.W.5. In this case, the building was valued by P.W.5 at ₹2,20,600/-. Out of ₹2,20,600/-, 10% to be deducted towards contractor's profit. If 10% is deducted from the said ₹2,20,600/-, then 10% comes to ₹22,060/-. If the said sum of ₹2,20,600/- is deducted from ₹2,20,600/-, then it comes to ₹1,98,540/-. Therefore, this Court has come to the conclusion that the

value of this item No.2.5 is **₹1,98,540/-** as against the value shown by the Investigating Officer at ₹2,20,600/-.

116. Item No.2.6:- The valuation of BDA site situated at Bengaluru purchased in the name of accused. Insofar as this item is concerned, the Investigating Officer has valued this site at ₹5,72,400/-. The accused contended that this site was purchased out of bank loan availed from the Bank of Baroda, Dharwad Branch. He further contended that after he took loan, he could not repay the loan and it was cleared off by his father-in-law namely M.H. Siddaramappa and his brother-in-law by name Maheshwarappa by transferring the required amount of ₹4,08,439/- and ₹3,95,330/- to the loan account from their deposit accounts i.e., CDR 696543 and CDR 696544 respectively and therefore, the accused contended that he was due of the said amount to his father-in-law and to his brother-in-law. Therefore, the accused contended that the said sum of ₹5,72,400/- cannot be tagged to his income as it amounts duplication.

117. Further, the learned Counsel for the accused argued that while availing the said bank loan, a permission was accorded by the accused from the competent authority. The prosecution has produced the document i.e., Ex.P.19. Further, it is argued that the prosecution has also produced Ex.P.37 wherein it discloses that the loan was sanctioned by the bank of Maharashtra on security given by M.H.Siddaramappa by pledging CDR 696543 and S.Maheshwarappa by pledging CDR 596544 and the same was not considered by the Investigating Officer.

118. Further, the learned Counsel for the accused has brought to the notice of this Court that D.W.3 Tejomaya

Anandamurthy, who is the son of M.H.Siddaramappa now, he died has deposed that when the accused purchased a BDA site at Bengaluru, his father had deposited ₹3,00,000/- as security and his father had repaid a sum of ₹4,80,000/- towards the said loan and the accused has to repay the said amount of ₹4,08,439/- to D.W.3. Further, the learned Counsel for the accused has brought to the notice of this Court that by seeing the deposition of D.W.15 who is accused herein, wherein D.W.15 deposed that he has purchased the said site after availing bank loan of ₹5,00,000/- from the Bank of Maharashtra and towards security for repayment of the said loan, his father-in-law and brother-in-law have deposited the amount as security as CDR 696543 and 696544 as per the document produced by the prosecution at Ex.P.37. He further deposed that he took a permission from his office to purchase the said site as per Ex.P.19. Further, he has deposed that as he could not repay the said loan amount, his father-in-law and his brother-in-law repaid the said amount on the security deposit made by them. Therefore, the learned Counsel for the accused argued that the said sum of ₹5,72,400/- cannot be treated as assets of the accused and that amount has to be deducted from the assets i.e., ₹5,72,400/- to be deducted from the assets.

119. However, on going through the documents placed by the prosecution, wherein, the prosecution has produced the document with regard to bank loan availed by the accused and the further, the learned Spl. Public Prosecutor cross-examined D.W.3 and in the cross-examination, it is suggested to D.W.3 that at the time of purchasing the site by the accused and when the father of D.W.3 and brother-in-law of the accused namely Maheshwarappa have

deposited the amount, it was not mentioned in any diary. Further, it is suggested to D.W.3 that the accused himself paid ₹3,00,000/- each to the said Siddaramappa and Maheshwarappa and in their names, the accused deposited the amount at the time of availing the loan. It is denied by D.W.3. However, D.W.3 has admitted that they have not taken any steps against the accused for recovery of the said amount paid by them towards the loan account of the accused. The learned Spl. Public Prosecutor argued that this document i.e., CDR deposits were created by the accused by funding them and neither the said Siddaramappa nor Maheshwarappa have not disclosed their income at the time of they depositing the said amount and at the time of availing the loan by the accused.

120. Further, it is also pertinent to note that in the income of the accused i.e., at Statement 'C', item No.3.11, it is mentioned that the income shown as bank loan availed by the accused from the Karnataka Bank Limited at ₹8,25,000/-. When the said loan shown as income of the accused, then, this value of the site of ₹5,72,400/- shall be taken as assets of the accused and therefore, though the accused contended that the said loan amount was repaid by the said Siddaramappa and Maheshwarappa and he has to pay the said amount to them, the said arguments of the learned Counsel for the accused cannot be accepted. Therefore, this Court is of the opinion that the amount of ₹5,72,400/- to be considered as assets of the accused as shown in item No.2.6 at **₹5,72,400/-**.

121. Item No.2.7 to 2.28:- Insofar as these items are concerned, the accused has not disputed the same.

122. Item No.2.29:- The valuation of the Maruthi Suzuki Shift Car bearing Reg.No.KA-17/M-9865 purchased by Smt. M.S.Prema i.e., wife of the accused.

123. Insofar as this item is concerned, the Investigating Officer has considered the said car as the assets of the accused and valued at ₹5,79,432/-.

124. It is the contention of the accused that the said vehicle was purchased by his wife out of her own business income and the cost of the vehicle was declared along with registration, insurance and other costs in the income tax returns filed under the said heads of the vehicle as per Ex.P.37.

125. Further, the learned Counsel for the accused argued that the accused himself examined as D.W.15 and he deposed that his wife Smt. Prema had purchased the said vehicle for her DTP business and from the income earned by her business, she purchased the said car in the year 2009 and she has shown in the income tax returns filed by her in respect of the year 2008-09. He further deposed that the accused has not paid any amount to her for purchase of the said car. Therefore, the learned Counsel for the accused argued that the said amount of ₹5,79,432/- to be deducted from the assets of the accused.

126. Further, the learned Counsel for the accused has brought to the notice of this Court about the principles laid down in the reported judgement i.e., in the case of R.B.Patil Vs. Karnataka Lokayuktha, Dharwad, wherein it is observed that the expenditure shown in the profit and loss account of ITR cannot be considered as separately. Herein in this case, as the car expenditure is already considered in the ITR and therefore, it is argued that this amount of

₹5,79,432/- should be deducted from the assets of the accused.

127. I have gone through the evidence of D.W.14- Smt. Prema i.e., wife of the accused, wherein she has deposed that in the year 2001, she started DTP business at Dharwad and she has filed income tax returns since year 2001 to 2012. On careful scrutiny of the evidence of D.W.14, she never stated that she has purchased the car in the year 2009 through her business income. When, it is the argument of the learned Counsel for the accused that the wife of the accused herself purchased the car in the year 2009 from her own income, then she ought to have deposed about the car was purchased by her in the year 2009. Though it is true that in the income tax returns filed by her in respect of the year 2008-09, wherein she has mentioned the costs to the vehicle at ₹7,42,000/-, as she has not stated that she has purchased the said car from her own income and no documents are produced in that regard to show that she herself paid the costs of the said vehicle, then, the arguments of the learned Counsel for the accused that because she has shown the expenditure of the vehicle in the income tax returns, it cannot be said that the investment made by her for purchasing the said vehicle. Therefore, the said amount of **₹5,72,430/- shown at item No.2.29 to be considered as income of the accused.**

128. Item No.2.30:- The vehicle i.e., TVS Wego two wheeler bearing No.KA-17/EC 7795, the Investigating Officer has valued this vehicle at ₹43,680/-, this vehicle is in the name of Smt.M.S.Prema W/o Accused.

129. According to the Investigating Officer this vehicle was purchased by the accused in the name of his wife and he has invested the money.

130. Per contra, it is the contention of the accused that he has not invested the said amount of ₹43,680/- for purchase of the vehicle and his wife purchased the said vehicle which is exclusively belonged to her, and he is no way concerned with the said vehicle and therefore, the accused prays to deduct sum of ₹43,680/- from his assets.

131. In support of contention of the accused, the learned counsel for the accused drawn attention of this court of the document Ex.P.37, page No.508. He argued that as per the document produced by the prosecution Ex.P.37, page 508 i.e., pertaining to the Income Tax returns filed by the wife of the accused for the year ending 31.3.2011 wherein she has shown that vehicles and deducted the expenditure of ₹51,100/- ad therefore, it is argued that as it is already shown in the Income Tax returns, now this amount cannot be considered. Further, it is argued that in the year 2010 itself wife of the accused purchased the said vehicle for the purpose of her business i.e., DTP Center.

132. In this case, the wife of the accused herself examined as DW.14. On careful scrutiny of evidence of DW.14 she has not stated that she has purchased the said TVS Wego vehicle in the year 2010 for running her DTP center business and her husband the accused herein not invested the said amount. If at all she really purchased by investing her own money, then she should have deposed in her evidence that she has purchased the said vehicle in the year 2010. As there is no specific evidence in that regard from DW-14 (Smt.M.S.Prema w/o Accused), this court

cannot accept the arguments of the learned counsel for the accused that sum of ₹43,680/- to be dropped from the assets of the accused cannot be sustainable. Therefore, sum of **₹43,680/-** to be considered as assets of the accused.

133. Item No.2.31:- Insofar as this item valued at **₹13,366/-** is concerned, the accused has not disputed.

134. Item No.2.32 & 2.33:- Insofar as this item i.e., 2.32 is concerned, the value of the gold and silver articles valued ₹1,84,648/- and Item No.2.33 is concerned i.e., gold ornaments pledged in Canara Bank of **₹3,79,400/-** in total ₹5,64,048/-.

135. Insofar as these two items are concerned according to the Investigating Officer these two items were purchased by the accused from unknown source of income, therefore it is added as his assets.

136. On the other hand it is the contention of the accused that these gold and silver articles were acquired by the accused before he joining the service. According to the accused at the time of his marriage (his marriage held in the year 1988) some gold ornaments given to his wife by her parents and insofar as this gold ornaments is concerned, it is mentioned in his Annual Performance Report (for short 'APR') for the year ending 31.3.1991. He has shown as 25 thola of gold.

137. In that regard, the learned counsel for the accused brought to the notice of this court regarding Ex.P.38 page 1120. I have gone through Ex.P.38 page 1120, this is Assets and Liabilities statement submitted by the accused to his higher officer for the year ending 31.3.1991. In the said statement, in Sl.No.1 he has shown ಬಂಗಾರದ ಆಭರಣ 25

ತೊಲ. Further, in sofaras this acquisition is concerned accused himself examined as DW.15. He deposed that he has shown the acquisition of the gold ornaments in his APR. DW.15 was cross-examined by the learned Special PP. In the cross-examination in sofaras this APR is concerned no particular suggestion made to DW.15 stating that it was not acquired prior to his joining the service. As there is no specific denial by the learned Special PP to DW.15 with regard to this item, and further as the accused has shown that he acquired 25 thola gold for the year ending 31.3.1991. This court has to accept the arguments of the accused that he has acquired the said gold through known source of income before he joining the service.

138. In that regard, learned counsel for the accused has relied upon decision in the case of TULSIRAM V/S. STATE OF KARNATAKA (Cr.R.P.No.200063/2014) decided on 27.8.2015 wherein the Hon'ble High Court has observed that "the accused could not have prepared in anticipation that he has to face such charges in future when he filed this first APR declared as gold and silver articles to the concerned authority", the court should borne in mind these things while considering the first APR.

139. In this case, the accused joined the service in the year 1989 and soon after he joined the service he is declared his gold ornaments on the subsequent year i.e., for the year ending 1991. Therefore, taking into consideration of the observation made in the aforesaid judgment relied by the learned counsel for the accused and further in the cross-examination of DW.15 there is no specific suggestion to DW-15 denying that he has not at all acquired the said gold through his known source of income, this court is of the opinion that the arguments of the

accused to be accepted as true and therefore amount of ₹5,64,048/- shown at item No.2.32 and 2.33 together to be deducted from the assets of the accused.

140. Item No.2.34:- The valuation of the articles found in the house belonged to the accused situated at No.1826/5, LIC colony, Ranebennur. The Investigating Officer has shown total valuation at ₹11,33,706.55. According to the accused the Investigating Officer has shown excess value of those articles, but actual value of those articles is ₹5,14,216/-. Therefore, learned counsel for the accused submitted that the Investigating Officer has shown excess value of ₹6,19,490/- and the said sum to be deducted from the assets of the accused. In so far as seizure of these articles from the accused is concerned the prosecution has examined PW.4. PW.4 who is a mahazar witness, he deposed that on 8.11.2012 at the request of the Lokayukta police he accompanied them for raid in the house of the accused situated at Ranebennur and they seized the valuables from the house of the accused and drawn mahazar as per Ex.P.7. I have gone through Ex.P.7. In the Ex.P.7 the articles found in the house of the accused mentioned at Sl.No.1 to 828, the description of the articles are letter box fixed to the gate of the house, flower pots in the compound of the house of the accused, plastic pipes, mat, groceries items, equipments for maintaining garden (spade, axe, sickle) etc., cloths, apparels, furnitures, books, laminated photos, electric equipments, mobiles, plastic items used for household course, silver articles seized in the pooja room, gold articles, copper items, bonds, sarees, steel utensils, idols, show pieces etc., in all they valued ₹11,33,706/-. The accused has replied to the articles seized by the Investigating Officer and he has also

furnished the actual value of those articles. In Ex.P.37 at Sl.No.834 to 879 the description of these articles are mentioned and the accused has mentioned the actual value of those articles. I have gone through those value as mentioned by the accused. According to the accused actual value is ₹5,14,216/-.

141. In sofaras the items like wearing apparels, utensils, show piece items, agricultural equipments as stated by the accused is considered. However, in sofaras gold items are concerned at Sl.No.459 to 464 it is shown as ₹26,640/-, but the accused has given explanation that this gold weighing 25 thola was mentioned in the Assets and Liabilities Statement for the year 1990-91. This explanation is accepted.

142. In sofaras Sl.No.465 is concerned is the silver idol (ಬೆಳ್ಳಿಯ ಲಕ್ಷ್ಮಿಯ ಮುಖವಾಡ) weighing 39.300 grams total value shown as ₹18,886/-, the accused has stated that this item comes to him during the partition held on 2.9.1986, and Sl.No.466, 467 & 468 are concerned, it is very meager amount i.e., ₹345/-, ₹200/- & ₹250/-. However, in the Assets and Liabilities statement this is not mentioned as his assets. Therefore, the value these three items i.e., $18886 + 345 + 200 + 250 = \mathbf{19,681/-}$ to be added to the calculation made by the accused.

143. Sl.No.469 to 476 are concerned, the accused stated that in the year 1988 when he married gold chain valued ₹28,470/-, this gold chain at sl.no.469 given to his wife and shown in Assets & Liabilities statement of the year 1990-91.

144. Sl.No.742 is concerned the double cot teak wood valued **₹20,000/-**, accused contended that it is acquired by

him before he joining the service, but no cogent evidence placed by the accused and therefore, it is considered as his assets.

145. Sl.No.698 is the double cot valued ₹12,000/-, Sl.No.699 is the sewing machine valued ₹2,000/-, Sl.No.708 is the Teak wood table valued ₹2,000/-, Sl.No.759 is the suitcase valued ₹2,000/-. Sl.No.818 is the Sintex 1000 liters water tank valued ₹5,000/-. He has stated that he has shown the said description of the property and its value in the APR 2003-04. APR is marked as Ex.P.38. On going through the APR 2003-04 this item not mentioned. Likewise, Sl.No.821 Dizol Solar Heater 200 liters valued ₹45,000/-. He contended that he has shown in the APR 2003-04, but on perusal of the same, it is not found. Therefore, this amount to be considered as his assets.

146. Sl.No.823 Pedestal Fan valued ₹1,500/-. The accused contended that it is purchased by him before he joining to the service, but no documents produced. Hence, this is also considered as his income i.e., **₹1500/-**.

147. On going through the valuation made by the Investigating Officer and on going through the valuation made by the accused, the claim made by the accused in respect of the items at Sl.No.465 to 468, 742, 698, 699, 708, 759, 818, 823 value of these articles comes to **₹1,10,181/-** and it is to be added to amount calculated by the accused i.e., ₹5,14,016/-, it is to be added i.e., $5,14,016 + 1,10,181 = 6,24,397/-$ approximately it is to be rounded as **₹6,25,000/-**.

148. Learned counsel for the accused argued that in the cross-examination of PW.4 it is suggested to him that value of the articles made by the Investigating Officer without

enquiring with the accused. This suggestion denied by PW.4. However, PW.4 further stated that for some articles he told the value, but he does not remember what are all the articles valued by him. Further, learned counsel for the accused brought to the notice of this court of the cross-examination of PW.14, in the cross-examination of PW.14 the Investigating Officer he has admitted that after the accused has given explanation with regard to the value of the property, after that he did not get the actual value of those articles from the competent person.

149. Further, PW-14 has admitted that the accused in the APR as per Ex.P.37 at page 1082 to 1120 as mentioned that he acquired 25 thola gold which is admitted by PW.14. Further, PW.14 also admitted that he has mentioned 24 grams gold as presented to him. For better appreciation his evidence extracted as under;

“ಆರೋಪಿಯು ತನ್ನ ಮೊದಲನೇ ಎ.ಪಿ.ಆರ್ ನಲ್ಲಿ 25 ತೊಲ ಬಂಗಾರವು ಪಿತ್ರಾ ಜ್ಞ ತವಾಗಿ ಬಂದಿರುತ್ತದೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ ಅಂದರೆ ಸರಿ. ನಂತರ, ಆರೋಪಿಯು 24 ಗ್ರಾಂ ಬಂಗಾರ ಉಡುಗೊರೆಯಾಗಿ ಬಂದಿರುವುದಾಗಿ ಘೋಷಿಸಿದ್ದಾರೆ ಅಂದರೆ ಸರಿ. ಆರೋಪಿಯು ಕೊಟ್ಟ ಸಮಜಾಯಿಷಿಯ ಬಗ್ಗೆ ಪ್ರತ್ಯೇಕ ತನಿಖೆ ಮಾಡಿರುವುದಿಲ್ಲ.”

150. Therefore, this court is of the opinion that, the gold items which are mentioned in the articles in the Mahazar Ex.P.7 said to have seized during the raid cannot be take into consideration as the accused already declared in the APR and it is not considered by the Investigating Officer - PW-14 as admitted by him in the cross-examination. Therefore, the value of the articles seized as per Ex.P.7 arrived at **₹6,25,000/-** instead of ₹11,33,706/- . ₹5,08,706/- is deducted from the assets of the accused.

151. The learned counsel for the accused argued that he and his wife have explained in detail as to the cost of the household articles as ₹5,14,216/- vide Ex.P.37 page 834 to 879. Further, the learned counsel for the accused argued that as per the deposition of DW.12 he has stated that he along with other panchas have valued the household articles and as per Ex.D.26 the value of articles belonging to AGO is ₹1,55,953/- and the value of the articles belonging to his wife Smt.Prema is ₹3,52,825/-. Further, he has argued that the value of household articles of ₹11,33,706/- as considered by Investigating Officer is baseless and it has no reference to the year of purchase, not ascertained whether the items were new or used once, no reference to the manner in which the cost is ascertained, no expert opinion obtained and therefore this should not be considered.

152. Further it is argued that many articles of significant value like TV, Refrigerator, Computer etc., have been reported in APRs of 1990-91 i.e., in the year of joining service and in all subsequent years as per Ex.P.38 document 108 to 1120. Further, it is also argued that even after accused has submitted his explanation as per the schedule vide Ex.D.37, Investigating Officer has not done any investigation about the valuation and has drawn adverse inference without any basis. Further, learned counsel for the accused argued that as per the admission made by the PW.14 Manjappa, Investigating Officer, he has admitted that after the accused has given explanation he did not ascertain the actual value by deputing the competent person. The accused in this case himself examined as DW-15. He deposed that the Investigating Officer deliberately assessed the household articles more

then the actual value and he has furnished the document Ex.D.6 which is the actual value of the articles found in the house of the accused.

153. Item No.2.35:- The valuation of household articles found in the quarters of the accused, the Investigating Officer has shown the total value of ₹41,407/-. The accused contended that Investigating Officer has shown excess value of the household articles. But according to the accused the total value was ₹20,382/- and thereby the Investigating Officer has shown ₹21,025/- excess amount.

154. The learned counsel for the accused brought to the notice of this court in the evidence of PW.1 during cross-examination, PW-1 has admitted that the cost of articles valued by him are assessed approximately and he cannot say the exact value of the said articles. Further PW.1 has stated that he is not able to tell when those articles were purchased and what was the value of those articles at the time of purchase. Further, learned counsel for the accused brought to the notice of this court in that Ex.P.37 page 875 to 877 the Investigating Officer has mentioned the details of the articles seized in the quarters of the accused at Ranebennur. I have gone through Ex.P.37 page 875. I have gone through Ex.P.37 page 875 and description of the articles seized are CFL bulb, Door mat, Plastic dining table, door curtains, one table cloth, laminated photos, Kurlon table bed, mosquitoes curtain, bed-sheet, 3 cotton shirts, battery, buckets, jug, brush, mirror etc., the Investigating Officer total valued ₹41,407/-. As against these articles the accused has valued at ₹20,382/-.

155. Further learned counsel for the accused argued that in the evidence of PW.1, he has stated that he has valued

those articles approximately and he cannot say the exact value of those articles. Further, the accused himself examined as DW-15. He deposed that the Investigating Officer has valued the articles excess amount and in the cross-examination of PW.14 he has admitted that after the accused shown the valuation by replying to the valuation made by the PW.1, PW.14 again has not get valued those articles. For better appreciation his evidence extracted as under.

“ಆರೋಪಿಯು ಕೊಟ್ಟ ಸಮಜಾಯಿಷಿ ಬಗ್ಗೆ ಪ್ರತ್ಯೇಕ ತನಿಖೆ ಮಾಡಿರುವುದಿಲ್ಲ.”

156. Looking into articles seized by the Investigating Officer as these articles are household articles i.e., clothes, bath-room items, plastic chairs and further as the Investigating Officer after the accused gave explanation and produced the correct rate of the articles, PW.4 did not get revalued those articles, therefore, this court is of the opinion that the valuation arrived by the accused at ₹20,382/- to be considered as against the value made by the Investigating Officer at ₹41,407/-. Therefore, Item No.2.35 is considered as ₹20,382/- (difference of ₹21,025/- to be deducted from the assets of the accused).

157. Item No.2.36:- The value of the articles seized from the Farm House of the wife of the accused situated at Kurubarahalli. The Investigating Officer has valued articles at ₹28,419/-. As per the accused, these articles valued only ₹20989/-. It is the argument of the learned counsel for the accused that this amount of ₹23,989/- already mentioned by the wife of the accused in the Income Tax returns filed by her from the year 2006-07 to 2012-13. In

that regard, learned counsel for the accused brought to the notice of this court the evidence of PW.10.

158. PW.10 the First Division Assistant of Education Department deposed that as per the request of the Lokayukta police he accompanied with Lokayukta police at the time of seizure of the articles from the Farm House of the wife of the accused and mahazar was drawn as per Ex.P.15. PW.10 was cross-examined by the accused counsel. He answered the suggestion put by the accused counsel stating that the property which were seized in the said Farm House may be valued ₹28,000/-. He answered that he cannot say the exact value of those articles. Further, learned counsel for the accused brought to the notice of the Court Ex.P.37 page 500 onwards. I have gone through Ex.P.37. Learned counsel for the accused argued that these documents are pertaining to Income Tax returns filed by the wife of the accused wherein she has shown the agricultural articles at ₹23,989/-. Ex.D.37 also refers to Income Tax returns for the year 2002-03. Though, the wife of the accused has shown the said agricultural articles as expenditure in the document marked as Ex.D.37, expenditure will be the assets of the accused. Because she has not stated that she has invested the said amount for purchase of agricultural equipments.

159. On going through the list of articles seized by the Investigating Officer from the Farm House of the wife of the accused are PVC pipe, ACC company cement bags, Spade, axe, bill-hook etc., totally the Investigating Officer has valued the said articles as ₹28,419/- at item No.2.36. As against this the accused has given explanation and given total valuation of ₹23,989/-. Looking into the materials seized by the Investigating Officer and also on going

through the explanation given by the accused and further on going through the principles laid down in the case of Bahadur Desai's case, this court is of the opinion that the calculation made by the accused of ₹23,989/- to be considered as against valuation made by the Investigating Officer at ₹28,419/-. Therefore, item No.2.36 is valued by the court is at ₹23,989/- (thereby ₹4,430/- to be deducted from the assets of the accused).

160. Item No.2.37 to 2.41:- not disputed by the accused. Hence, on calculation made by this court as per above discussion, total assets as per table-B arrived at **₹64,90,894/-**.

161. Thirdly, we will come to Table-C.

Statement 'C' shows the abstract/list of income pertaining to DGO and his family members as shown in the charge sheet is reproduced for convenience reference:-

Sl. No.	Particulars of Profit	Value (in Rupees) as per the Prosecution
1)	Profit of DGO from salary	
3.1	Net salary	21,86,287-00
2)	Agricultural Income	
3.2	Land wise (ಜಮೀನು ವಾರು)	9,35,000-00
3)	Profit from rent	
3.3	The total income of rent obtained from Dr. Y. Subba Reddy, Director, College of Dental Science, Davanagere	3,46,009-60
4)	GPF/PPF, Advance or Loan	
3.4	The loan obtained from GPF A/c.No.9002	1,50,000-00
3.5	The loan obtained from KGID	63,300-00

	Policies	
3.6	The loan obtained from Insurance policy No.622979276	15,130-00
3.7	The loan obtained from Insurance Policy No.620740617	22,100-00
5)	Hand Loan:-	
3.8	Hand loan obtained from S.A. Hiremath, A.V. Basavarajappa, S. Maheshwarappa and M.H. Siddramappa	-
3.9	Hand loan obtained from B.C.Devaraju and B. Channabasappa	3,90,000-00
3.10	Hand Loan obtained from Manjunatha S.C.	-
6)	Bank Loan:-	
3.11	The balance amount of Home Loan bearing No.1927001800030201 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	8,25,000-00
3.12	The car loan obtained from Karnataka Bank, Limited, KUD Circle Branch, Dharwad bearing Loan A/c. No.1927001600754201	4,92,000-00
3.13	The gold pledge A/c.No.1590842000169 from Canara Bank. K.B. Extension, Davanagere	3,00,000-00
3.14	The Education loan bearing A/c.No.1813651004737 in Canara Bank, Vidhya Nagara, Davanagere (the total sanctioned amount ₹10,00,000-00)	7,50,000-00
7)	The total income from selling the properties (including movable and immovable properties)	-
3.15	The net profit from selling the site bearing No.7899/1310 (old No.42)	1,60,000-00

	situated at Galihalli village, Tarikere Taluk, Kasba Hobli	
8)	The interest obtained from bank Accounts:-	
3.16	S.B.A/c.No.1922500100223101 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	1,500-00
3.17	S.B. A/c.No.1922500100247701 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	2,346-00
3.18	S.B.A/c.No.04031700003829 of HDFC Bank, Mandipet, Davanagere	3,331-75
3.19	S.B. A/c.No.04031070017975 of HDFC Bank, Mandipet, Davanagere	175-36
3.20	S.B. A/c.No.04031930001813 of HDFC Bank, Mandipet, Davanagere	1,132-45
3.21	S.B.A/c.No.0411610004608 of HDFC Bank, Mandipet, Davanagere	254-66
3.22	S.B. A/c.No.1902500101258401 of Karnataka Bank Limited, K.B. Extension Branch, Davanagere.	7,411-00
3.23	S.B. A/c.No.1813101008271 of Canara Bank, Vidhya Nagara Branch, Davanagere.	2,252-00
3.24	S.B. A/c.No.13583 of Canara Bank, Vidhya Nagara Branch, Davanagere	2,339-00
3.25	S.B. A/c.No.1813101013272 of Canara Bank, Vidhya Nagara Branch, Davanagere.	1,116-00
3.26	S.B. A/c.No.1813101013741 of Canara Bank, Vidhya Nagara Branch, Davanagere	2,220-00
3.27	S.B. A/c.no.554302010000971 of Union Bank of India, PSI Branch, Bengaluru	46-00
9)	The dividend obtained from Shares, Debentures, Bonds:-	

3.28	Maturity amount of LIC policy No.611891097	37,060-00
3.29	Maturity amount of ICICI Insurance Policy No.01132956	1,67,756-30
3.30	The total amount obtained from money back of LIC Policy No.623038508	12,000-00
3.31	The total amount obtained from money back of LIC policy No.623014029	30,0000-00
3.32	The total amount obtained from money back of LIC Policy No.620770059	30,000-00
3.33	The dividend obtained from share trading share A/c.No.925081 holding at HDFC Securities, Davanagere	18,573-53
3.34	The dividend obtained from share trading share A/c.No.1498207 holding at HDFC Securities, Davanagere	470-00
3.35	The IT Returns filed by Smt. Prema during the Assessment year from 2002-03 to 2011-12	-
3.36	The IT Returns filed by Rekha B.U., for the Assessment Year from 2009-10 to 2011-12	1,20,000-00
3.37	The IT Returns filed by B.U.Vidhya for the Assessment year 2011-12	-
	Total ₹	70,30,810-65

As per the corrected sanction order total income in the Table-'C' is ₹70,30,811/-.

162. Now coming to the income of the accused as shown in the Table 'C' at Sl.No.3.1 to 3.37. As per the calculation made by the Investigating Officer the income of the

accused through known source during the check period is ₹70,30,811/- as per the particulars shown in table 3.1 to 3.37.

163. Per Contra the accused contended that the Investigating Officer has not taking into consideration the total agricultural and Horticulture income of the accused and also not considered the other income i.e., land, rent and thereby less valued the income of the accused. According to the accused his total income during the check period through known source of income is ₹2,32,08,620/-. As the accused has disputed his total income, now this court has to scrutinize whether the accused has substantiated his total income. Now we will take up item-wise as mentioned in statement 'C'.

164. Item No.3.1:- This item is concerned, there is no dispute by the accused.

165. Item No.3.2:- As per the Investigating Officer total agricultural income ₹9,35,000/-. According to the accused his total agricultural income was ₹64,40,680/-, thereby the accused contended that the Investigating Officer has less valued the agricultural income in a sum of ₹55,05,680/- there is difference. Learned counsel for the accused brought to the notice of this court that the accused owns agricultural land to an extent of ₹5,25,000/-. The accused produced the partition deed dated 2.9.1986 as per Ex.P.37 relevant page 291 to 293 and the same document marked on behalf of the accused as Ex.D.50. Further, as per another registered Partition deed dated 19.6.2002 marked as Ex.P.20.

166. Further, it is submitted that there is land in Sy.No.32/1 of Bhadehalli village, Tarikere Taluk an extent of

1.39 acres. This has shown in the APR which is mentioned in Ex.P.37 page 301 to 315. Further, another land bearing Sy.No.79/P2 of Bhandre village, Tarikere Taluk as extent of 3.26 acres which is also shown in the APR as per Ex.P.37 and the same document is marked as Ex.D.36. Further, in respect of these two lands i.e., Sy.No.32/1 and Sy.No.79/P2 the agricultural income derived shown in the APR's for the year 2010-11, 2011-12, 2012-13 in Ex.P.37 page 333 to 335 and also for the year 2006-07 to 2012-13 mentioned in Ex.P.37 page 336 to 342 and the same document is marked by the accused as per crop certificate at Ex.D.35.

167. Further, it is argued that wife of accused owns agricultural land i.e., Sy.No.12/P4 an extent of 3.13 acres and Sy.No.12/P5 an extent of 4.10 acres of Kurubarahalli village, Harihara Taluk, and the crop grown in this land not considered by the Investigating Officer and it has mentioned in the APR as per Ex.P.37 page 363 to 378 for the year 1990-91 to 2012-13 and further as per Ex.P.37 page 387 to 401. In respect of these entries the accused also produced the document i.e., RTC's together marked at Ex.D.34.

168. Further, it is argued that the accused has declared his income from agriculture and Horticulture in his APR of ₹19,42,008/- his wife income ₹30,33,106/- total ₹49,75,114/- vide Ex.P.37 page 245 to 283. This document obtained by the Investigating Officer as per Ex.P.38 page 108 to 1120. Despite, these documents obtained by the Investigating Officer, the Investigating Officer has not considered the Agriculture and Horticulture income of the accused and his wife and deliberately shown the very less amount of ₹9,35,000/-.

169. Further, learned counsel for the accused brought to the notice of this court all the deposition of DW-4 the Asst. Director of Horticulture, Harihara, she has spoken about the Horticulture income of the wife of the accused stating that Horticulture income of the wife of the accused is ₹25,64,797/- which is shown in Ex.P.187 page 1934 to 1938. Further, in the cross-examination of PW.14 Manjappa, the Investigating Officer, he stated that he has considered the declaration made by the accused during the check period pertaining to the agricultural income in his APRs 2002-03 to 2011-12. He has also admitted that he has considered the business income, income derived from the rented premises and also hand loans which is produced at Ex.P.14 page 1889 to 1895.

170. Further, learned counsel for the accused brought to the notice of this court in the report of the Superintendent of Police, Lokayukta, submitted to ADGP before submitting the charge sheet it is mentioned that after perusal of the documents and after discrete enquiry the Superintendent of Police, Lokayukta has come to the conclusion that the accused has ancestral property before he joining to the service and he acquired the immoveable assets after taking permission from his higher officers. The relevant portion of the opinion of the Superintendent of Police, Lokayukta in the report submitted to ADGP extracted as under;

“ಗುಪ್ತ ವಿಚಾರಣೆಯಿಂದ ಕಂಡುಬಂದ ಆಸ್ತಿಗಳು ಅವರ ಬಲ್ಲ ಮೂಲಗಳಿಂದ ಆದಾಯಕ್ಕಿಂತ ಹೆಚ್ಚಾಗಿದ್ದ ಬಗ್ಗೆ ಸಹ ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಮತ್ತು ಈ ಮೇಲೆ ನಮೂದಿಸಿದ ಜಾಗಗಳನ್ನು ಹೊಂದಿದ್ದ ಬಗ್ಗೆ ಇಲಾಖೆಯ ಅನುಮತಿಯನ್ನು ಪಡೆದುಕೊಂಡು, ವಿವರವಾಗಿ ಆಸ್ತಿ ದಾಯತ್ವ ಪಟ್ಟಿಯಲ್ಲಿ ನಮೂದಿಸಿದ ಬಗ್ಗೆ

ಕಂಡುಬಂದಿರುತ್ತದೆ. ಆದ್ದರಿಂದ ಅರ್ಜಿಯ ಗುಪ್ತ
ವಿಚಾರಣೆಯನ್ನು ಮುಕ್ತಾಯಗೊಳಿಸಬಹುದು.”

171. The relevant entry mentioned in Ex.P.37 page 89-90 which is also marked as Ex.D.46. Further, it is argued that in the evidence of DW-15 deposed himself, he deposed that he has agricultural land measuring 5.25 acres and his wife also has agricultural land to an extent of 11.20 acres. Further, he stated that the said agricultural land is irrigated land which has borewell and they have grown coconut, Jowar, Raagi, Horsegram, Onion which are all mentioned in the document produced by the accused at Ex.D.34 to D.36. Further, he deposed that in the APR he has specifically mentioned his agricultural income ₹19,42,008/- and his wife agricultural income ₹30,33,106/- at Ex.P.38 page 1081 to 1120.

172. Further, the accused also examined DW.1 who is Agriculture Assistant having Post-graduation in Horticulture. He deposed that he has assessed the agricultural income of the accused and has given report as per Ex.D.4 to D.10. The accused contended that he and his wife both mentioned their agricultural income in the Income Tax returns filed for the year 2001-02 to 2012-13. Further, the accused examined DW.4 Asst. Director of Horticulture, Harihara. She deposed that as per her assessment for the year 1998-2012, total income of the accused through Agriculture and Horticulture is ₹25,64,797/-.

173. DW-4 was cross-examined by the learned Special Public Prosecutor. In the cross-examination she has stated that she has not received any letter from Lokayukta office to assess the income of the accused. However, she has

stated that on the basis of the rates prevailing in the respective years she has considered the income and mentioned in the Ex.P.187. Learned Special PP not confronted any documents to the DW.4 so as to contradict the calculation made by the DW.4 with regard to agriculture and horticulture income of the accused and his wife.

174. Further, DW.1 was also cross-examined by the learned Special PP and in the cross-examination of DW.1 it is suggested to him that in order to help the accused he has given false report which is denied by DW.1. However, learned Special PP has not confronted exact calculation with respect to the horticulture and agriculture income of the accused, so as to say that the report given by the accused is false and incorrect. On going through the APRs produced by the accused in respect of the year 1990-91 to 2012-13 the accused has declared the agricultural income in the APRs which is marked at Ex.P.38, it amount to total ₹49,75,114/-.

175. Learned counsel for the accused brought to the notice of the court with regard to reported judgment ANNAKULANJIM MATHEW V/S. ACIT, wherein it is observed that when the assessee claims that the land was cultivated with certain crops and when the Assessing Officer has taken up the assessment for examination after 3-4 years from the relevant financial year, no material evidence will be available on the land to show that the assessee has cultivated as claimed. When agriculture produce including coconuts is shown then court cannot expect the assessee to produce bills and vouchers which is an impossible task. Therefore, there is no reason to disallow any claim of the assessee.

176. Further, he has relied upon other judgments in the same point reported in KEDARLAL V/S. STATE OF MP, M.KRISHNAREDDY V/S. STATE, STATE OF MP V/S. MOHANLAL SONI V/S. STATE OF KARNATAKA, KRISHNAREDDY V/S. STATE. In all these judgments it is observed that amount reflected in the APR and Income Tax returns can be considered in granting relief to the accused.

177. Taking into consideration that the accused has declared his agriculture and horticulture income in the APRs of the year 1990-91 to 2012-13 this court is of the opinion that the said amount as mentioned in the APR amount to ₹45,79,114/- can be considered as agriculture and horticulture income of the accused which is declared by him in the APR and same is not considered by the Investigating Officer.

178. Learned Special PP argued that in the cross-examination of DW-15 the accused himself has admitted that the Lokayukta police after scrutiny of all the documents has calculated the income of the accused. For better appreciation his evidence are produced as under;

“ಲೋಕಾಯುಕ್ತ ಪೊಲೀಸರು ನಮ್ಮ ಇಲಾಖೆಯಿಂದ ನನಗೆ
ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲನೆ ಮಾಡಿ ನನ್ನ
ಆದಾಯವನ್ನು ನಿಗದಿಪಡಿಸಿದ್ದಾರೆ ಅಂದರೆ ಸರಿ.”

179. Therefore, learned Special PP argued that as the accused DW-15 himself admitted that Lokayukta police considered all the documents and shown the total income, now the accused cannot contend that Lokayukta police have shown the income of the accused lesser than the actual income. In so far as this argument is concerned DW.15 further stated that the Lokayukta Police have not considered his agriculture and horticulture income. It is

suggested to him that he has created the documents which is denied by DW-15. However, in so far as the APRs concerned there is no specific question put to DW-15. Therefore, income of the accused as shown in the document APR Ex.P.38 has taken into consideration which amounts to ₹45,79,114/- as against the income shown by the prosecution at ₹9,35,000/-. Hence, the value of item No.3.2 is considered by the court at ₹**45,79,114/-**.

180. Item No.3.3:- It is concerned to house rent received by the accused, as per the Investigating Officer sum of ₹3,46,010/- as per AGO ₹4,32,512/-. Therefore, accused contended that there is difference of ₹86,502/- and this ₹86,502/- to be added as income of the accused. Learned counsel for the accused in the written arguments has mentioned that as per Ex.P.69 (in the written arguments wrongly mentioned as Ex.P.59), document 59 page 1668 to 1677 it is mentioned about the house rent stating that house newly constructed in the year 2003-08 and therefore not incurred any amount towards maintenance. He has argued that as the house was newly constructed house as contended by the Investigating Officer 20% to be deducted towards maintenance and repair charges cannot be considered. Therefore, he argued that entire amount of ₹4,32,512/- to be added as his income. However, on going through the document Ex.P.69, it contains details of electricity charges incurred and therefore, the Investigating Officer has come to the conclusion that though the total rent received by the accused by ₹4,32,512/-, 20% deducted from the said rent towards maintenance charges, this court is of the opinion that the Investigating Officer is right in deducted 20% of the maintenance charges. Though, learned counsel for the

accused argued that this house newly constructed house and 20% of repair charges cannot be deducted, however, taking into consideration that the house constructed in the year 2003 and it was rented up to 2008, it is just and proper that 20% of maintenance charges to be deducted and therefore calculation made by the Investigating Officer that house rent received by the accused shall be taken as ₹3,46,010/-. Therefore, item No.3.3 is considered as **₹3,46,010/-**.

181. Item No.3.4 to 3.7:- These items are concerned there are no disputes by the accused.

182. Item No.3.8:- This is concerned to the hand loan availed by the accused from Sangaiah Adivappa Hiremath, A.V.Basavarajappa, S.Maheshwarappa and M.H.Siddaramappa. The Investigating Officer has shown the hand loan availed by the said 4 persons are '0' and not taken into consideration of income of the accused.

183. Learned counsel for the accused argued that the Investigating officer ought to have considered the loan availed by the accused from the said four persons. According to the accused he has availed loan of ₹2 lakhs from Sangaiah Adivappa Hiremath. Learned counsel for the accused brought to the notice of this court that the prosecution examined the said Sangaiah Adivappa Hiremath as PW.7. PW.7 has deposed that he paid ₹2 lakhs to the accused at Ex.P.12. I have gone through the evidence of PW.7. PW.7 by name Sangaiah Adivappa Hiremath deposed that he worked in the Forest Department at Dharwad as Manager from 1998-2005. At that time, he was in acquaintance with accused and he has given his statement before the Lokayukta police as per Ex.P.12. I

have gone through Ex.P.12. In Ex.P.12 is statement made by PW.7 before the Investigating Officer, Lokayukta wherein he has stated that he has paid ₹1,00,000/- to the accused on 30.8.2002 through cheque bearing No.227240 and further he has paid another ₹1,00,000/- on 30.5.2005 through cheque bearing No.244756 in all he has paid ₹2 lakhs to the accused. As the PW.7 himself has stated that he has paid ₹2 lakhs to the accused through cheque, then the Investigating Officer ought to have considered said sum of ₹2 lakhs as income of the accused. Because, the accused has explained the said amount which is acquired by him through known source of income as provided U/S.13(1)(e) of P.C.Act. Therefore, sum of ₹2 lakhs considered as hand loan received from S.A.Hiremath by the accused.

184. Coming to the hand loan said to have received by the accused from A.V.Basavarajappa. According to the Investigating Officer has not considered the amount of ₹15,000/- said to have received by the accused from A.V.Basavarajappa. Learned counsel for the accused drawn the attention of this court to Ex.P.37 page 646. I have gone through the said document which is an order of Chief Conservative Officer, permitting the accused to purchase BDA site wherein source of income mentioned as interest free hand loan (ಬಡ್ಡಿ ರಹಿತ ಕೈ ಸಾಲ ರೂ.15,000/-).

185. Further, learned counsel also brought to the notice of this court document Ex.D.56 which is an affidavit of A.V.Basavarajappa wherein he has stated that he has paid ₹15,000/- to the accused in the year 2001-02 for purchase of BDA site. In so far as this document is concerned learned Special PP not cross-examined and no contrary

evidence elicited. Therefore, the amount of ₹15,000/- to be considered as hand loan received by the accused and considered as income of the accused.

186. Hand loan obtained by S.Maheshwarappa of ₹3,95,330/- and loan obtained from M.H.Siddaramappa of ₹4,08,439/- are concerned, according to the accused he has received hand loan of ₹3,95,330/- from S.Maheshwarappa through bank transfer. The Investigating Officer has not taken all these amount as income of the accused. Learned counsel for the accused argued that as per Ex.P.37 relevant page 567 the said Maheshwarappa was stood as security for the loan availed by the accused of ₹5 lakhs to purchase BDA site and the said Maheshwarappa has repaid the said amount of ₹3,95,330/- towards the said loan of ₹5 lakhs. Therefore, it is argued that the said sum of ₹3,95,330/- to be added as income of the accused.

187. The accused has produced the document Ex.D.52 i.e., affidavit of S.Maheshwarappa and M.H.Siddaramappa, in so far as these two amounts are concerned, at the time of discussion of item No.2.6 i.e., site purchase by the DGO, this court has opined that the amount given by Maheshwarappa and Siddarameshwara cannot considered. Therefore, the arguments of the learned counsel for the accused that these amount of ₹3,95,330/- + 4,08,439/- to be taken as income of the accused **cannot be considered**.

188. Item No.3.9:- This is concerned to the hand loan obtained by the accused from B.C.Devaraj and B.Channappa. As per Investigating Officer this hand loan mentioned as ₹3,90,000/-. In the written arguments accused contended that according to him the Investigating Officer has dropped ₹64,000/- received by wife of the

accused from B.Channabasappa. However, as the Investigating Officer has considered item No.3.9 of ₹3,90,000/-, this amount is considered as income of the accused as there is no proper account mentioned in the notes of arguments at item No.3.9 annexure 16 page 69. Therefore, item No.3.9 considered as **income of accused ₹3,90,000/-**.

189. Item No.3.10:- It is the hand loan received by the accused from Manjunath.S.C. The Investigating Officer has shown as '0'. However, the accused contended that Investigating Officer has not shown the hand loan obtained from S.C.Manjunath of ₹81,000/- by Rekha D/o accused. But the Investigating Officer has not considered the said sum of ₹81,000/- as income of the accused.

190. Learned counsel for the accused brought to the notice of this court that Ex.D.57, in so far as this amount is concerned, the accused has examined the said Manjunath.S.C. as DW.7 and also produced affidavit of daughter of accused as Ex.D.57. I have gone through evidence of DW.7. DW.7 has deposed that the wife of the accused is his aunt, he is an Engineer in Computer Science, he joined company in the year 2008 and his salary i.e., yearly package of ₹12 lakhs. In the year 2009, he paid ₹1,25,000/- in the year 2010 he paid ₹2 lakhs, in the year 2011 ₹50,000/-, in the year 2012 ₹55,000/- to his aunt towards education expenses of children of the accused. It is mentioned in Ex.P.37 page 692 and 693 i.e., account extract of S.C.Manjunath. I have gone through the account extract and the same is marked as Ex.D.22.

191. I have gone through Ex.D.22 and Ex.P.37. Ex.D.22 is the account extract and on 28.1.2011 there is mention of

transfer of ₹10,000/- through NEFT to Rekha B.U., similarly on 4.3.2011 and on 5.10.2011 ₹11,000/- and ₹60,000/- transfer to Rekha B.U. through NEFT, thereby total ₹81,000/- transferred to daughter of accused by said S.C.Manjunath who is not considered by the Investigating Officer. DW.7 was cross-examined by the learned Special PP. In the cross-examination it is suggested to DW.7 that he has transferred the said amount to the said Rekha B.U. as per Ex.D.21 and D.22 in collusion with accused and he took the amount from the accused which is denied by DW.7.

192. In so far as creating this document Ex.D.21 & D.22 i.e., account extract pertaining to the Bank account of the said S.C.Manjunath appears to be incorrect as contended by the prosecution because in the year 2011 when the amount said to have transferred to said Rekha B.U., this accused not expected initiation of this proceedings against him. Therefore, from the documents i.e., Ex.D.21, D.22, Ex.P.37 and the evidence of DW.7 this amount of **₹81,000/- to be considered as income of the accused** in item No.3.10.

193. Item No.3.11 to 3.15:- These items are concerned there are no disputes by the accused.

194. Item No.3.16:- This is concerned to S.B.Account interest. Investigating Officer has mentioned ₹1,500/-, but the accused contended that the Investigating Officer has shown less amount of ₹101/-. In the notes of argument the accused has shown the calculation of interest accrued as per pass sheet vide Ex.P.37, P.55. I have gone through the same. Interest accrued is as per calculation of the accused

₹1,601/- and the same is considered, thereby item No.3.16 is considered as **₹1,601/-** instead of ₹1,500/-.

195. Item No.3.17:- The Investigating Officer has calculated at ₹2,346/- interest on S.B.Account, whereas, as per the accused the interest accrued was ₹3,871/-, thereby there is difference of ₹1,525/-. As per bank pass sheet Ex.P.55, calculation made was same is considered, thereby item No.3.17 as per Court calculation **₹3,871/-** instead of ₹2,346/-.

196. Item No.3.18:- This is concerned to interest accrued on S.B.Account at HDFC Bank, the Investigating Officer has shown ₹3,332/-. But according to the accused this amount is ₹8,129/- thereby there is difference of ₹4,797/-. The learned counsel for the accused submitted that as per Ex.P.56 bank pass sheet, he has calculated the amount which comes to ₹8,129/-. I have gone through pass sheet and calculation made by the accused of **₹8,129/-** is considered at item No.3.18.

197. Item No.3.19:- This is concerned to interest from HDFC bank S.B.Account, the Investigating Officer has shown ₹175/-. However, as per the calculation made by the accused, interest accrued was ₹713/-, pass sheet produced at document No.41, page 1456-1486 which is taken into consideration. Hence, item No.3.19 is considered as **₹713/-**.

198. Item No.3.20:- This is concerned to interest on S.B.Account as per Investigating Officer ₹1,132/-, but as per accused it is ₹2,973/- and the accused has shown calculation as per bank pass sheet Ex.P.56, document No.41, page 1456-1486. Therefore, calculation made by

the accused is taken into consideration and item No.3.20 is valued **₹2,973/-**.

199. Item No.3.21:- This is concerned to interest on S.B.Account, the Investigating Officer has shown ₹254/-, but according to accused it is ₹675/-. Accused has shown the pass sheet, document No.41 page 1456 - 1486, it is considered as **₹675/-**.

200. Item No.3.22:- This is not disputed by the accused.

201. Item No.3.23:- This is concerned to interest, the Investigating Officer has shown ₹2,252/-. But according to the accused it is ₹4,884/-. Learned counsel for the accused has shown the interest earned in detail calculation amounting to ₹4,884/-. Hence, the said amount is taken into consideration.

202. Item No.3.24:-The interest accrued amount available in S.B.Account shown as ₹2,339/-. However, as per accused interest accrued of ₹2,491/-, the detailed calculation shown, hence, ₹2,491/- is considered.

203. Item No.3.25 to 3.34:- These items are concerned there is no dispute by the accused.

204. Item No.3.35:- The income pertaining to wife of accused Smt.Prema for the year 2002-03 to 2011-12 as shown in the Income tax returns, the Investigating Officer has not considered the income of Smt.Prema and shown as '0'. However, as per the calculation made by the accused, wife of the accused had ₹52,30,374.57 for the year 2002-03 to 2012-13 as shown in Ex.P.37. The learned counsel for the accused argued that the wife of the accused running DTP business and she has duly accounted for the respective assessment years. As per Income Tax returns

total profit shown for the respective years as ₹52,30,374.57. In this regard, the prosecution has examined PW.3 by name Sridhar, Income Tax Officer. He deposed that Lokayukta police has sent requisition to furnish the Income tax returns in respect of the accused and wife of the accused Smt.Prema and accordingly he has furnished the said Income Tax returns which is marked as Ex.P.6. As per the Income Tax returns for the year 2002-03 to 2012-13 the total net profit shown as ₹35,26,679/-.

205. Item No.3.36:- This item is concerned there is no dispute by the accused.

206. Item No.3.37:- The business income of accused daughter Vidya B.U., the Investigating Officer has shown '0', but accused has stated that she has declared her income in ITR for the year 2011-12 of ₹**1,55,910/-**. So, it is considered as income.

207. Learned counsel for the accused argued that the Investigating Officer has left over some of the items which are required to be considered, but not considered and hence, it is argued that those items to be considered as income of the accused as mentioned in table 'C'. In the written arguments submitted by the learned counsel for the accused in all 11 items shown as left over items. Now, we will take up those 11 items for discussion whether those 11 items to be considered as income of the accused.

208. Left Over Item No.1:- This is concerned to garage rent of ₹48,000/-. It is argued by the learned counsel for the accused that the wife of accused Smt.M.S.Prema received the garage rent from one Syed, said Syed examined by the accused as DW.10 and his affidavit got marked by the prosecution as Ex.P.24. Further, it is stated

that in the Income Tax returns filed by the wife of the accused for the year 2002-03 to 2011-13 she has shown the rent received by her for the respective years. Therefore, it is the argument of the learned counsel for the accused that the said ₹48,000/- shall be considered as income of the accused to be shown in table 'C'.

209. I have gone through the evidence of DW.10. DW.10 by name Syed, he deposed that he was tenant in the garage belonged to wife of accused and he paid rent at ₹1,000/- per month and in all he paid ₹48,000/- rent. DW-10 was cross-examined by the Special PP and in the cross-examination it is suggested to him that he was not a tenant in the said garage, the said suggestion denied by DW-10. It is relevant to mention that as per the say of the accused his wife filed IT returns, wherein she has shown rent received. In this case, the income of the wife at item no.3.35 of table 'C' we have calculated on the basis of the IT returns or net profit shown by her. Therefore, this court is of the opinion that this amount shown as rent received must be included in the said IT returns and therefore, this amount again cannot be considered as left over income.

210. Left Over Item No.2 & 3:- Hand loan of ₹3,95,330/- & ₹4,08,439/- received by the accused from S.Maheshwarappa and M.H.Siddaramappa respectively. This income cannot be considered as left over income as discussed in preceding paragraph while coming to finding in respect of items shown in table 'B'. Therefore, this amount of ₹3,95,330/- & ₹4,08,439/- also cannot be considered as left over income.

211. Left Over Item No. 4 to 8:- ₹3,05,168/- received by wife of accused from B.Eshwarappa, hand loan of

₹2,80,000/- received by wife of accused from S.B.Naveen, Gift of ₹95,000/- received by wife of accused from M.H.Siddaramappa, Gift of ₹1,87,000/- received by wife of accused from her father M.H.Siddaramappa, Gowri festival gifts of ₹37,950/- received by wife of accused from her brothers.

212. According to the accused these items to be considered as income of the accused in the table 'C'. In that regard, the accused examined himself as PW.15 and affidavit of B.Eshwarappa marked as Ex.D.54, and affidavit of wife of accused marked as Ex.D.40, deposition of DW.8, affidavit of S.B.Naveen Ex.D.23, deposition of DW.3, affidavit of M.H.Siddaramappa Ex.D.17 & D.18, deposition of wife of accused DW.14 and further as per Ex.P.37 refers all transactions, however, it is very pertinent to note that as the income of the wife of the accused already considered by this Court in the table 'C' at item No.3.35, on the basis of IT returns filed by her, again this court is of the opinion that these items cannot be considered as left over items and to be included in the table 'C'. Therefore, the claim as mentioned in the written arguments cannot be considered.

213. Left Over Item No.9:- Accused contended that one Kum.Latha was residing in the house of the accused and wife of the accused has calculated living expenses of said Latha at ₹2,40,000/- which is not considered as income of the accused. The affidavit of said Latha available in the document Ex.P.37 and original marked by the accused at Ex.D.59. Further, wife of the accused also filed affidavit at Ex.D.40 and Maheshwarappa also filed affidavit at Ex.D.55. In so far as this income is also concerned as wife of the accused filed IT returns and she must have included this

income in the said IT returns and on the basis of the IT returns this court calculated the income of the wife of the accused and already added in the table 'C'. Therefore, this income again cannot be considered as left over income.

214. Left Over Item No.10:- Vehicle insurance claim amount of ₹21,300/-. Again come to this item as the wife of the accused filed the IT returns wherein she has shown the details about the vehicle, therefore again this amount cannot be considered as income of the wife of the accused to be mentioned in table 'C'.

215. Left Over Item No.11:- ₹1,15,000/- stating that this hand loan received by the accused from B.Eshwarappa. In so far as this item is also concerned it is already discussed while discussing items in respect of table 'B'. Therefore, again this hand loan cannot be considered as income of the accused. Therefore, left over items No.1 to 11 as it is already covered in the table 'C' with regard to calculation of the income of the wife of the accused and also the income of the accused, the items shown as left over item No.1 to 11 and its value cannot be considered as income of the accused and hence, these items are rejected.

216. Hence, on calculation made by this court as per above discussion, total income as per table-C arrived at **Rs.1,45,09,520/-**.

217. Fourthly, we will come to Table-D;

Statement 'D' shows the abstract/list of expenditure pertaining to DGO and his family members as shown in the charge sheet which is reproduced for convenience reference:-

Sl. No.	Particulars of Expenditure	Value (in Rupees)
1)	Insurance Policies:-	
4.1	HDFC Insurance Policy bearing No.13516453 (Annual Installment of ₹50,000-00)	1,50,000-00
4.2	HDFC Insurance Policy bearing No.13345992 (Half yearly installment of ₹1,25,000/-)	7,50,000-00
4.3	Metlife India Insurance Policy bearing No.1200400049409 (Annual Installment of ₹5,333-73)	48,003-57
4.4	Metlife India Insurance Policy bearing No.1200400037121 (Quarterly installment of ₹1,733-00)	62,420-00
4.5	ICICI Prudential Insurance Policy bearing No.15223157 (Annual Installment of ₹1,00,000-00)	2,00,000-00
4.6	ICICI Prudential Insurance Policy bearing No.15261653 (Annual Installment of ₹1,00,000-00)	2,00,000-00
4.7	Birla Sun Life Insurance Policy No.005387340 (Annual Installment of ₹1,00,000-00)	1,00,000-00
4.8	Bajaj Allianz Insurance Policy No.0058616162 (Annual Installment of ₹10,000-00)	50,100-00
4.9	LIC Policy No.621014143 (Annual Installment of ₹2,021-00)	43,035-30
4.10	LIC Policy No.637169078(Half Yearly Installment of ₹1,344-00)	24,192-00
4.11	LIC Policy No.637108362 (Half Yearly Installment of ₹1,280-00)	24,320-00
4.12	LIC Policy No.620770059 (Half Yearly Installment of ₹1,593-00)	32,673-00
4.13	LIC Policy No.623014029 (Half yearly installment of ₹1,646-00)	65,840-00

4.14	LIC Policy No.623038508 (Half Yearly Installment of ₹678-00)	27,120-00
4.15	LIC Policy No.621151987 (Half Yearly Installment of ₹3,011-00)	90,310-00
4.16	LIC Policy No.622979276 (Half Yearly installment of ₹2,408-00)	84,308-00
4.17	LIC Policy No.611891103 (Half Yearly Installment of ₹ 1,508-00)	45,240-00
4.18	LIC Policy No.630740617	48,220-00
2)	Income Tax:-	
4.19	Income Tax paid by wife of DGO	41,276-00
3)	House Tax (house wise)	
4.20	The payment of tax towards site No.1826/3, LIC Colony, Davanagere	2,275-00
4.21	The payment of tax towards site No.1826/4, LIC Colony, Davanagere.	2,240-00
4.22	The payment of house tax towards house No.1826/5, LIC Colony, Davanagere	27,670-00
4.23	The property tax paid towards site No.3 (measuring 15X24 meters) situated at 6 th block, Banashankari, 6 th stage, Bengaluru for the year 2011-12	12,860-00
4)	Water Tax/Cess:-	
4.24	The payment of water tax for the tax connection to House No.1826/5 situated at LIC Colony, Davanagere	4,500-00
5)	Payment towards Insurance of car/two wheelers:-	
4.25	The payment of insurance towards Honda Activa two wheeler bearing No.OJ-08-1704-1802-00005352	605-00
4.26	The payment of insurance towards TVS Vigo two wheeler (bearing No.KA-17/EC-7725) bearing policy	1,864-00

	No.240800/31/11/01/00005011	
4.27	The payment of insurance towards Maruthi Suzuki Swift Design Car bearing Reg.No.KA-17/M-9865 of United India Insurance Policy No.240800/31/10/01/00007448	15,855-00
6)	The fuel charges (vehicle wise)	
4.28	The total amount towards life time insurance, registration and other charges of Hero Aactiva two wheeler bearing Reg.No.KA-25/U-8212	2,920-00
4.29	The approximate total maintenance cost towards Honda Aactiva two wheeler bearing Reg.No.KA-25/U-8212	9,500-00
4.30	The total amount towards lifetime insurance, registration and other charges of TVS Vigo two wheeler bearing Reg.No.KA-17/EC-7795	5,002-00
4.31	The fuel charges of TVS Vigo two wheeler bearing Reg.No.KA-17/EC-7795	15,810-00
4.32	The total charges of lifetime tax and registration towards car bearing Reg.No.KA-17/M-9865	83,164-00
4.33	The fuel charges of Maruthi Suzuki Swift car bearing Reg.No.KA-17/M-9865	2,96,470-65
8)	Electricity Charges:-	
4.34	The temporary electric connection charges towards House No.1826/5, LIC Colony, Davanagere bearing No.TP5642	4,800-00
4.35	The application fee for AEH-23163	50-00
4.36	The electricity charges of AEH-23163 during check period	66,641-00
9)	Telephone charges:-	

4.37	The charges of land line bearing No.263355	32,884-76
10)	Mobile Phone charges	-
11)	Education expenses of Children:-	
4.38	The Education expenses of Kumari Rekha B.U., from 1 st Standard to M.Tech.	7,14,318-00
4.39	The Education expenses of Kumari Vidya B.U., from 1 st Standard to MMBS	12,37,700-00
12)	Unverifiable Charges:-	
4.40	The approximate family expenses of accused and his family members	11,16,928-00
13)	Repayment of loans:-	
4.41	Interest paid to LLF 10/1 fence loan	10,567-00
4.42	Interest paid to LLF 45/1 drip irrigation loan	15,327-00
4.43	Repayment of interest to the gold pledge loan A/c.No.1927002000 321301 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	30,058-00
4.44	Repayment of interest to the gold pledge loan A/c.No.1927002000 310001 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	20,825-00
4.45	Payment of interest to the Personal Loan No.1927001600734301 of Karnataka Bank Limited, KUD Circle Branch, Dharwad (The loan account was closed within check period)	20,142-00
4.46	Payment of interest to the vehicle loan bearing No. 19270016 00711001 of Karnataka Bank Limited, KUD Circle Branch, Dharwad.	34-00
4.47	Payment of interest to the gold	19,752-00

	loan bearing No.1927002000301501 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	
4.48	Repayment of principal amount and interest to the car loan bearing No.1927001600754201 of Karnataka Bank Limited, KUD Circle Branch, Dharwad (Principal ₹3,40520-00+ interest ₹3,27,007-00)	6,67,527-00
4.49	Repayment of interest to the house loan No.1927001800030201 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	10,54,568-00
4.50	Payment of interest to the loan on the basis of KGID policies	2,512-00
14)	Other expenses:-	
4.51	The registration fee towards House No.1826/5, situated at LIC Colony, Davanagere measuring 40X60 feet	1,580-00
4.52	The registration fee paid towards 2 sites bearing Nos.1826/3 & 4 measuring 40X60 feet situated at LIC Colony, Davanagere.	5,814-00
4.53	The registration fee and Stamp duty paid towards purchase of site No.3 situated at 6 th block, 6 th stage, Banashankari, Bengaluru purchased from BDA, Bengaluru measuring 15X24 meters on 25/11/2002 by DGO	88,950-00
4.54	The registration fee and stamp duty paid towards purchase of site No.227 (Block No.61) at Sadhunavar Layout, Dharwad	10,765-00
4.55	The registration fee towards purchase of landed properties bearing Sy.No.12P measuring 11.20 acres situated at Kurubarahalli,	9,922-00

	Harihara Taluk.	
4.56	The registration fee towards purchase of site bearing No.7899/1310 situated at Tarikere by S.M.Prema M.S., and thereafter it was sold	546-00
4.57	The fee paid towards S.B. Account No.1813101013272 of Canara Bank, Vidhya Nagara Branch, Davanagere	160-00
4.58	The tax paid towards the landed properties bearing Sy.No.12P measuring 11.20 acres situated at Kurubarahalli village, Harihara Taluk.	140-00
4.59	The licence fee paid towards construction of house bearing No.1826/5 at LIC Colony, Davanagere.	1,822-00
4.60	Fee paid towards private estimation of building	3,700-00
4.61	Fee paid towards private estimation of building	3,400-00
4.62	The expenditure charges of digging bore well and erecting fence to Sy.No.12P situated at Kurubarahalli village	2,40,384-00
4.63	The charges towards daily newspapers	2,385-00
4.64	The expenditure charges of refills of domestic cylinders (Bharath Gas) bearing No.22411.	6,314-14
4.65	The fee paid towards life member and annual subscription to Officers' Club, Davanagere	18,000-00
4.66	The fee paid towards two spectacles	4,840-00
4.67	The rent paid towards rental houses at Bidar, Narayanapura and	1,23,250-00

	Dharwad where the DGO was working	
4.68	The charges paid towards annual maintenance and business of Demat Account DP ID-IN301151 (Client ID-26802597)	7,164-61
4.69	The charges paid towards annual maintenance of Demat Account DP ID-IN301549 (Client ID-33797475)	158-87
4.70	The membership fee paid to Harihara Taluka PLD Bank Limited, Harihara	500-00
4.71	The loss sustained towards share business bearing Share No. POA70 of Kotak Securities	14,869-45
4.72	The synchronization fee paid towards power plant installed to Bore well bearing KHIP No.2963 and 2964 in landed properties situated at Kurubarahalli village	20,000-00
4.73	The wages paid to Shafi Ahamed who worked as Security in Garden land property, Kurubarahalli village	40,000-00
	Total ₹	81,82,672-43

218. Item No.4.1, 4.13, 4.14, 4.15, 4.16:- HDFC Vima policy premium, the Investigating Officer has shown ₹1,50,000/-, 4.13 shown as ₹65,840/-, 4.14 shown ₹27,120/-, 4.15 shown ₹90,130/- and 4.16 shown ₹84,308, in total ₹2,67,398/-. Sum of ₹44,444/- already deducted in gross salary and therefore this amount of ₹44,444/- shall be deducted from the expenditure as it amount to duplication of expenditure. In this regard, it is brought to the notice of this court that there were 4 LIC policies, premium was paid on monthly basis through salary deduction as per the document produced by the

prosecution at Ex.P.37. It is argued that as the LIC premium was deducted from the salary statement, again this amount cannot be shown as expenditure. However, as per the salary income shown in statement 'C' it is mentioned as net salary (ನಿವ್ವಳ ವೇತನ) and therefore, said LIC premium deductions not included in the said salary and hence, now it is considered as expenditure of the accused to be shown in table 'D', therefore, the amount shown of ₹1,50,000/- as mentioned at item No.4.1 is considered as expenditure. The contention of the accused cannot be accepted as the amount as shown by the Investigating Officer at Item No.4.1, 4.13 to 4.16 are taken as expenditure respectively.

219. Item No.4.2 to 4.12:- These items are concerned the there is no dispute by the accused.

220. Item No.4.17 to 4.25:- These items are concerned, there is no dispute by the accused.

221. Item No.4.26, 4.27, 4.30, 4.32 & 4.33:- LIC premium of ₹1,864/- pm TVS Wego two wheeler vehicle; in item No.4.27 - LIC premium of ₹15,855/- of Maruti Suzuki Swift Car vide Ex.D.40, in item No.4.30 the life time tax on the said TVS Wego vehicle and in item No.4.32 the life time tax on the said Swift Car and in item No.4.33 the life time tax ₹29,600/- on Maruti Dzire car as per Ex.D.40. The accused contended that these vehicles were purchased by his wife and she has paid premium out of her own business income. Hence, this expenditure to be dropped. In that regard, accused has produced the affidavit of his wife at Ex.D.40 and Income Tax returns submitted as per Ex.D.37 However, it is pertinent to note that these expenditures to be considered as expenditure of the accused, because, the

income of the wife of the accused shown as income of the accused as per table 'C' at item No.3.35.

222. Item No.4.28, 4.29, 4.31, 4.34 to 4.36:-These items are concerned, there is no dispute by the accused.

223. Item No.4.37:- This is telephone expenditure. According to the accused, this telephone belonged to his wife, and these charges borne by his wife. Therefore, this cannot be shown as expenses. Telephone charges made by the wife of the accused out of her business income. However, as the income of the wife of the accused shown as income of the accused in table 'C', this expenses to be shown as expenses of the accused and hence, this amount of ₹32,885/- considered as expenses.

224. Item No.4.38 & 4.39:- This is education expenses of the daughters of the accused. The Investigating Officer has shown education expenses of daughter by name Rekha B.U. is ₹7,14,318/- and education expenses of Vidya B.U, shown as ₹12,37,700/-, total ₹19,52,018/-. Learned counsel for the accused argued that as per his calculation education expenses were ₹7,73,333/- and the Investigating Officer has shown excess amount of ₹11,78,685/-, therefore, it is argued that this 11,78,685/- to be deducted from the expenditure. Learned counsel for the accused further argued that education loan availed from Canara Bank and business and agricultural income of the wife of the accused which were declared in IT returns as produced in Ex.D.37 and also vide Ex.P.37 and therefore said sum of ₹11,78,685/- to be deducted from the expenditure. However, as the income of the wife of the accused considered, these education fees paid by the wife of the accused or the accused to be treated as expenditure.

Hence, the arguments of the learned counsel for the accused that because it is paid by his wife and he has only paid ₹7,73,333/- cannot be accepted and whatever the amount shown towards education expenses as mentioned by the Investigating Officer in total ₹19,52,018/- to be considered as expenditure.

225. Item No.4.40:- The family expenses: According to Investigating Officer the accused spent ₹11,16,928/- towards family maintenance during the check period. However, the accused contended that the Investigating Officer has shown excess amount and the family maintenance expenses according to him was only ₹1,50,000/- during the check period and therefore it is argued that sum of ₹9,66,928/- which is difference amount to be excluded. Learned counsel for the accused brought to the notice of this court about the evidence of PW.9.

226. PW.9 is Assistant Director deposed that he was working as Deputy Director, Statistical Section (ಸಾಂಖ್ಯಿಕ ವಿಭಾಗ) in Karnataka Lokayukta, and he has calculated the family expenses of the accused and prepared the statistics and given report as per Ex.P.14 (Document No.107, page No.1889 to 1895). It is the argument of the learned counsel for the accused that when PW.9 was cross-examined he has stated that he has not produced the calculation sheet. I have gone through the cross-examination. It is elicited that he has not produced the calculation sheet and further he has also not mentioned whether the expenses as mentioned in the table amount to net income or gross income. I have gone through the report Ex.P.14 given by PW.9 with regard to family maintenance expenses. In Form No.2 in case with Ex.P.14

PW.9 has mentioned the net income of the family of the accused including the wife of the daughters. Further, Ex.P.37 it is the reply submitted by the accused to the statement issued to him and he has also made detailed calculation and it is contended that after issue of this statement by the accused as per Ex.P.37 (document No.15 page 75 to 1080), the Investigating Officer has not made further investigation on this aspect.

227. Further, it is argued that the accused has agricultural land wherein he used to grow vegetables, pulses, grains etc., from his land and thereby there was no necessity for the accused to purchase these things and therefore, the costs incurred on these items to be deducted from the expenditure. Further, it is argued that the accused was Executive Officer and he was to be on tour for 15 days in a month. Therefore, it is argued that for the said 15 days the expenses for maintenance to be deducted and it is argued that as observed in the Bahaddur Desai's case 40% of deduction to be given on the valuation made by PW.9 towards family maintenance expenses. However, on going through the check period and family members in the family of the accused and further it is mentioned that accused family used to have food both vegetarian and non-vegetarian. On going through the evidence of PW.9 and the documents filed, this court is of the opinion that the Investigating Officer has made reasonable calculation with regard to the family maintenance expenses amounting to **₹11,16,928/-**.

228. Item No.4.41:- Interest paid towards PLD bank loan. The Investigating Officer has shown at ₹10,567/-. As per the accused it is ₹1,324/- only. Therefore, difference of ₹9,243/- to be deducted from the expenditure. In that

regard, learned counsel has brought to the notice of this court the details of the loan account vide Ex.P.27 (document No.108, page No.1896-1897). According to the accused total interest ₹4,297/- and out of ₹4,297/- the interest is waived off to ₹2,973/-. Therefore, sum of ₹1,324/- only is considered as expenditure.

229. Item No.4.42:- The interest paid towards PLD bank loan, as per the Investigating Officer it is mentioned as ₹15,327/-, but as per accused it is ₹3,091/-. Therefore, learned counsel for the accused argued that ₹12,236/- which is difference amount to be deducted from the expenditure. In that regard he has brought to the notice of the court Ex.P.27, document No.108, relevant page 1897 and calculation shown total interest ₹6,973/- interest waived off ₹3,882/-, therefore, amount of ₹3,091/- considered as expenditure at item No.4.42.

230. Item No.4.44, 4.44 & 4.47:- These are interest paid on the gold pledged loan to Karnataka Bank Limited. As per Investigating Officer item No.4.43 shown as ₹30,058/-, in item No.4.44 ₹20,825/- and in Item No.4.47 ₹19,752/- in total ₹70,635/-. According to the accused total interest paid on this gold loans amounting to ₹87,933/- i.e., the more than the amount shown by the Investigating Officer. Learned counsel for the accused argued that this interest paid by his wife out of business income of her own business and she has accounted in respect of years of Income Tax returns as bank interest. Therefore, this expenditure cannot be treated as expenditure of the accused. However, as the business income of the wife of the accused considered as income of the accused. Therefore, this expenses also to be considered as expenses of the accused. Therefore, Item No.4.43 & 4.44 and 4.47 in

total considered as ₹87,933/- as accused himself calculated.

231. Item No.4.45 & 4.46:- These item are concerned, there is no dispute by the accused.

232. Item No.4.50:- Interest paid on the KGID policy of ₹2,512/-. Accused contended that this interest paid towards loan of KGID policies is accounted in salary deductions and therefore this amount cannot be considered as expenditure, it amounts to duplication. However, as the salary income of the accused shown as net salary, therefore, this interest paid by the accused is to be considered as his expenditure. Accordingly, item No.4.50 is considered as ₹2,512/- as shown by the Investigating Officer.

233. Item No.4.51 to 4.61:- These items are concerned, there is no dispute by the accused.

234. Item No.4.62:- This is concerned to borewell expenditure installed in Sy.No.12/P, Kurubarahalli village, the Investigating Officer has shown ₹2,40,384/- as expenses.

The Investigating Officer has shown ₹2,40,384/- spent towards borewell and fencing in respect of the land bearing Sy.No.12/P situated at Kurubarahalli village. It is the contention of the accused that the Investigating Officer has incorrectly shown said amount of ₹2,40,384/- towards expenses, but the accused has not made any expenses for borewell and fencing and therefore, it is argued that difference amount of ₹2,40,384/- to be deducted from the expenditure. In that regard, learned counsel for the accused has brought to the notice of this court that the land bearing Sy.No.12/P of Kurubarahalli village purchased

before the check period i.e., in the year 1998, and at the time of purchase of the land, borewell was already exceeded and further so far as fencing is concerned loan obtained in PLD bank and therefore, it is argued that this amount cannot be included as expenditure.

235. Learned counsel for the accused has drawn the attention of this court of the evidence of PW.8. PW.8 is an Assistant Engineer, he has deposed that he has assessed the expenditure incurred for borewell and fencing to the land bearing Sy.No.12/P and he has given report as per Ex.P.13. I have gone through Ex.P.13. PW.8 has shown the calculation how he came to figure of ₹2,40,384/- that there are two borewells in the land, each costs ₹50,000/- and for erection of fencing granite poles used wire cage (ತಂತಿ ಬೇಲಿ), total costs of ₹1,40,720/-. PW.8 was cross-examined by the accused counsel. In the cross-examination PW-8 has stated that he cannot say in which year the borewell dug in the said land and further he cannot say who informed him about the fencing in the land by whom, for better appreciation his evidence are reproduced as under;

“ಯಾವ ವರ್ಷ ಕೊಳವೆ ಬಾವಿಗಳನ್ನು ತೆಗೆದಿದ್ದಾರೆ ಎನ್ನುವುದಕ್ಕೆ
ಹಾಗೂ ಮುಳ್ಳು ತಂತಿ ಬೇಲಿಯನ್ನು ಹಾಕಿರುವುದಕ್ಕೆ ಯಾರು
ಮಾಹಿತಿ ಕೊಟ್ಟರು ಎಂದು ಹೇಳಲು ಬರುವುದಿಲ್ಲ.”

236. Further, he has admitted that as per the RTC extract wherein it is mentioned that 2 borewells were dug in the year 1995-96. It is the argument of the learned counsel for the accused that wire cage fencing, drip irrigation was done at the costs of ₹35,000 & ₹40,000/- respectively by availing loan from PLD bank. I have gone through Ex.P.27, it is a letter written by Lokayukta police to the PLD Bank in order to show that the wife of the accused took loan from

the PLD bank. Further, Ex.D.60 which is an affidavit of one Prakash who is stated that Sy.No.12/P land sold to the wife of the accused in the year 2001 and before selling the said land 7-8 years prior to the said date there was borewell existed in the said land. As per Ex.D.61 affidavit of one Basamma she also stated in the affidavit that prior to sale of the land to the wife of the accused borewell was in existence 7-8 years back in the said land. Therefore, it is the argument of the accused that the accused has not spent said amount of ₹2,40,384/- as contended by the Investigating Officer for installation of borewell and for wire fencing. It is not in dispute that the wife of the accused purchased the property after the check period i.e., in the year 1998 or 2001. Though, it is contended that the wife of the accused obtained loan for maintenance of the said land, however, the said land already considered as asset and therefore expenditure incurred by the accused for maintaining the land i.e., for irrigation of borewell and fencing to be considered as expenditure of the accused and the arguments of the accused that he has not spent any amount as mentioned by the Investigating Officer i.e., ₹2,40,384/- cannot be accepted and thus sum of ₹2,40,384/- to be considered as expenditure of the accused as mentioned in item no.4.62.

237. Item No.4.63 to 4.66:- These items are concerned there is no dispute by the accused.

238. Item No.4.67:- This is concerned to house rent of ₹1,23,250/- paid by the accused while he was working at Bidar, Narayanapura and Dharwad. Learned counsel for the accused argued that this house rent of ₹1,23,250/- is declared as expenditure of the wife of the accused. As she spent out of her income as shown in Ex.P.37. Hence, it is

argued that this income of ₹1,23,250/- to be deducted from the expenditure. However, her income as considered income of the accused and expenditure spent by her of ₹1,23,250/- to be considered as expenditure of the accused. Though, item No.4.67 shown by the Investigating Officer at ₹1,23,250/-, but as per the calculation made by the accused it amounts to ₹1,38,400/-. Therefore, this court has considered the rental expenses of ₹1,38,400/- is considered.

239. Item No.4.68 to 4.72:- These items are concerned there is no dispute by the accused.

240. Item No.4.73:- The prosecution has not produced any document with regard to this amount paid to the watchman and the prosecution has not examined the said watchman by name Shafi Ahamed. Therefore, this amount of ₹40,000/- cannot be considered as expenditure of the accused and this should be dropped from the expenditure.

241. Hence, on calculation made by this court as per above discussion, total expenditure as per table-D arrived at Rs.**81,98,062/-**.

242. After analyzing all the items contained in the table-A to D and as per the discussion in the preceding paragraphs, the figure arrived by the Court in respect of all the items shown in the Tables A to D mentioned as under.

243. Check period commenced from **1.6.1989 to 7.11.2012**.

TABLE - A

Sl. No.	Particulars of Properties	Value in Rupees as per Prosecution	Value in Rupees as per Court
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1	The total salary obtained by DGO, as he was worked as Lecturer/ Principal prior to entering into Government Service in Gurusiddarameshwara Vidya Samsthe (Reg.), Mallappanahalli Village i.e., from 01/06/1986 to 31/05/1989	40,685.40	70,685/-
	Total	40,685.40	70,685/-

TABLE-B

Table 'B' shows the calculation made by the prosecution and the calculation made by the Court i.e., conclusion arrived by the Court.

Sl. No.	Particulars of Properties	As per the Prosecution	As per the Court Calculation
1)	Immovable Properties		
2.1	Valuation of construction of house bearing No.1826/5, measuring 40X60 feet, situated at LIC Colony, Davanagere consisting of ground floor, 1 st floor, 2 nd floor (one room) and one site (Construction value ₹24,06,654/- + site value Rs.78,000/- =Rs.24,84,654/-)	24,84,654-00	22,44,000-00
2.2	Two vacant sites bearing No.1826/3 & 1824 measuring 40X60 feet situated at LIC Colony, Davanagere.	2,88,000-00	2,88,000-00
2.3	The landed properties bearing Sy.No.12P measuring 4.10 acre, 3.13 acre & 3.37 acre totally measuring 11.20 acres situated at Kurubarahalli village, Harihara Taluk.	4,89,500-00	1,18,000-00 (₹3,71,500-00 deducted)
2.4	Constructed tiled house in	2,92,000-00	2,62,800-00

	the landed properties situated at Kurubarahalli village		
2.5	The RCC house built in the landed properties situated at Kurubarahalli village which is under construction stage	2,20,600-00	1,98,540-00
2.6	The site purchased by the DGO on 25/11/2002 from BDA, Bengaluru situated at 6 th block, Banashankari 6 th stage, Bengaluru measuring 15X24 meters bearing No.3.	5,72,400-00	5,72,400-00
2.7	The site purchased by the DGO bearing No.27, block No.61 measuring 9X12 meter situated at Sadunavar Layout, Dharwad.	1,10,000-00	1,10,000-00
2)	<u>Movable properties:-</u> i) Bank Accounts:-		
2.8	Canara Bank, Vidhya Nagara Branch, Davanagere S.B. Account No.1813101008271 in the name of DGO	5,288-60	5,288-60
2.9	Canara Bank, Vidhya Nagara Branch, Davanagere, S.B. Account No.13583 in the name of S.M. Prema, wife of DGO.	6,310-00	6,310-00
2.10	Canara Bank, Vidhya Nagara Brnach, Davanagere S.B. Account No.1813101013741 in the name of daughter of DGO namely Kumari Vidhya	59,527-00	59,527-00
2.11	Canara Bank, Vidhya Nagara Branch, Davanagere, S.B. Account No. 1813101013272 in the name of M.S. Prema, wife of DGO	3,801-00	3,801-00
2.12	Karnataka Bank Limited, KUD Circle Branch, Dharwad S.B. Account No.1922500100223101 in the name of DGO	1,648-50	1,648-50

2.13	Karnataka Bank Limited, KUD Circle Bdranch, Dharwad, S.B. Account No.1922500100247701 in the name of wife of DGO-Smt. M.S.Prema	5,336-75	5,336-75
2.14	HDFC Bank, Mandipet Branch, Davanagere, S.B. Account No.04031700003829 in the name of wife of DGO	52,941-87	52,941-87
2.15	HDFC Bank, Mandipet, Davanagere S.B. Account No.040319300001813 in the name of daughter of DGO-Rekha B.U.	12,016-64	12,016-64
2.16	HDFC Bank, Mandipet, Davanagere S.G. Account No.0411610004608 in the name of daughter of DGO-Rekha B.U.	2,344-96	2,344-96
2.17	Karnataka Bank Limited, K.B. Extension Branch, Davanagere, S.B. Account no.1902500101258401 in the name of wife of DGO- Prema M.S.	1,27,411-00	1,27,411-00
2.18	Union Bank of India, PSI Branch, Bengaluru, S.B. Account No.55430202010000970 in the name of daughter of Rekha B.U.	3,078-90	3,078-90
2.19	The balance amount of the Monthly Installment Plan bearing A/c.No.22452900375 in Sahara India Parivara, Davanagere Branch in the name of wife of DGO-M.S.Prema	19,000-00	19,000-00
2.20	The monthly installment Plan account in Sahara India Pariwar, Davanagere Branch by wife of DGO-Smt.M.S.Prema.	19,000-00	19,000-00

ii)	Fixed Deposits:-		
2.21	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500201062301 in the name of DGO	13,853-00	13,853-00
2.22	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500201077301 in the name of DGO	4,000-00	4,000-00
2.23	Karnataka Bank Limited, KUD Circle Branch, Dharwad Fixed Deposit A/c.No.1921500201320001 in the name of DGO	48,536-00	48,536-00
2.24	Karnataka Bank Limited, KUD Circle Branch, Dharwad, Fixed Deposit A/c.No.1921500200657301 in the name of wife of DGO- Smt. M.S. Prema	8,758-00	8,758-00
2.25	Union Bank of India, Davanagere, Reinvestment Account No.4174030300082276 in the name of daughter of DGO- Rekha B.U.	50,000-00	50,000-00
	iii) Lockers:-	-	-
	iv) Postal Accounts	-	-
	v) Stocks, Shares, Bonds and etc.,		
2.26	Lotus Ink, Hytech Software Park receipt No.10221 (1000 Shares) in the name of M.S. Prema, wife of DGO	10,000-00	10,000-00
2.27	The total share value of HDFC Securities, Davanagere, Share Trading A/c.No.925081 in the name of Smt. Prema	2,19,266-41	2,19,266-41
2.28	The total share value of HDFC Securities,	1,12,669-10	1,12,669-10

	Davanagere, Share Trading A/c.No.1498207 in the name of daughter of DGO- Rekha B.U.		
	vi) Vehicles:-		
2.29	Maruthi Suzuki Swift Car bearing Reg. No.KA-17/M-8865 in the name of M.S. Prema, wife of DGO	5,79,432-00	5,79,432-00
2.30	TVS Wego two- wheeler vehicle bearing Reg.No.KA-17/EC-7795	43,680-00	43,680-00
2.31	vii) The net cash seized at the time of raid	13,366-00	13,366-00
2.32	viii) The seized gold and silver articles:- (111.73 grams of gold ornaments and 551.31 grams of silver articles)	1,84,648-00	1,84,648-00
2.33	Loan Account bearing No.1590842000169 for pledging gold ornaments at Canara Bank, K.B. Extension, Davanagere i.e., joint account in the name of DGO and his wife	3,79,400-00	3,79,400-00
2.34	ix) The total value of house hold articles at the time of raid of the house		
2.35	The total value of house hold articles at the time of raid of the residential Government Quarters at Harihara.	41,407-00	20,382-00
2.36	The total value of articles found at the time of raid in Farm House and landed properties situated at Kurubarahalli village in the name of wife of DGO	28,419-00	23,989-00
	x) Others:-		
2.37	Deposit of land line bearing No.263355	1,000-00	1,000-00

2.38	Deposit of Domestic Gas bearing No.22411	1,400-00	1,400-00
2.39	Deposit of water tap connection to the house No.1826/5, LIC Colony, Davanagere	2,055-00	2,055-00
2.40	The total value of deposit, Scale security Deposit and EC of AEH-23163	32,614-00	32,614-00
2.41	The total deposit amount of power plant KHIP No.2963 and 2964 pertaining to Borewell to the landed properties situated at Kurubarahalli village	5,400-00	5,400-00
	Total	76,87,969/-	64,90,894/-

TABLE - C

Statement 'C' shows the abstract/list of income pertaining to DGO and his family members as shown in the charge sheet is reproduced for convenience reference:-

Sl. No.	Particulars of Profit	Value (in Rupees) per Prosecution	As per the Court Calculation
1)	Profit of DGO from salary		
3.1	Net salary	21,86,287-00	21,86,287-00
2)	Agricultural Income		
3.2	Land wise (ಜಮೀನು ವಾರು)	9,35,000-00	45,79,114-00
3)	Profit from rent		
3.3	The total income of rent obtained from Dr. Y. Subba Reddy, Director, College of Dental Science,	3,46,009-60	3,46,010-00

	Davanagere		
4)	GPF/PPF, Advance or Loan		
3.4	The loan obtained from GPF A/c.No.9002	1,50,000-00	1,50,000-00
3.5	The loan obtained from KGID Policies	63,300-00	63,300-00
3.6	The loan obtained from Insurance policy No.622979276	15,130-00	15,130-00
3.7	The loan obtained from Insurance Policy No.620740617	22,100-00	22,100-00
5)	Hand Loan:-		
3.8	Hand loan obtained from S.A. Hiremath, A.V. Basavarajappa, S. Maheshwarappa and M.H. Siddramappa	-	15,000-00
3.9	Hand loan obtained from B.C.Devaraju and B. Channabasappa	3,90,000-00	3,90,000-00
3.10	Hand Loan obtained from Manjunatha S.C.	-	81,000-00
6)	Bank Loan:-		
3.11	The balance amount of Home Loan bearing No.192700180003020 1 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	8,25,000-00	8,25,000-00
3.12	The car loan obtained from Karnataka Bank, Limited, KUD Circle Branch, Dharwad bearing Loan A/c. No.192700160075420	4,92,000-00	4,92,000-00

	1		
3.13	The gold pledge A/c.No.1590842000169 from Canara Bank. K.B. Extension, Davanagere	3,00,000-00	3,00,000-00
3.14	The Education loan bearing A/c.No.1813651004737 in Canara Bank, Vidhya Nagara, Davanagere (the total sanctioned amount ₹10,00,000-00)	7,50,000-00	7,50,000-00
7)	The total income from selling the properties (including movable and immovable properties)	-	
3.15	The net profit from selling the site bearing No.7899/1310 (old No.42) situated at Galihalli village, Tarikere Taluk, Kasba Hobli	1,60,000-00	1,60,000-00
8)	The interest obtained from bank Accounts:-		
3.16	S.B.A/c.No.1922500100223101 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	1,500-00	1,601-00
3.17	S.B. A/c.No.1922500100247701 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	2,346-00	3,871-00

3.18	S.B.A/c.No.040317000 03829 of HDFC Bank, Mandipet, Davanagere	3,331-75	8,129-00
3.19	S.B. A/c.No.040310700179 75 of HDFC Bank, Mandipet, Davanagere	175-36	713-00
3.20	S.B. A/c.No.040319300018 13 of HDFC Bank, Mandipet, Davanagere	1,132-45	2,973-00
3.21	S.B.A/c.No.041161000 4608 of HDFC Bank, Mandipet, Davanagere	254-66	675-00
3.22	S.B. A/c.No.190250010125 8401 of Karnataka Bank Limited, K.B. Extension Branch, Davanagere.	7,411-00	7,411-00
3.23	S.B. A/c.No.181310100827 1 of Canara Bank, Vidhya Nagara Branch, Davanagere.	2,252-00	4,884-00
3.24	S.B. A/c.No.13583 of Canara Bank, Vidhya Nagara Branch, Davanagere	2,339-00	2,491-00
3.25	S.B. A/c.No.181310101327 2 of Canara Bank, Vidhya Nagara Branch, Davanagere.	1,116-00	1,116-00
3.26	S.B. A/c.No.181310101374	2,220-00	2,220-00

	1 of Canara Bank, Vidhya Nagara Branch, Davanagere		
3.27	S.B. A/c.no.554302010000 971 of Union Bank of India, PSI Branch, Bengaluru	46-00	46-00
9)	The dividend obtained from Shares, Debentures, Bonds:-		
3.28	Maturity amount of LIC policy No.611891097	37,060-00	37,060-00
3.29	Maturity amount of ICICI Insurance Policy No.01132956	1,67,756-30	1,67,756-30
3.30	The total amount obtained from money back of LIC Policy No.623038508	12,000-00	12,000-00
3.31	The total amount obtained from money back of LIC policy No.623014029	30,0000-00	30,000-00
3.32	The total amount obtained from money back of LIC Policy No.620770059	30,000-00	30,000-00
3.33	The dividend obtained from share trading share A/c.No.925081 holding at HDFC Securities, Davanagere	18,573-53	18,573-53
3.34	The dividend obtained from share trading share A/c.No.1498207 holding at HDFC Securities,	470-00	470-00

	Davanagere		
3.35	The IT Returns filed by Smt. Prema during the Assessment year from 2002-03 to 2011-12	-	35,26,679-00
3.36	The IT Returns filed by Rekha B.U., for the Assessment Year from 2009-10 to 2011-12	1,20,000-00	1,20,000-00
3.37	The IT Returns filed by B.U.Vidhya for the Assessment year 2011-12	-	1,55,910-00
	Total ₹	70,30,810-65	1,45,09,520/-

TABLE - D

Statement 'D' shows the abstract/list of expenditure pertaining to DGO and his family members as shown in the charge sheet which is reproduced for convenience reference:-

Sl. No.	Particulars of Expenditure	Value (in Rupees) as per the Prosecution	Value as per the Court Calculation
1)	Insurance Policies:-		
4.1	HDFC Insurance Policy bearing No.13516453 (Annual Installment of ₹50,000-00)	1,50,000-00	1,50,000/-
4.2	HDFC Insurance Policy bearing No.13345992 (Half yearly installment of ₹1,25,000/-)	7,50,000-00	7,50,000/-

4.3	Metlife India Insurance Policy bearing No.1200400049409 (Annual Installment of ₹5,333-73)	48,003-57	48,004/-
4.4	Metlife India Insurance Policy bearing No.1200400037121 (Quarterly installment of ₹1,733-00)	62,420-00	62,420/-
4.5	ICICI Prudential Insurance Policy bearing No.15223157 (Annual Installment of ₹1,00,000-00)	2,00,000-00	2,00,000/-
4.6	ICICI Prudential Insurance Policy bearing No.15261653 (Annual Installment of ₹1,00,000-00)	2,00,000-00	2,00,000/-
4.7	Birla Sun Life Insurance Policy No.005387340 (Annual Installment of ₹1,00,000-00)	1,00,000-00	1,00,000/-
4.8	Bajaj Allianz Insurance Policy No.0058616162 (Annual Installment of ₹10,000-00)	50,100-00	50,100/-
4.9	LIC Policy No.621014143 (Annual Installment of ₹2,021-00)	43,035-30	43,035/-
4.10	LIC Policy No.637169078 (Half Yearly Installment of ₹1,344-00)	24,192-00	24,192/-
4.11	LIC Policy No.637108362 (Half Yearly Installment of ₹1,280-00)	24,320-00	24,320/-

4.12	LIC Policy No.620770059 (Half Yearly Installment of ₹1,593-00)	32,673-00	32,673/-
4.13	LIC Policy No.623014029 (Half yearly installment of ₹1,646-00)	65,840-00	65,840/-
4.14	LIC Policy No.623038508 (Half Yearly Installment of ₹678-00)	27,120-00	27,120/-
4.15	LIC Policy No.621151987 (Half Yearly Installment of ₹3,011-00)	90,310-00	90,130/-
4.16	LIC Policy No.622979276 (Half Yearly installment of ₹2,408-00)	84,308-00	84,308/-
4.17	LIC Policy No.611891103 (Half Yearly Installment of ₹ 1,508-00)	45,240-00	45,240/-
4.18	LIC Policy No.630740617	48,220-00	48,220/-
2)	Income Tax:-		
4.19	Income Tax paid by wife of DGO	41,276-00	41,276/-
3)	House Tax (house wise)		
4.20	The payment of tax towards site No.1826/3, LIC Colony, Davanagere	2,275-00	2,275/-
4.21	The payment of tax towards site No.1826/4, LIC Colony, Davanagere.	2,240-00	2,240/-
4.22	The payment of house tax towards house No.1826/5, LIC Colony,	27,670-00	27,670/-

	Davanagere		
4.23	The property tax paid towards site No.3 (measuring 15X24 meters) situated at 6 th block, Banashankari, 6 th stage, Bengaluru for the year 2011-12	12,860-00	12,860/-
4)	Water Tax/Cess:-		
4.24	The payment of water tax for the tax connection to House No.1826/5 situated at LIC Colony, Davanagere	4,500-00	4,500/-
5)	Payment towards Insurance of car/two wheelers:-		
4.25	The payment of insurance towards Honda Activa two wheeler bearing No.OJ-08-1704-1802-00005352	605-00	605/-
4.26	The payment of insurance towards TVS Vigo two wheeler (bearing No.KA-17/EC-7725) bearing policy No.240800/31/11/01/00 005011	1,864-00	1,864/-
4.27	The payment of insurance towards Maruthi Suzuki Swift Design Car bearing Reg.No.KA-17/M-9865 of United India Insurance Policy No.240800/31/10/01/00 007448	15,855-00	15,855/-
6)	The fuel charges (vehicle wise)		

4.28	The total amount towards life time insurance, registration and other charges of Hero Activa two wheeler bearing Reg.No.KA-25/U-8212	2,920-00	2,920/-
4.29	The approximate total maintenance cost towards Honda Activa two wheeler bearing Reg.No.KA-25/U-8212	9,500-00	9,500/-
4.30	The total amount towards lifetime insurance, registration and other charges of TVS Vigo two wheeler bearing Reg.No.KA-17/EC-7795	5,002-00	5,002/-
4.31	The fuel charges of TVS Vigo two wheeler bearing Reg.No.KA-17/EC-7795	15,810-00	15,810/-
4.32	The total charges of lifetime tax and registration towards car bearing Reg.No.KA-17/M-9865	83,164-00	83,164/-
4.33	The fuel charges of Maruthi Suzuki Swift car bearing Reg.No.KA-17/M-9865	2,96,470-65	2,96,471/-
8)	Electricity Charges:-		
4.34	The temporary electric connection charges towards House No.1826/5, LIC Colony, Davanagere bearing No.TP5642	4,800-00	4,800/-
4.35	The application fee for	50-00	50/-

	AEH-23163		
4.36	The electricity charges of AEH-23163 during check period	66,641-00	66,641/-
9)	Telephone charges:-		
4.37	The charges of land line bearing No.263355	32,884-76	32,885/-
10)	Mobile Phone charges	-	
11)	Education expenses of Children:-		
4.38	The Education expenses of Kumari Rekha B.U., from 1 st Standard to M.Tech.	7,14,318-00	7,14,318/-
4.39	The Education expenses of Kumari Vidya B.U., from 1 st Standard to MMBS	12,37,700-00	12,37,700/-
12)	Unverifiable Charges:-		
4.40	The approximate family expenses of accused and his family members	11,16,928-00	11,16,928/-
13)	Repayment of loans:-		
4.41	Interest paid to LLF 10/1 fence loan	10,567-00	1,324/-
4.42	Interest paid to LLF 45/1 drip irrigation loan	15,327-00	3,091/-
4.43	Repayment of interest to the gold pledge loan A/c.No.1927002000 321301 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	30,058-00	87,933/-
4.44	Repayment of interest to the gold pledge loan A/c.No.1927002000 310001 of Karnataka	20,825-00	-

	Bank Limited, KUD Circle Branch, Dharwad		
4.45	Payment of interest to the Personal Loan No.1927001600734301 of Karnataka Bank Limited, KUD Circle Branch, Dharwad (The loan account was closed within check period)	20,142-00	20,142/-
4.46	Payment of interest to the vehicle loan bearing No. 19270016 00711001 of Karnataka Bank Limited, KUD Circle Branch, Dharwad.	34-00	34/-
4.47	Payment of interest to the gold loan bearing No.19270020 00301501 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	19,752-00	-
4.48	Repayment of principal amount and interest to the car loan bearing No.1927001600754201 of Karnataka Bank Limited, KUD Circle Branch, Dharwad (Principal ₹3,40,520-00+ interest ₹3,27,007-00)	6,67,527-00	6,67,527/-
4.49	Repayment of interest to the house loan No.1927001800030201 of Karnataka Bank Limited, KUD Circle Branch, Dharwad	10,54,568-00	10,54,568/-
4.50	Payment of interest to the loan on the basis of KGID policies	2,512-00	2,512/-
14)	Other expenses:-		

4.51	The registration fee towards House No.1826/5, situated at LIC Colony, Davanagere measuring 40X60 feet	1,580-00	1,580/-
4.52	The registration fee paid towards 2 sites bearing Nos.1826/3 & 4 measuring 40X60 feet situated at LIC Colony, Davanagere.	5,814-00	5,814/-
4.53	The registration fee and Stamp duty paid towards purchase of site No.3 situated at 6 th block, 6 th stage, Banashankari, Bengaluru purchased from BDA, Bengaluru measuring 15X24 meters on 25/11/2002 by DGO	88,950-00	88,950/-
4.54	The registration fee and stamp duty paid towards purchase of site No.227 (Block No.61) at Sadhunavar Layout, Dharwad	10,765-00	10,765/-
4.55	The registration fee towards purchase of landed properties bearing Sy.No.12P measuring 11.20 acres situated at Kurubarahalli, Harihara Taluk.	9,922-00	9,922/-
4.56	The registration fee towards purchase of site bearing No.7899/1310 situated at Tarikere by S.M.Prema M.S., and	546-00	546/-

	thereafter it was sold		
4.57	The fee paid towards S.B. Account No.1813101013272 of Canara Bank, Vidhya Nagara Branch, Davanagere	160-00	160/-
4.58	The tax paid towards the landed properties bearing Sy.No.12P measuring 11.20 acres situated at Kurubarahalli village, Harihara Taluk.	140-00	140/-
4.59	The licence fee paid towards construction of house bearing No.1826/5 at LIC Colony, Davanagere.	1,822-00	1,822/-
4.60	Fee paid towards private estimation of building	3,700-00	3,700/-
4.61	Fee paid towards private estimation of building	3,400-00	3,400/-
4.62	The expenditure charges of digging bore well and erecting fence to Sy.No.12P situated at Kurubarahalli village	2,40,384-00	2,40,384/-
4.63	The charges towards daily newspapers	2,385-00	2,385/-
4.64	The expenditure charges of refills of domestic cylinders (Bharath Gas) bearing No.22411.	6,314-14	6,314/-
4.65	The fee paid towards life member and annual subscription to Officers'	18,000-00	18,000/-

	Club, Davanagere		
4.66	The fee paid towards two spectacles	4,840-00	4,840/-
4.67	The rent paid towards rental houses at Bidar, Narayanapura and Dharwad where the DGO was working	1,23,250-00	1,38,400/-
4.68	The charges paid towards annual maintenance and business of Demat Account DP ID-IN301151 (Client ID-26802597)	7,164-61	7,165/-
4.69	The charges paid towards annual maintenance of Demat Account DP ID-IN301549 (Client ID-33797475)	158-87	159/-
4.70	The membership fee paid to Harihara Taluka PLD Bank Limited, Harihara	500-00	500/-
4.71	The loss sustained towards share business bearing Share No. POA70 of Kotak Securities	14,869-45	14,869/-
4.72	The synchronization fee paid towards power plant installed to Bore well bearing KHIP No.2963 and 2964 in landed properties situated at Kurubarahalli village	20,000-00	20,000/-
4.73	The wages paid to Shafi Ahamed who worked as Security in Garden land property, Kurubarahalli	40,000-00	40,000/-

	village		
	Total ₹	81,82,672-43	81,98,062/-

244. For convenient reference the calculation made by the IO, by the accused and the Court are shown in the following Table as Abstract.

ABSTRACT

Table	Description	Amount shown in ₹ As per IO	Amount shown in ₹ as per Defence	Amount shown in ₹ Court finding
A	Income before joining service	40,685/-	2,53,087/-	70,685/-
B	Total assets during check period	76,87,969/-	32,96,221/-	64,90,894/-
C	Total income from known source	70,30,811/-	2,35,12,389/-	1,45,09,520/-
D	Total expenditure during check period	81,96,897/-	51,96,612/-	81,98,062/-

245. Now as per the court findings,

Total assets of the accused found during check period as per Table-B ₹64,90,894/-.

Total Expenditure of the accused as per Table-D ₹81,98,062/-.

Total income of the accused as per Table-C during the check period ₹1,45,09,520/-.

The income of the accused before joining the service as per Table-A ₹70,685/-.

Calculation regarding the percentage of the dis-proportionate assets of the accused as under.

Table : B	₹64,90,894/-
Less: Table : A	₹70,685/-
Total (Table:B-A)	₹64,20,209/-
Add: Table:D	81,98,062/-
Total :	1,46,18,271/-
Less: Table:C	1,45,09,520/-
Total of dis-proportionate amount	₹1,08,751/-

Percentage of dis-proportionate of income of the accused from the known source of income =

$$\frac{100}{1,45,09,520} \times 1,08,751 = 0.749 \text{ or } 0.75\%$$

On calculation, court found that the accused acquired total dis-proportionate assets ₹1,08,751/- only and thereby dis-proportionate assets of 0.75% as against his known source of income. Accordingly Points No. 2 & 3 are answered.

Point No.4:-

246. In view of my aforesaid discussion, the value of dis-proportionate assets found in possession of accused is only Rs.1,08,751/- and 0.75%. It is the argument of the learned counsel for the accused that if the court finds the accused acquired dis-proportionate assets less than 10% then margin of 10% to be given to the accused and therefore, it is the argument of the learned counsel for the accused that he is entitled for an acquittal.

247. On the other hand, during the course of arguments, learned Special PP argued that the accused herein along

with his wife have created the documents pertaining to the income of the accused in order to show that the accused has excess income which is acquired from known source of income. It is the contention of the learned Special PP that the accused has shown that his wife was running DTP center and she acquired the income of ₹53 lakhs and with regard to this income the accused has created all the documents. Reply to this argument, learned counsel for the accused argued that in so far as income of the wife of the accused is concerned and further she has been running DTP center is concerned she has maintained all the records which are produced by the accused that is income tax returns filed by the wife of the accused marked as Ex.D.37 and the documents pertaining to DTP center marked as Ex.D.38 and Ex.D.39.

248. Learned counsel for the accused has referred to the reported judgment in the case of Anand V/s. Union of India (1994 CrI.L.J.12 Guwahati page 52) and argued that whenever there is income tax returns filed by the wife of the accused then it is to be considered that the accused has satisfactorily counted for the said income. Another judgment in the case of Janakivallaba Patnayak V/S. State of Orissa, it is considered that income of the wife of the accused to be treated as vital source of income.

249. In this case, the wife of the accused is income tax assessee since 2000-01 and she has been filing income tax returns. But the Investigating Officer has not considered the income received by the wife of the accused as income of the accused. The Investigating Officer has mechanically submitted the charge sheet without considering the income of the wife of the accused.

250. Though, the wife of the accused filed income tax returns with respect to the income received by her from her business and the documents would speak about the income of the accused from her business, Investigating Officer has not take into consideration and without assigning any proper reason. Thereby, income of the wife of the accused received from her business to be accounted to the accused.

251. After calculation of figures worked out from the total known source of income which indicates that the accused is holding the excess income as against the calculation made by Investigating Officer.

252. It appears from the oral and documentary evidence on record that the accused has placed material evidence and proof by discharging his onus with preponderance of probability that the Investigating Officer has committed the error in analyzing the items i.e., the income, expenditure and total assets pertaining to the accused.

253. After considering all these factual and legal aspects of the case, in my considered view that prosecution has utterly failed to prove and establish that the accused held property worth of ₹88,54,055/- i.e., 125.25% which is disproportionate to his known source of income. Hence, in my considered view that the prosecution has utterly failed to bring home the guilt of the accused for the alleged offence beyond the reasonable doubt.

254. After considering all these factual and legal aspects of the case, this court opined that the prosecution has failed to prove and establish that the accused held worth of 88,54,055/- i.e., 125% which is dis-proportionate to his known source of income, hence, this court held that in the

case on hand the explanation tendered by the accused as to the possession of the assets in excess of known sources with him and the evidence lead by him are sufficient to hold that he has discharged his burden as to the possession of the assets as discussed above as to his known source of income.

255. Learned Special PP argued that the wife of the accused filed the income tax returns for the period 2002 onwards and if really she was running DTP center then the accused could have mentioned in his APR about the business of his wife. It is true that the accused has not declared the income of his wife in the APR as argued by the learned Special PP. Now the question is that whether the income of the wife of the accused to be excluded from the income of the accused as the accused has not declared in his APR. To answer this question, learned counsel has relied upon the judgment passed in **Crl.Appeal No.1170/2006(C)** of Hon'ble High Court of Karnataka, Circuit Bench at Dharwad in the case of SRIPADA GOUDA V/S. STATE OF KARNATAKA wherein Hon'ble High Court taking support of the judgment of the Hon'ble Apex Court has observed that;

“Failure to submit the annual assets and liability statement may make the public servant liable to face disciplinary proceedings under the Service Rules, but such failure on the part of the public servant cannot have the effect of rendering the evidence placed by him with regard to the pecuniary advantages received by him as inadmissible in criminal prosecution lodged under the provisions of the Prevention of Corruption Act.”

Therefore, though the accused has not filed APR in respect of the year 1992-2000 and he has also not mentioned the income of his wife in the APRs, as observed in the aforesaid judgment, it cannot be said that these documents created by the accused after the chargesheet filed against him.

256. Further, in this case, it is relevant to mention that the accused has given explanation soon after he was given notice about the dis-proportionate assets wherein he has mentioned that previously ie., February 2008, the Lokayukta police had received anonymous letter with regard to the dis-proportionate assets of the accused and Lokayukta police after discreet enquiry came to the conclusion that this accused has not possessed any income excess of his known source of income. Further, the accused has contended that motive for filing false case against him is that while he was working as Range Forest Officer, Davanagere during 1997, case was registered by him against one Balamakar who was CPI of Harihar who involved in procuring and transportation of teak-wood of saw-mill and said Balamakar was working as Superintendent of Police in Lokayukta when the raid was conducted on him during 2012, and the accused has produced the records pertaining to filing of case against said Balamakar marked as Ex.D.42.

257. Further, accused contended that again when he was working as Range Forest Officer at Kalaghatagi during 1998-2002, he worked hard to protect encroaches in forest areas to the extent of 1600 acres and complaint was made by him against the forest encroachers to Lokayukta. In that regard, he has produced the document Ex.D.43. Further, when he was working as Range Forest Officer

during the year 2003-2005, then MLA and District Minister encouraging forest encroachers and he had reported to his senior officers about the said fact and the documents filed in that regard marked as Ex.D.44.

258. Further, during the year 2009-2011 when he was Executive Officer, Channagiri Taluk Panchayath, Channagiri, there was some heated discussion between him and one Gangal and said Gangal was working as CPI, Lokayukta, Davanagere. In that regard, documents produced as per Ex.D.10. Further, accused contended that he has made many developmental works which was reported in Karnataka Vikas Government monthly magazine and the copy also marked as Ex.P.47. Learned counsel for the accused argued that on perusal of all these documents Ex.D.10, D.42 to D.47 which discloses the ill-motive by the Lokayukta Police to file false charge sheet against him.

259. The court has come to assessment of disproportionate of the accused arrived at ₹1,08,751/-, if calculated in percentage, it will hardly come to less than 1% of the known source of income.

260. Learned counsel for the accused has produced the judgment reported in **AIR 1988 SC 88** between STATE OF MAHARASHTRA V/S. POLLONJI DARABSHAW DARUWALLA referring to Sec.5(1)(e) of Prevention of Corruption Act, 1974 observed that;

“Criminal misconduct - possession of property disproportionate - burden of proof of prosecution - extent - prosecution need not disprove existence of possible source of income of public servant.”

261. Further, in another case reported in **1977 SC 796** between KRISHNANANDA AGNIHOTRI V/s STATE OF MADHYA PRADESH referring to Sec.101, 104 of Evidence Act as to benami transaction onus and proof as to the assets acquired in respect of benami - onus and proof and nature of proof required it was held that onus of establishing the transaction as benami is on the persons who asserts on this burden is to be discharged by adducing legal evidence of a definite character - suspicion however strong cannot take the place of proof.

262. In the case on hand though there are certain document produced alleging that there are benami transactions, however, considering the vast agricultural lands hold by the accused, income of his wife and his children during the check period, this court is of the opinion that considering the law laid down in the above case, further though there is excess hold of 0.75%, considering the vast agricultural properties this court is of the opinion that it is a fit case that benefit of doubt under the circumstances shown given to the accused.

263. Further, in the reported case **AIR 1981 SC 1186** in the case of STATE OF MAHARASHTRA V/S. WASUDEO RAMACHANDRA KAIDALWAR, it is observed that;

“Accused who is found having dis-proportionate assets in his possession is duty to account satisfactorily for such possession and in so far as extent of proof he need not prove his innocence beyond all reasonable doubt. The preponderance of probability as to possession set out by accused is held sufficient.”

264. In another decision reported in **AIR 2006 Supreme Court 552** in the case of DEPUTY SUPERINTENDENT OF POLICE, CHENNAI V/S. K.INBASAGARAH, wherein it is observed that accused is a public servant;

“Unaccounted money recovered from house of accused in raid by income tax Department- House in joint possession of accused and his wife- Explanation given by accused that all money belonged to his wife- Wife admitting ownership of money recovered- All unaccounted money assessed by I.T.Department in hands of wife of accused- Explanation given by accused is plausible and justifiable- Accused cannot be held guilty of corruption charges”.

265. Thus, considering these reported judgments and facts on hand, this court is of the opinion that in the case on hand the explanation tendered by the accused as to the possession of the assets in excess of known source with him and the evidence lead by him are sufficient to hold that he has discharged his burden as to the possession of the assets described as to the source of income. In the circumstances, this court is of the opinion that the benefit of doubt in respect of the assets in possession of the accused shall go to the accused and thereby the prosecution failed to establish that accused possessed assets in excess of the known source of income beyond reasonable doubt. Accordingly, accused is entitled to an acquittal.

266. In view of my finding on points No.1 to 3, I proceed to pass the following;

ORDER

In exercise of the powers conferred upon me under the Code of Criminal Procedure, the Accused is acquitted of the offence punishable under Section 13(1)(e) read with Section 13(2) of Prevention of Corruption Act, 1988.

The bail bond and surety bonds executed earlier by the accused ordered to be cancelled, however, bail bonds and surety bonds executed by accused dated 7.5.2022 in compliance with Sec.437-A Cr.P.C., shall be in force for a period of 6 months from today.

Regarding disposal of properties are concerned, as the prosecution has not marked any material objects, the properties listed in annexures 1 to 5, are ordered to be returned to the accused after expiry of appeal period.

If properties are already released in favour of the accused as interim custody, then it is ordered to made absolute after the appeal period is over.

(Dictated to the Stenographer Grade-I, after his transcription, corrected, signed and then pronounced by me in the Open Court dated this the 31st day of October, 2023).

RAJESHWARI N HEGDE

Digitally signed by RAJESHWARI N HEGDE
Date: 2023.11.06 16:28:18 +0530

(RAJESHWARI N. HEGDE)
Prl. District & Sessions Judge,
Special Judge(Lokayuktha),
Davanagere.

::ANNEXURE::**List of Witnesses examined for the Prosecution:**

PW's	Name of PW's	Date of examination
PW-1	Akasha Ganji- C.W.5	23/12/2016
PW-2	Shivanandappa K.B- C.W.21	25/03/2017
PW-3	P.S.Sridhara- C.W.18	25/03/2017
PW-4	Manohara Prasad- C.W.2.	25/03/2017
PW-5	Raveendra Khatvakar- C.W.22	01/04/2017
PW-6	S.N.Suresh- C.W.19	19/05/2017
PW-7	S.A.Hirematha-C.W.32	19/05/2017
PW-8	K.H.Manjanaika- A.E.E.-C.W.39	20/05/2017
PW-9	S.V.Surya Prakash- C.W.37	20/05/2017
PW-10	Maruthi- C.W.8	21/06/2017
PW-11	M.K.Gangal, P.I.- C.W.1	21/06/2017
PW-12	S.Balakrishnayya- C.W.56	19/07/2017
PW-13	H.C.Rajendrakumar- C.W.57	19/07/2017
PW-14	S.C.Manjappa, Dy.S.P.-C.W.55	19/07/2017

List of Witnesses examined for the accused:-

DW's	Name of DW's	Date of examination
DW-1	Nagaraja Bhat	11/11/2018
DW-2	D.Nagaraja	20/03/2019
DW-3	Tejomaya Anandamurthi	05/04/2019
DW-4	Smt. Rekha	28/10/2020

DW-5	M.Shivakumar	22/11/2020
DW-6	Ravikumar	22/11/2020
DW-7	Manjunatha S.C.	09/02/2021
DW-8	Naveena S.B.	09/02/2021
DW-9	Nazma G.	16/07/2021
DW-10	Syed	08/10/2021
DW-11	Sanjaya Basavaraja Modagi	06/11/2021
DW-12	Shashidhara N.G.	06/11/2021
DW-13	Panchanagowda	04/12/2021
DW-14	Smt.Prema (wife of accused)	29/12/2021
DW-15	Ujjanappa S.(Accused)	29/12/2021

List of Documents marked for the Prosecution:-

Ex.P.1	-	Mahazar (Quarters at Ranebennuru)
Ex.P.1(a)	-	Signature of P.W.1
Ex.P.2	-	Search Warrant
Ex.P.2(a)	-	Signature of P.W.1
Ex.P.3	-	Mahazar (Office at Ranebennuru)
Ex.P.3(a)	-	Signature of P.W.1
Ex.P.4	-	Search Warrant
Ex.P.5	-	Valuation report of the house
Ex.P.6	-	Report of income tax returns of the wife of accused
Ex.P.7	-	Search Panchanama pertaining to house of accused
Ex.P.7(a)	-	Signature of P.W.4
Ex.P.7(b)	-	Signature of P.W.11
Ex.P.8	-	Search Warrant

Ex.P.8(a)	-	Signature of P.W.4
Ex.P.8(b)	-	Signature of accused
Ex.P.9	-	Mahazar conducted in Canara Bank
Ex.P.9(a)	-	Signature of P.W.4
Ex.P.10	-	Valuation report of house belonged to wife of accused
Ex.P.11	-	Information with regard income of the accused's children
Ex.P.11(a)&(b)	-	Signatures of P.W.6
Ex.P.12	-	Document pertaining to hand loan given to accused
Ex.P.12(a)	-	Signature of P.W.7
Ex.P.13	-	Information regarding digging bore well and erecting fence to the landed properties
Ex.P.14	-	Report/information of family expenses of accused
Ex.P.15	-	Mahazar (landed property of Kurubarahalli village)
Ex.P.15(a)	-	Signature of P.W.10
Ex.P.16	-	Source Report
Ex.P.17	-	Sanction order
Ex.P.17(a)	-	Signature of P.W.12
Ex.P.18	-	Amended order
Ex.P.18(a)	-	Signature of P.W.13
Ex.P.19	-	Letter of Conservator of Forests and documents
Ex.P.20	-	Letter of Sub-Registrar, Tarikere and documents
Ex.P.21	-	Letter of HDFC, Davanagere, documents and information about Demat Account
Ex.P.22	-	Letter and information of Siddeshwara Gas Agency

- Ex.P.23 - Letter and documents pertaining to BDO
- Ex.P.24 - Letter of Assistant Controller, Regional Audit Circle, Davanagere
- Ex.P.25 - Particulars of Canara bank account
- Ex.P.26 - Account information of Sahara India Pariwar
- Ex.P.27 - Letter and account information of Harihara Primary Agricultural Co-operative Society
- Ex.P.28 - Letter of leaving police officers from police station and submitting the FIR
- Ex.P.29 - Application U/S.93 of CrPC for search warrant
- Ex.P.30 - Letters of office of Lokayuktha
- Ex.P.31 - Search warrant for searching house of B. Eshwarappa, Bandre Village
- Ex.P.32 - Search warrant for searching house of B. Channabasappa, Bandre Village,
- Ex.P.33 - Copy of search warrants, mahazars and P.F. memos
- Ex.P.34 - Order issued to continue the investigation of the case dated 10/10/2013
- Ex.P.35 - Letter written by Superintendent of Lokayuktha for furnishing annexures information dated 13/11/2012
- Ex.P.36 - Notice issued to the accused for furnishing information of annexures dated 13/11/2012
- Ex.P.37 - Information of Annexure No.1 to 23 from the Under Secretary to Government, Department of Forest, Ecology and Environment
- Ex.P.38 - Assets and Liabilities statements of the accused from 1990-91 to 2011-2012

- Ex.P.39 - Service Particulars of accused during 30/11/2012
- Ex.P.40 - Additional information with regard to Assets and Liabilities statements as per letter dated 18/12/2013
- Ex.P.41 - Letter written to Income Tax Officer, Ward-3, Davanagere pertaining to IT returns submitted by Smt. Prema dated 18/11/2013
- Ex.P.42 - Letter written to Income Tax Officer, Ward-2(1), Hubballi pertaining to IT returns submitted by Smt. Prema dated 24/02/2014
- Ex.P.43 - Letter written to Income Tax Officer, Ward-3, Davanagere pertaining to IT returns submitted by the accused and his family members dated 08/03/2013 and copies of Form No.46
- Ex.P.44 - Letter written to IT Officers, ward No.2(1), Hubballi pertaining to attesting of IT returns dated 24/02/2014
- Ex.P.45 - Letter written to Commissioner, Income Tax Department, Hubballi with regard to furnishing IT returns submitted by accused dated 09/07/2013
- Ex.P.46 - Letter written to IT Department, Hubballi with regard to furnishing IT Returns of Smt. Prema dated 18/11/2013
- Ex.P.47 - Letter written to IT Department, Hubballi with regard to furnishing ITR of accused person dated 18/11/2013
- Ex.P.48 - Letter regarding furnishing of Salary Particulars of accused when he was working as Principal at Siddarameshwara Polytechnic College dated 10/03/2014

- Ex.P.49 - Letter and furnishing house deeds by Senior Sub-Registrar, Davanagere dated 17/01/2013
- Ex.P.50 - Licence for construction of house in Site No.1826/5
- Ex.P.51 - Information with regard to records pertaining to landed properties situated at Kurubarahalli furnished by Sub-Registrar, Harihara dated 26/11/2012
- Ex.P.52 - Attested copy of document pertaining to site situated at Dharwad by Senior Sub-Registrar, Dharwad, dated 03/06/2013
- Ex.P.53 - Particulars of Bank account by Manager, Canara Bank, Vidya Nagara Branch, Davanagere pertaining to Smt. Prema dated 03/12/2012
- Ex.P.54 - Copies of S.B. Account bearing No.1813101008271 and 183101013583 of Smt. Prema at Canara Bank, Vidya Nagara Branch, Davanagere
- Ex.P.55 - Letter containing furnishing Particulars of S.B. Account and Loan Account pertaining to Karnataka Bank Limited, Dharwad dated 13/11/2012.
- Ex.P.56 - Particulars of S.B. Account of Smt. Prema and Rekha by HDFC Bank, Mandipete
- Ex.P.57 - Particulars of S.B. Account of Smt. Prema at Karnataka Bank Limited, K.B. Extension branch, Davanagere.
- Ex.P.58 - Particulars of S.B. Account and Fixed Account of Kumari Rekha at Union Bank, Davanagere

- Ex.P.59 - Particulars regarding car bearing No.KA-17/M.9865 by ARTO, Davanagere
- Ex.P.60 - Particulars regarding two wheeler vehicle bearing No.KA-17/EC-7725 by ARTO, Davanagere
- Ex.P.61 - Letter written to Eshwar Radio, Davanagere with regard to information of purchasing price of Samsung T.V.
- Ex.P.62 - Letter written to Divya Industrial, Bengaluru about furnishing of Solar Water Heater price
- Ex.P.63 - Letter of Managing Director, BSNL about furnishing information with regard to land-line No.263355, deposit and expenditure
- Ex.P.64 - Particulars of tax paid to site, building and tap connection
- Ex.P.65 - Particulars furnished by Assistant Executive Engineer (Ele.), BESCOM, Davanagere about electric connection
- Ex.P.66 - Salary Particulars of the accused furnished by the Principal Chief Conservator of Forests, Bengaluru dated 03/07/2013
- Ex.P.67 - Salary particulars of the accused furnished by the Principal Chief Conservator of Forests, Bengaluru dated 24/05/2013
- Ex.P.68 - Information furnished by Tahasildar, Holalkere about lavani of landed properties with letter dated 13/05/2014
- Ex.P.69 - Information of rent furnished by College of Dental Science, Davanagere with letter dated 25/02/2014

- Ex.P.70 - Letter written to Syed son of Mukthum Saab, Davanagere about furnishing particulars of rent dated 13/02/2014
- Ex.P.71 - Information furnished by Accountant with regard to P.F.Account No.PF9002 with letter dated 20/05/2014
- Ex.P.72 - Particulars of KGID, Haveri about KGID polices with letter dated 15/05/2014
- Ex.P.73 - Particulars of LIC policies furnished by LIC Branch- II, Davanagere with letter dated 10/03/2014
- Ex.P.74 - Particulars of LIC policy No.620740617 of Smt. Prema furnished by LIC Branch-I, Davanagere with letter dated 21/07/2014
- Ex.P.75 - Information furnished by A.V. Basavarajappa about hand loan with letter dated 05/03/2014
- Ex.P.76 - Letter written by S. Maheshwarappa about he stood as guarantor for loan obtained by accused dated 24/04/2014
- Ex.P.77 - Letter written by M.H.Siddaramappa about he stood as guarantor for loan obtained by accused
- Ex.P.78 - Letter written to B. Eshwarappa about giving hand loan to accused dated 06/03/2014
- Ex.P.79 - Letter written to Manjunatha S.C. about furnishing information with regard to hand loan given to Smt. Prema and Rekha dated 06/03/2014
- Ex.P.80 - Particulars of S.B. Account of N.C. Manjunatha furnished by Manager, HDFC Bank, Koramangala, Bengaluru dated 21/04/2014

- Ex.P.81 - Letter written by N.C. Manjunatha dated 13/05/2014 to Anil Kumar with regard to amount remitted to the account
- Ex.P.82 - Information furnished by B.C.Devaraj, BMM Inspat Limited, Hosapete about hand loan given to Smt. Prema vide letter dated 21/03/2014
- Ex.P.83 - Letter written to S.B.Naveen about furnishing of particulars with regard to hand loan given to Smt. Prema dated 06/03/2014
- Ex.P.84 - Letter written by B. Channabasappa about giving hand loan to Smt. Prema dated 01/04/2014
- Ex.P.85 - Attested copies of document bearing No.1392/93-94 and 3054/2007-08 furnished by Sub-Registrar, Tarikere dated 01/03/2014
- Ex.P.86 - Furnishing of particulars about S.B. Account No.04031070017974 of Smt. Prema by HDFC Bank, Davanagere dated 20/11/2012
- Ex.P.87 - Information with regard to LIC policy No.611891097 by LIC Branch- I, Davanagere dated 02/07/2014
- Ex.P.88 - Information furnished with regard to Insurance Policy No.01132956 by ICICI Prudential Life Insurance Com. Ltd., Davanagere dated 25/03/2014
- Ex.P.89 - Information furnished with regard to LIC Policy No.623038505 and 623014029 by LIC Branch-II, Davanagere dated 30/07/2014
- Ex.P.90 - Letter written to accused about furnishing about additional information with regard to annexures dated 13/05/2014

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| Ex.P.91 | - | Letter written about salary particulars of Kumari Rekha dated 06/03/2014 |
| Ex.P.92 | - | Information about salary particulars of Kumar Rekha dated 03/03/2014 |
| Ex.P.93 | - | Letter written by HDFC Standard Life Insurance Com. Ltd., dated 02/04/2013 |
| Ex.P.94 | - | Letter of PNB Met Life India Insurance Company Limited dated 10/04/2013 |
| Ex.P.95 | - | Letter of ICICI Prudential Life Insurance Com. Ltd., dated 21/03/2013 |
| Ex.P.96 | - | Letter of Birla Sunlife Insurance Com. Ltd., dated 14/03/2013 |
| Ex.P.97 | - | Letter of Bajaj Allianz Life Insurance Com. Ltd., dated 18/12/2013 |
| Ex.P.98 | - | Letter of LIC Branch- I, Davanagere dated 30/04/2013 |
| Ex.P.99 | - | Letter of LIC Branch- I, Davanagere dated 17/05/2013 |
| Ex.P.100 | - | Letter of LIC Branch- I, Davanagere dated 27/03/2013 |
| Ex.P.101 | - | Letter written to Banaj Allianz Insurance Com. Ltd, Hubballi, dated 22/11/2012 |
| Ex.P.102 | - | Information furnished by United India Insurance Com. Ltd., Davanagere with regard to insurance polices of vehicle dated 25/03/2013 (document No.93 page No.1836-1837) |
| Ex.P.103 | - | Information furnished by United India Insurance Com. Ltd., Davanagere with regard to insurance polices of vehicle dated 25/03/2013 (document No.93, page No.1838-1839) |
| Ex.P.104 | - | Information furnished by ARTO, Davanagere with regard to two |

- wheeler vehicle bearing Reg.No.KA-25/U-8212 dated 19/02/2014
- Ex.P.105 - Information furnished by ARTO, Dharwad with regard to two wheeler vehicle dated 30/07/2014
- Ex.P.106 - Letter written by Head Master, St. Paul's Convent, Davanagere dated 21/06/2013
- Ex.P.107 - Letter written by Head Master, Pavan English Medium High School, Dharwad dated 19/04/2013
- Ex.P.108 - Letter written by Head Master, Presentation Higher Primary School, Dharwad dated 19/02/2013
- Ex.P.109 - Letter written by Head Master, Girls' High School, Dharwad dated 13/03/2010
- Ex.P.110 - Letter written by Principal, Karnataka Science College, Dharwad dated 03/06/2013
- Ex.P.111 - Letter written by Principal, PENIT, Bengaluru dated 21/03/2013
- Ex.P.112 - Letter written by Principal, Gogati Institute of Technology, Belagavi dated 25/03/2013
- Ex.P.113 - Letter written by Head Master, Presentation Girls' High School, Dharwad dated 14/03/2014
- Ex.P.114 - Letter written by Principal, Vishnavi Chethana PUC College, Davanagere dated 27/03/2013
- Ex.P.115 - Letter written by Principal, JJM Medical College, Davanagere dated 14/03/2013
- Ex.P.116 - Letter written by Proprietor, Pradeep Associates, Davanagere dated 02/03/2013

- Ex.P.117 - Letter written by Proprietor, Kumar Constructions, Davanagere dated 19/03/2013
- Ex.P.118 - Letter written by P. Ashoka, Newspaper Distributors and Plumber, Davanagere dated 06/09/2013
- Ex.P.119 - Letter written by Officers' Club, Davanagere dated 01/07/2014
- Ex.P.120 - Letter written by Optical Paradise, Davanagere dated 22/11/2012
- Ex.P.121 - Letter written by M.S. Channappanavar, Senior Manager, Canara Bank, Bengaluru.
- Ex.P.122 - Letter written by Smt. Channamma M. Betageri, Dharwad dated 05/07/2014
- Ex.P.123 - Letter written by Mruthunjaya Eli, Retired S.E., Dharwad dated 12/06/2014
- Ex.P.124 - Information furnished with regard to price of share account by HDFC Bank, Davanagere dated 28/09/2013
- Ex.P.125 - Letter written by Tahasildar, Tarikere dated 29/05/2014
- Ex.P.126 - Particulars furnished pertaining to Gold Pledge Account bearing No.1590842000169 by Canara Bank, K.B. Extension, Davanagere vide letter dated 03/12/2012
- Ex.P.127 - Information furnished pertaining to loan account bearing No.19270016007 34301 by Manager, Karnataka Bank Limited, KUD Circle Branch, Dharwad vide letter dated 21/01/2014
- Ex.P.128 - Information furnished pertaining to loan account bearing No.1927001600711001 and 1927002000301501 by Manager,

- Karnataka Bank Limited, KUD Circle Branch, Dharwad dated 21/01/2014
- Ex.P.129 - Information furnished pertaining to loan account bearing No.1927002000321 301 and 1927002000310001 by Manager, Karnataka Bank Limited, KUD Circle Branch, Dharwad dated 21/01/2014
- Ex.P.130 - Particulars with regard to payment of tax pertaining to BDA site No.3, Banashankari, Bengaluru furnished by Revenue Officer, South Division, BDA, Bengaluru dated 02/08/2014
- Ex.P.131 - Particulars with regard to Share Balance No.POA 70 furnished by Kotak Securities Limited, Davanagere through E-mail
- Ex.P.132 - Information with regard to loan account No.TLTD 10016 furnished by Branch Manager, Bank of Maharashtra, Dharwad through letter dated 04/06/2014
- Ex.P.133 - Documents with regard to loan account No.TLTD 10016 furnished by Branch Manager, Bank of Maharashtra, Dharwad through letter dated 08/08/2014
- Ex.P.134 - Particulars of payment of tax towards landed properties situated at Kurubarahalli village furnished by Tahasildar, Harihara vide letter dated 15/01/2013
- Ex.P.135 - Copy of SB account bearing No.531140161870 belonged to T. Anil Kumar by HDFC Bank, Davanagere vide letter dated 12/08/2014
- Ex.P.136 - Letter written by T. Anil Kumar, Technical Manager, CSRIE, Koramangala, Bengaluru

- Ex.P.137 - Letter with regard to permission obtained for construction of house in the landed properties situated at Kurubarahalli by Secretary, Grama Panchayath, Kondajji vide dated 10/07/2013
- Ex.P.138 - Letter written to ICICI Bank, Davanagere sought for furnishing information about copy of S.B. Account bearing No.401718601 belonged to T. Anil Kumar dated 11/08/2014
- Ex.P.139 - Letter written by the Assistant Executive Engineer, BESCO about installation of electric fixtures to the landed properties situated at Kurubarahalli village dated 18/08/2014
- Ex.P.140 - Cash bill No.32091/1-2-2009 for ₹3,570/- of Optical Paradise, Davanagere
- Ex.P.141 - Cash bill No.1640-32092, dated 1-2-2009 for ₹1,270/- of Optical Paradise, Davanagere
- Ex.P.142 - Passbook of S.B. Account bearing No.1813101013272 of Smt. Prema of Canara Bank
- Ex.P.143 - Passbook of S.B. Account bearing No.640042838038 of accused at SBM, Mandipete branch, Davanagere
- Ex.P.144 - Passbook of S.B. Account bearing No.1902500101258401 of Smt. Prema M.S., at Karnataka Bank, K.B. Extension, Davanagere.
- Ex.P.145 - Passbook of S.B. Account bearing No.1927001600754201 of Smt. Prema M.S., at Karnataka Bank, Dharwad Branch
- Ex.P.146 - Passbook of S.B. Account bearing No.1813101008271 of accused at

- Canara Bank, Vidya Nagara Branch,
Davanagere.
- Ex.P.147 - Passbook of S.B.Account bearing
No.1813101013583 of Smt. Prema at
Canara Bank, Vidya Nagara Branch,
Davanagere.
- Ex.P.148 - Registered partition deed of ancestor
properties situated at Bandri dated
19/06/2002
- Ex.P.149 - Receipt No.236414 for having paid
₹500/- towards tax by Smt. Prema to
Municipal Corporation dated
24/01/2002
- Ex.P.150 - Passbook of S.B.Account bearing
No.1813101013741 of B.U.Vidya at
Canara Bank, Vidya Nagara Branch
- Ex.P.151 - Original sale deed and possession
certificate pertaining to purchase of
BDA Site, Banashankari, Bengaluru
dated 25/11/2002
- Ex.P.152 - IT Returns submitted by Smt. Prema
during 2004-05
- Ex.P.153 - Photostat copies of Saral Form-3
during the year 2001-02, 2002-03
and 2004-05
- Ex.P.154 - Documents pertaining to submission
of IT Returns by Smt. Prema during
the year 2005-06 and 2007-08
- Ex.P.155 - Investment letter pertaining to
investment of ₹10,000/- in the shares
of Lotus Ink Itech Software Park by
Smt. Prema
- Ex.P.156 - Booklet of Life Insurance Policy
No.13516453-1 of HDBC Standard
Life Insurance of accused
- Ex.157 - Booklet of Life Insurance Policy
No.13345992 of accused in HDBC
Standard Life Insurance

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| Ex.P.158 | - | Policy bond No.120040037121 in the name of Smt.Prema in Met-life India |
| Ex.P.159 | - | Metlife India Policy bond No.1200400049409 in the name of accused |
| Ex.P.160 | - | LIC policy bond No.15223157 in the name of Smt.Prema |
| Ex.P.161 | - | ICICI Insurance Policy bond bearing No.15261653 in the name of Kumari Rekha |
| Ex.P.162 | - | Birla Sun Life Insurance Policy bond bearing No.005387340 in the name of Kumari Rekha |
| Ex.P.163 | - | Bajaj Allianz Insurance Policy bond bearing No.00586161612 in the name of Smt. Premia |
| Ex.P.164 | - | LIC Policy bond bearing No.621014143 in the name of Kumari Rekha B.U. |
| Ex.P.165 | - | Sirisi LIC Branch LIC policy bearing No.637169078 in the name of accused |
| Ex.P.166 | - | Dharwad LIC branch LIC policy bearing No.637108362 in the name of accused |
| Ex.P.167 | - | Photostat Copy of LIC policy bearing No.620770059 of LIC Tarikere branch in the name of accused |
| Ex.P.168 | - | Photostat Copy of LIC policy bearing No.623014029 of LIC Tarikere branch in the name of accused |
| Ex.P.169 | - | Photostat Copy of LIC policy bearing No.628038508 of LIC Tarikere branch in the name of accused |
| Ex.P.170 | - | Photostat copy of original FD bond bearing No.866472 (6-7-11) in the name of Kumari at Union Bank of India, Davanagere |

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| Ex.P.171 | - | IT Returns submitted by Smt. Prema during the year 2011-12 |
| Ex.P.172 | - | Acknowledgements pertaining to IT Returns submitted by Kumari Rekha during the year 2009-10 & 2010-11 and Summary of Capital Account ending on 31/03/2008, 31/03/2009 and 31/03/2010 |
| Ex.P.173 | - | Acknowledgements pertaining to IT returns submitted by Kumari Rekha during the year 2011-12 |
| Ex.P.174 | - | Photostat Copy of R.C. Book pertaining to two wheeler bearing Reg.No.KA-25/EA-4808 |
| Ex.P.175 | - | Policy Cover Certificate bearing No.OG-08-1704-1802-00005352 dated 21-11-2007 pertaining to two wheeler bearing Reg.No.KA-25/U-8212 |
| Ex.P.176 | - | Oriental Insurance Company's Cover note bearing no.635918 dated 21/11/2007 pertaining to Bajaj 180 CC two wheeler bearing Reg.No.KA-25/EA-4808 |
| Ex.P.177 | - | Form No.19- Temporary Certificate of Registration |
| Ex.P.178 | - | RTC extract pertaining to landed property bearing Re.Sy.No.79/P2 measuring 3 acres 26 guntas situated at Bandre village, Tarikere Taluk |
| Ex.P.179 | - | Partition Deed bearing S.R.No.909/2002-03 dated 19/06/2002 |
| Ex.P.180 | - | Passbook of S.B. Account bearing No.33/7045 in the SBM Bank, Dharwad, which was transferred from SBM, Bhadravathi |

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| Ex.P.181 | - | Policy Schedule No.60 dated 02/11/2011 pertaining to Mahindra Jeep bearing Reg.No.KA-25/M-9936 |
| Ex.P.182 | - | Emission Test Certificate pertaining to vehicle bearing Reg.No.KA-25/M-9936 |
| Ex.P.183 | - | Letter dated 26/08/2014 |
| Ex.P.184 | - | Letter of Principal Chief Conservator of Forests, Bengaluru dated 25/08/2014 furnishing attested copies of Assets and Liabilities statements of accused |
| Ex.P.185 | - | Letter written to Manager, Corporation Bank, Shivani, sought for information with regard to Agricultural Loan account bearing No.ACC/01/001077 vide dated 13/08/2014 |
| Ex.P.186 | - | Letter written by Principal, JJM Medical College dated 30/07/2014 |
| Ex.P.187 | - | Letter written by Tahasildar, Harihara and its enclosures pertaining to Agricultural income of landed properties situated at Kurubarahalli village |
| Ex.P.187(a) | - | Signature of D.W.4 |
| Ex.P.188 | - | Letter written by Tahasildar, Harihara pertaining to Horticulture income |
| Ex.P.189 | - | Letter of Assistant Director, Horticulture Department, Chikkamagaluru pertaining to Horticulture income |
| Ex.P.190 | - | Letter of Assistant Director of Agriculture, Tarikere pertaining to agricultural income of landed properties. |
| Ex.P.191 | - | FIR |

List of Documents marked for the accused:-

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| Ex.D.1 to D.6 | - | Summons in 6 numbers |
| Ex.D.7 to D.10 | - | Reports in 4 numbers |
| Ex.D.7(a) to
Ex.D.10(a) | - | Signatures of D.W.1 |
| Ex.D.11 | - | House building valuation's Report on site No.5, Door No.1826/5 at LIC Colony, Davanagere. |
| Ex.D.12 | - | House building valuation's Report on site No.4, Door No.1825/4 at LIC Colony, Davanagere. |
| Ex.D.13 | - | Valuation for cost of construction of Store Building at Sy.No.12/1, Kurubarahalli village. |
| Ex.D.14 | - | Valuation for cost of construction of Farm house building at Sy.No.12/1 of Kurubarahalli Village |
| Ex.D.15 | - | Valuation of fencing around the agricultural land at Sy.No.12/1 of Kurubarahalli Village |
| Ex.D.16 | - | Registration certificate of certified valuer |
| Ex.D.11(a) to
Ex.D.16(a) | - | Signatures of D.W.2 |
| Ex.D.17 | - | Affidavit |
| Ex.D.17(a) | - | Signature of father of D.W.3 |
| Ex.D.18 | - | Death Certificate |
| Ex.D.19 | - | Letter written by Branch Manager, Karnataka Bank Limited to Smt. M.S.Prema dated 20/06/2017 |

Ex.D.19(a)	-	Signature of D.W.5
Ex.D.20	-	Original document of original affidavit of Ex.P.37 page No.515 and 516
Ex.D.20(a)	-	Signature of D.W.6
Ex.D.21 to D.25	-	Affidavits
Ex.D.26	-	Panchanama
Ex.D.26(a)	-	Signature of D.W.12
Ex.D.26(b)	-	Signature of B.P. Girish
Ex.D.26(c)	-	Signature of Somashekharappa
Ex.D.27 to D.33	-	Documents pertaining to submission of IT Returns by accused and wife of accused
Ex.D.34	-	Endorsement issued by Office of Tahasildar
Ex.D.35	-	Attesting letter pertaining to agricultural crop
Ex.D.36	-	RTCs
Ex.D.37	-	Sarala Form of IT returns
Ex.D.38	-	Documents pertaining to DTP centre
Ex.D.39	-	Receipts in 36 numbers
Ex.D.40	-	Affidavit submitted before the IO
Ex.D.41	-	APR in 94 pages
Ex.D.42	-	Documents pertaining to FOC No.3/97-98 (29 pages)

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| Ex.D.43 | - | Documents pertaining to complaint of Lokayuktha |
| Ex.D.44 | - | Complaint given to the Higher Officer with regard to construction of building by encroaching the Forest land |
| Ex.D.45 | - | Complaint given by one Manjunatha Swami, Secretary, Grama Panchayath to Santhebennuru Police Station |
| Ex.D.46 | - | Report submitted by Lokayuktha Police, Dharwad |
| Ex.D.47 | - | Prajavaani daily newspaper and Karnataka Vikas |
| Ex.D.48 | - | Report pertaining to Assets and income |
| Ex.D.49 | - | Report submitted with regard to Assets and income after raid |
| Ex.D.50 | - | Notarized copy of partition deed |
| Ex.D.51 | - | Attesting copy of particulars of salary |
| Ex.D.52 | - | Affidavit submitted before the IO |
| Ex.D.53 | - | Affidavit submitted by late B. Channabasappa before the IO |
| Ex.D.53(a) | - | Signature of late Channabasappa |
| Ex.D.54 | - | Affidavit submitted by the brother of accused namely Eshwarappa before the IO (including RTC in 6 numbers |
| Ex.D.55 | - | Affidavit submitted by the husband of accused's sister namely Maheshwarappa before the IO |
| Ex.D.55(a) | - | Signature |

- Ex.D.56 - Affidavit submitted by the friend of accused namely late Basavaraja before the IO
- Ex.D.56(a) - Signature
- Ex.D.57 - Affidavit of B.U. Rekha i.e., daughter of accused
- Ex.D.58 - Affidavit of B.U.Vidya i.e., another daughter of accused
- Ex.D.59 - Affidavit of Latha who is daughter of accused wife's sister
- Ex.D.60 - Affidavit submitted by one Prakash with regard to purchase of landed property
- Ex.D.61 - Affidavit submitted by one Basamma with regard to purchase of landed property
- Ex.D.62 - Documents pertaining to IT returns
- Ex.D.63 - Documents pertaining to IT returns for the year 2013-14
- Ex.D.64 - Receipts in 51 numbers pertaining to Agriculture and Horticulture Department

List of Material Objects for the prosecution :-

- NIL -

RAJESHWARI N HEGDE

Digitally signed by RAJESHWARI N HEGDE
Date: 2023.11.06 16:27:52 +0530

(Rajeshwari N. Hegde)
Prl. District & Sessions Judge,
Special Judge (Lokayuktha)
DAVANAGERE.

ANNEXURE- 1**Properties seized under Ex.P.7 and subjected to P.F.No.14/2012, dated 08/11/2012 listed as under:-**

ದಿನಾಂಕ: 08/11/2012 ರಂದು ಆರೋಪಿತರು ವಾಸವಿರುವ ಮನೆ ಸಂಖ್ಯೆ: 1826/5, ಎಲ್‌ಐಸಿ ಕಾಲೋನಿ, ತಿಮ್ಮಾರೆಡ್ಡಿ ಕಾಲೇಜು ಪಕ್ಕ, ದಾವಣಗೆರೆ ಇಲ್ಲಿ ಶೋಧಾನಾ ಸಮಯದಲ್ಲಿ ಕಂಡು ಬಂದ ವಸ್ತುಗಳ ಪಟ್ಟಿ: -

ಕ್ರಮಸಂಖ್ಯೆ	ದಾಖಲೆಗಳ ವಿವರ
1.	ಆಪ್ಟಿಕಲ್ ಪ್ಯಾರಾ ಡೈಸ್ ಗಡಿಯಾರದ ಕಂಬದ ಹತ್ತಿರ, ದಾವಣಗೆರೆ ಇವರ ಕ್ಯಾಶ್ ಬಿಲ್ ನಂ: 32091 ದಿನಾಂಕ: 01/02/2009 ಮೊತ್ತ ರೂ. 3570-00
2.	ಆಪ್ಟಿಕಲ್ ಪ್ಯಾರಾ ಡೈಸ್ ಗಡಿಯಾರದ ಕಂಬದ ಹತ್ತಿರ, ದಾವಣಗೆರೆ ಇವರ ಕ್ಯಾಶ್ ಬಿಲ್ ನಂ: 32092 ದಿನಾಂಕ: 01/02/2009 ಮೊತ್ತ ರೂ. 1,270-00
3.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಉಜ್ಜನಪ್ಪ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಕೆನರಾ ಬ್ಯಾಂಕ್ ಎಸ್.ಬಿ.ಖಾತೆ ನಂ: 1813101013272 ರ ಪಾಸ್ ಪುಸ್ತಕ
4.	ಉಜ್ಜನಪ್ಪ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಎಸ್.ಬಿ.ಎಂ. ಮಂಡಿಪೇಟೆ ದಾವಣಗೆರೆ ಎಸ್.ಬಿ.ಖಾತೆ ನಂ: 640042838038 ರ ಪಾಸ್ ಪುಸ್ತಕ
5.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಎಂ.ಎಸ್. ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್, ಕೆ.ಬಿ. ಬಡಾವಣೆ ಶಾಖೆಯ ಎಸ್.ಬಿ. ಖಾತೆ ನಂ: 1902500101258401 ರ ಪಾಸ್ ಪುಸ್ತಕ
6.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಎಂ.ಎಸ್. ಇವರ ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್, ಧಾರವಾಡ ಇಲ್ಲಿ ಹೊಂದಿರುವ ಎಸ್.ಬಿ. ಖಾತೆ ನಂ: 1927001600754201 ರ ಪಾಸ್ ಪುಸ್ತಕ
7.	ಉಜ್ಜನಪ್ಪ ಇವರು ಕೆನರಾ ಬ್ಯಾಂಕ್, ವಿದ್ಯಾನಗರ ಶಾಖೆ, ದಾವಣಗೆರೆ ಇಲ್ಲಿ ಹೊಂದಿರುವ ಎಸ್.ಬಿ. ಖಾತೆ ನಂ: 1813101008271 ರ ಪಾಸ್ ಪುಸ್ತಕ
8.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರು ಕೆನರಾ ಬ್ಯಾಂಕ್, ವಿದ್ಯಾನಗರ ಶಾಖೆ, ದಾವಣಗೆರೆ ಇಲ್ಲಿ ಹೊಂದಿರುವ ಎಸ್.ಬಿ. ಖಾತೆ ನಂ: 1813101013583 ರ ಪಾಸ್ ಪುಸ್ತಕ
9.	ದಿ: 19/06/2002 ರಂದು ಬಂತ್ರಿ ಗ್ರಾಮದಲ್ಲಿನ ಪಿತ್ರಾರ್ಜಿತ ಆಸ್ತಿಯನ್ನು ಪೇಲು ವಿಭಾಗದ ನೋಂದಣಿ ಪತ್ರ- 7 ಪುಟಗಳು
10.	ದಿ: 24/01/2022 ರಂದು ಎಂ.ಎಸ್. ಪ್ರೇಮಾ ಇವರು ನಗರಸಭೆಗೆ ರೂ. 500-00 ಗಳನ್ನು ಸಂದಾಯ ಮಾಡಿದ್ದು ರಶೀದಿ ಸಂಖ್ಯೆ: 236414
11.	ಬಿ.ಯು.ವಿದ್ಯಾ ಇವರು ಕೆನರಾ ಬ್ಯಾಂಕ್, ವಿದ್ಯಾ ನಗರ ಶಾಖೆ, ದಾವಣಗೆರೆ ಇಲ್ಲಿ ಹೊಂದಿರುವ ಎಸ್.ಬಿ. ಖಾತೆ ನಂ. 1813101013741 ರ ಪಾಸ್ ಪುಸ್ತಕ

12.	ದಿ: 25/11/2022 ರಂದು ಬಿ.ಡಿ.ಎ. ಬೆಂಗಳೂರು ಇವರಿಂದ ಅಸಲ ರವರ 6 ನೇ ಹಂತ, 2 ನೇ ಬ್ಯಾಕ್, ಬನಶಂಕರಿ ಇಲ್ಲಿ ಖರೀದಿಸಿದ ನಿವೇಶನ ಸಂಖ್ಯೆ-3 ರ ಮೂಲ ಕ್ರಯ ಹಾಗೂ ಸ್ವಾಧೀನ ಪತ್ರ- 5 ಪುಟಗಳು
13.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರು 2004-2005 ರ ಸಾಲಿನಲ್ಲಿ ಸಲ್ಲಿಸಿದ ಆದಾಯ ತೆರಿಗೆ -ಸಲ್ಲಿಕೆ- 14 ಹಾಳೆಗಳು
14.	2001-02, 2002-03, ಮತ್ತು 2004-05 ರ ಸರಳ ಫಾರಂ - 3 ಹಾಳೆಗಳು (ಜೆರಾಕ್ಸ್ ಪ್ರತಿಗಳು)
15.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರು 2005-06 ಮತ್ತು 2007-08 ನೇ ಸಾಲಿಗೆ ಆದಾಯ ತೆರಿಗೆ ಇಲಾಖೆಗೆ ಸಲ್ಲಿಸಿದ ದಾಖಲೆಗಳು- 4 ಹಾಳೆಗಳು
16.	ದಿ: 25/01/2003 ರಂದು ಲೋಟಸ್ ಇಂಕ್ ಐಟೆಕ್ ಸಾಫ್ಟ್‌ವೇರ್ ಪಾರ್ಕ್ ನಲ್ಲಿ ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರು ರೂ.10,000-00 ಶೇರುಗಳ ಸಲುವಾಗಿ ಸಂದಾಯ ಮಾಡಿದ ಹೂಡಿಕೆ ಪತ್ರ- 1 ಪುಟ
17.	ಅಸಲ ರವರು ಹೊಂದಿರುವ ಹೆಚ್.ಡಿ.ಎಫ್.ಸಿ. ಸ್ಟಾಂಡರ್ಡ್ ಲೈಫ್ ವಿಮಾ ಪಾಲಿಸಿಯ ಪತ್ರ ನಂ: 13516452 ರ 1 ಬುಕ್ ಲೇಟ್
18.	ಅಸಲ ರವರು ಹೊಂದಿರುವ ಹೆಚ್.ಡಿ.ಎಫ್.ಸಿ. ಸ್ಟಾಂಡರ್ಡ್ ಲೈಫ್ ವಿಮಾ ಪಾಲಿಸಿಯ ಪತ್ರ ನಂ: 13345992 ರ 1 ಬುಕ್ ಲೇಟ್
19.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರ ಹೆಸರಿನ ಮೆಟ್ ಲೈಫ್ ಇಂಡಿಯಾ ಪಾಲಿಸಿ ನಂ: 1200400037121 ಬಾಂಡ್
20.	ಅಸಲ ರವರ ಹೆಸರಿನ ಮೆಟ್ ಲೈಫ್ ಇಂಡಿಯಾ ಪಾಲಿಸಿ ನಂ: 1200400049409 ಬಾಂಡ್
21.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಐಸಿಐಸಿಐ ವಿಮಾ ಪಾಲಿಸಿ ಸಂಖ್ಯೆ: 15223157 ರ ಬಾಂಡ್
22.	ಕು. ರೇಖಾ ಬಿ.ಯು. ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಐಸಿಐಸಿಐ ವಿಮಾ ಪಾಲಿಸಿ ಸಂಖ್ಯೆ: 15261653 ರ ಬಾಂಡ್
23.	ಕು. ರೇಖಾ ಬಿ.ಯು. ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಬಿಲ್ಡ್ ಸನ್ ಲೈಫ್ ವಿಮಾ ಪಾಲಿಸಿ ಸಂಖ್ಯೆ: 005387340 ರ ಬಾಂಡ್
24.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಬಜಾಜ್ ಅಲಿಯಾನ್ಸ್ ವಿಮಾ ಪಾಲಿಸಿ ಸಂಖ್ಯೆ: 0058616162 ರ ಬಾಂಡ್
25.	ಕು.ಬಿ.ಯು. ರೇಖಾ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಎಲ್‌ಐಸಿ ಪಾಲಿಸಿ ನಂ: 621014143 ರ ಬಾಂಡ್
26.	ಅಸಲ ರವರ ಹೆಸರಿನಲ್ಲಿರುವ ಶಿರಸಿ ಶಾಖೆಯ ಎಲ್‌ಐಸಿ ವಿಮಾ ಪಾಲಿಸಿ ನಂ: 637169078 ರ ಬಾಂಡ್
27.	ಅಸಲ ರವರ ಹೆಸರಿನಲ್ಲಿರುವ ಧಾರವಾಡ ಶಾಖೆಯ ಎಲ್‌ಐಸಿ ವಿಮಾ ಪಾಲಿಸಿ ನಂ: 637108362 ರ ಬಾಂಡ್.
28.	ಅಸಲ ರವರ ಹೆಸರಿನಲ್ಲಿರುವ ತರೀಕೆರೆ ಶಾಖೆಯ ಎಲ್‌ಐಸಿ ವಿಮಾ ಪಾಲಿಸಿ ನಂ: 620770059 ರ ಬಾಂಡ್.(ಜೆರಾಕ್ಸ್)

29.	ಅಸಲ ರವರ ಹೆಸರಿನಲ್ಲಿರುವ ತರೀಕೆರೆ ಶಾಖೆಯ ಎಲ್‌ಐಸಿ ವಿಮಾ ಪಾಲಿಸಿ ನಂ: 623014029 ರ ಬಾಂಡ್ (ಜೆರಾಕ್ಸ್)
30.	ಅಸಲ ರವರ ಹೆಸರಿನಲ್ಲಿರುವ ತರೀಕೆರೆ ಶಾಖೆಯ ಎಲ್‌ಐಸಿ ವಿಮಾ ಪಾಲಿಸಿ ನಂ:623038508 ರ ಬಾಂಡ್ (ಜೆರಾಕ್ಸ್)
31.	ಕು.ರೇಖಾ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಯೂನಿಯನ್ ಬ್ಯಾಂಕ್ ದಾವಣಗೆರೆ ಇಲ್ಲಿ ಹೊಂದಿರುವ ರೂ. 50,000-00 ಮೌಲ್ಯದ ಡೆಪಾಸಿಟ್ ಮೂಲ ಬಾಂಡ್ ನಂ: 866472 ದಿ: 06/07/2011
32.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರು ಆದಾಯ ತೆರಿಗೆ ಇಲಾಖೆಗೆ ಸಲ್ಲಿಸಿದ 2011-12 ನೇ ಸಾಲಿನ ರಿಟರ್ನ್ ಪ್ರತಿ 4 ಹಾಳೆಗಳು.
33.	ಕು.ಬಿ.ಯು.ರೇಖಾ ಇವರು 2009-10, 2010-11 ನೇ ಸಾಲಿಗೆ ಆದಾಯ ತೆರಿಗೆ ಇಲಾಖೆಗೆ ಆದಾಯ ತೆರಿಗೆ ಸಲ್ಲಿಕೆಗಳನ್ನು ಸಲ್ಲಿಸಿದ ಬಗ್ಗೆ ಇರುವ ಸ್ವೀಕೃತಿಗಳು- 2 ಹಾಳೆಗಳು ಮತ್ತು ಕ್ಯಾಪಿಟಲ್ ಅಕೌಂಟ್ಸ್ ಸಮ್ಮರಿ 31/03/2008 ಕ್ಕೆ ಕೊನೆಗೊಳ್ಳುವಂತೆ 31/03/2009 ಮತ್ತು 31/03/2010 ಕ್ಕೆ ಕೊನೆಗೊಳ್ಳುವಂತೆ 2 ಹಾಳೆಗಳು ಒಟ್ಟು 4 ಹಾಳೆಗಳು
34.	ಕು. ಬಿ.ಯು. ವಿದ್ಯಾ ಇವರು 2011-12 ನೇ ಸಾಲಿಗೆ ಆದಾಯ ತೆರಿಗೆ ಇಲಾಖೆಗೆ ಆದಾಯ ತೆರಿಗೆ ಸಲ್ಲಿಕೆ ಸಲ್ಲಿಸಿದ ಬಗ್ಗೆ ಇರುವ ಸ್ವೀಕೃತಿಯ ಜೆರಾಕ್ಸ್- 2 ಹಾಳೆಗಳು.
35.	ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಬಗ್ಗೆ ಮಾಡಲಾದ ವೀಡಿಯೋ ಚಿತ್ರೀಕರಣದ 2 ಸಿಡಿಗಳು.

ANNEXURE- 2

Properties seized under Ex.P.1 and subjected to P.F.No.15/2012, dated 08/11/2012 listed as under:

ಆಪಾದಿತರಾದ ಶ್ರೀ ಎಸ್. ಉಜ್ಜನಪ್ಪ, ಕಾರ್ಯ ನಿರ್ವಹಣಾಧಿಕಾರಿಗಳು, ತಾಲ್ಲೂಕು ಪಂಚಾಯತ್. ರಾಣೆಬೆನ್ನೂರು ಇವರ ಕರ್ತವ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಕಾರ್ಯ ನಿರ್ವಹಣಾಧಿಕಾರಿಗಳ ಕಛೇರಿ, ತಾಲ್ಲೂಕು ಪಂಚಾಯತ್, ರಾಣೆಬೆನ್ನೂರು ಹಾಗೂ ಆಪಾದಿತರು ವಾಸವಾಗಿರುವ ಸರ್ಕಾರಿ ವಸತಿ ಗೃಹ ನಂ: 2, ನ್ಯಾಯಾಲಯದ ಆವರಣದ ಹತ್ತಿರ, ರಾಣೆಬೆನ್ನೂರು ಇಲ್ಲಿ ತಯಾರಿಸಿದ ಶೋಧನಾ ಪಂಚನಾಮೆ ಕಾಲದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಬಗ್ಗೆ ವೀಡಿಯೋ ಚಿತ್ರೀಕರಣ ಮಾಡಲಾಗಿರುತ್ತದೆ.

ಕ್ರಮಸಂಖ್ಯೆ	ದಾಖಲೆಗಳ ವಿವರ
1.	ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಬಗ್ಗೆ ಮಾಡಲಾದ ವೀಡಿಯೋ ಚಿತ್ರೀಕರಣದ 1 ವೀಡಿಯೋ ಕ್ಯಾಸೆಟ್

ANNEXURE- 3**Properties seized under Ex.P.15 and subjected to P.F.No.16/2012, dated 08/11/2012 listed as under:-**

ಆರೋಪಿತರ ಪತ್ನಿ ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಇವರ ಹೆಸರಿನಲ್ಲಿ ಹರಿಹರ ತಾಲ್ಲೂಕು ಕುರುಬರಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ: 12 ಪಿ ರಲ್ಲಿರುವ ಜಮೀನಿನಲ್ಲಿರುವ ತೋಟದ ಮನೆಯ ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಛಾಯಾಚಿತ್ರಗಳನ್ನು ತೆಗೆಯಲಾಗಿರುತ್ತದೆ.

ಕ್ರಮಸಂಖ್ಯೆ	ದಾಖಲೆಗಳ ವಿವರ
1.	ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ತೆಗೆದ ಪ್ರಮುಖ ಘಟನೆಗಳ 31 ಫೋಟೋಗಳು
2.	ಕ್ರ.ಸಂ.1 ರಲ್ಲಿ ನಮೂದಿಸಿದ ಫೋಟೋಗಳನ್ನೊಳಗೊಂಡ ಒಂದು ಸಿ.ಡಿ.

ANNEXURE- 4**Properties seized under Ex.P.32 and subjected to P.F.No.17/2012, dated 08/11/2012 listed as under:-**

ಆರೋಪಿತರ ಸಹೋದರ ಬಿ. ಚನ್ನಬಸಪ್ಪ ಇವರ ಬಂಡ್ರೆ ಗ್ರಾಮದ ವಾಸದ ಮನೆಯ ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ವೀಡಿಯೋ ಚಿತ್ರೀಕರಣ ಮಾಡಲಾಗಿರುತ್ತದೆ.

ಕ್ರಮಸಂಖ್ಯೆ	ದಾಖಲೆಗಳ ವಿವರ
1.	ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಬಗ್ಗೆ ಮಾಡಲಾದ ಒಂದು ವೀಡಿಯೋ ಸಿ.ಡಿ.

ANNEXURE- 5**Properties seized under Ex.P.31 and subjected to P.F.No.18/2012, dated 09/11/2012 listed as under:-**

ಕ್ರಮ ಸಂಖ್ಯೆ	ದಾಖಲೆಗಳ ವಿವರ
1.	ಕೆಎ- 25 ಇಎ- 4508 ನೇ ನೋಂದಣಿ ಸಂಖ್ಯೆ ಪಲ್ಲಾರ್ ದ್ವಿಚಕ್ರ ವಾಹನದ ಆರ್.ಸಿ ಪುಸ್ತಕದ ಜೆರಾಕ್ಸ್ ಪ್ರತಿ- 1 ಹಾಳೆ
2.	ದ್ವಿಚಕ್ರ ವಾಹನ ಸಂಖ್ಯೆ ಕೆಎ- 25 ಯು- 8212 ಹೋಂಡಾ ಆ್ಯಕ್ಟೀವಾ ಇದರ ಬಜಾಜ್ ಆಲಿಯಾಂಜ್ ಜನರಲ್ ಇನ್ಸೂರೆನ್ಸ್ ಕಂಪನಿಯ ಸರ್ಟಿಫಿಕೇಟ್ ಕಮ್ ಪಾಲಿಸಿ ಷೆಡ್ಯೂಲ್ ನಂ: ಓಜಿ-08-1704-1802-00005352, ದಿ: 21/11/2007- 1 ಹಾಳೆ
3.	ಬಜಾಜ್ ಕಂಪನಿಯ 180 ಸಿಸಿ ದ್ವಿಚಕ್ರ ವಾಹನ ಸಂಖ್ಯೆ: ಕೆಎ- 25 ಇಎ- 4808 ನೇದ್ದರ ಓರಿಯಂಟಲ್ ಇನ್ಸೂರೆನ್ಸ್ ಕಂಪನಿಯ ಮೋಟಾರು ವೆಹಿಕಲ್

	ಇನ್ನೂರೆನ್ನ ನ ಕವರ್ ನೋಟ್ ಸಂಖ್ಯೆ: 635918, ದಿ: 21/11/2007 ರ ಚೆರಾಕ್ಸ್ ಪ್ರತಿ- 1 ಹಾಳೆ
4.	ಪಾರಂ ನಂ: 19- ಟೆಂಪೋರರಿ ಸರ್ಟಿಫಿಕೇಟ್ ಆಫ್ ರಿಜಿಸ್ಟ್ರೇಷನ್ ಚೆರಾಕ್ಸ್ ಪ್ರತಿ- 1 ಹಾಳೆ
5.	ತರೀಕೆರೆ ತಾಲ್ಲೂಕು ಅಜ್ಜಂಪುರ ಹೋಬಳಿ ಬಂಡ್ರೆ ಗ್ರಾಮದ ರಿ.ಸ.ನಂ: 79/ಪಿ ನೇದ್ದರ 3.26 ಎಕರೆ ಜಮೀನಿನ ಪಹಣಿ- 1 ಹಾಳೆ
6.	ಪಾಲು ವಿಭಾಗ ಪತ್ರದ ನೋಂದಣಿ ಕ್ರಮಾಂಕ ಸಂ: 909/2002-03, ದಿ: 19/06/2002 ನೇದ್ದರ ಚೆರಾಕ್ಸ್ ಪ್ರತಿ- 4 ಹಾಳೆಗಳು
7.	ಶ್ರೀಮತಿ ಪ್ರೇಮಾ ಗಂಡ. ಎಸ್.ಉಜ್ಜಿನಪ್ಪ, ಆರ್.ಎಫ್.ಓ ಭದ್ರಾವತಿ ಇವರ ಹೆಸರಿನಲ್ಲಿರುವ ಸ್ಟೇಟ್ ಬ್ಯಾಂಕ್ ಆಫ್ ಮೈಸೂರು, ಭದ್ರಾವತಿ ಇಲ್ಲಿ ಉಳಿತಾಯ ಖಾತೆಯಿದ್ದು ನಂತರ ಸದರಿ ಖಾತೆಯನ್ನು ಧಾರವಾಡ- 352 ಶಾಖೆಯ ಎಸ್.ಬಿ.ಎಂ.ಗೆ ವರ್ಗಾವಣೆಗೊಂಡಿರುವ ಉಳಿತಾಯ ಖಾತೆಯ ಮೂಲ ಪಾಸ್ ಪುಸ್ತಕ ಉಳಿತಾಯ ಸಂ: 33/7045
8.	ಕೆಎ- 25, ಎಂ.9936 ಮಹೀಂದ್ರ ಜೀಪ್ ನೇದ್ದರ ನ್ಯಾಷನಲ್ ಇನ್ನೂರೆನ್ನ ಕಂಪನಿಯ ಪಾಲಿಸಿ ಷೆಡ್ಯೂಲ್ ಸಂ: 60 ದಿ: 02/11/2001 ನೇದ್ದರ ಮೂಲ ಪ್ರತಿ- 1 ಹಾಳೆ
9.	ಕೆಎ- 25 ಎಂ. 9936 ಮಹೀಂದ್ರ ಜೀಪ್ ನ ವಾಯು ಮಾಲಿನ್ಯ ಪರೀಕ್ಷಣಾ ಪತ್ರ ದಿ: 24/10/2001 ನೇದ್ದರ ಮೂಲ ಪ್ರತಿ- 01 ಹಾಳೆ
10.	ಶೋಧನಾ ಸಮಯದಲ್ಲಿ ಪ್ರಮುಖ ಘಟನೆಗಳ ಬಗ್ಗೆ ತೆಗೆಯಲಾದ 19 ಪೋಟೋಗಳು
11.	ಕ್ರಸಂ: 10 ರಲ್ಲಿ ನಮೂದಿಸಿದ ಪೋಟೋಗಳುಳ್ಳ 1 ಸಿ.ಡಿ.

RAJESHWARI N HEGDE

Digitally signed by RAJESHWARI N HEGDE
Date: 2023.11.06 16:27:21 +0530

(Rajeshwari N. Hegde)
Prl. District & Sessions Judge,
Special Judge (Lokayuktha)
DAVANAGERE.